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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

JULY 22, 2025

>> WE'LL GET STARTED IN JUST A FEW MINUTES. LET'S SEE. OKAY. OKAY. GREAT. OKAY. LET'S START THE RECORDING.

>> RECORDING IN PROGRESS.

>> AND I DIDN'T HEAR THE --

>> RECORDING STOPPED. RECORDING IN PROGRESS.

>> HEAR IT SAY RECORDING IN PROGRESS. IS THE --

>> B. BLACKABY: WE HEARD IT.

>> COUNCILMEMBER BLACKABY OR LUNAPARRA, CAN YOU SAY SOMETHING TO SEE IF WE CAN HEAR YOU?

>> B. BLACKABY: HELLO.

>> C. LUNAPARRA: HELLO.

>> WE CAN'T HEAR YOU. WE HAVE TO RESTART THE REMOTE CONTROL AND THEN WE'LL BE ABLE TO START THE MEETING. YES.

>> RECORDING STOPPED.

>> OH. [LAUGHTER] [CHATTER]

>> I'M SORRY. [LAUGHTER]

>> BUT IT'S OKAY IF YOU ARE.

>> MAYOR A. ISHII: SORRY, EVERYONE. WE ARE STILL SORTING OUR

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BUSINESS.

>> THESE SCREENS ARE SHOWING. [CHATTER]

>> ALL RIGHT. COUNCILMEMBERS BLACKABY AND LUNAPARRA, CAN YOU HEAR US AND SEE US OKAY?

>> B. BLACKABY: WE CAN HEAR YOU.

>> RECORDING IN PROGRESS.

>> WE CAN BEGIN.

>> MAYOR A. ISHII: OKAY. ALL RIGHT. THANK YOU, EVERYONE, THE SO MUCH FOR YOUR PATIENCE. WE BOTH HAD A CLOSED SESSION MEETING AND THEN TECHNICAL DIFFICULT'S, WHICH IF YOU'VE BEEN TUNING INTO THESE MEETINGS YOU KNOW THAT'S BEEN GOING ON FOR A LITTLE WHILE, SO I DO APOLOGIZE FOR THAT. I'M GOING TO CALL TO ORDER THE TUESDAY, JULY 22, 2025, COUNCIL MEETING. WE'LL START WITH A ROLL CALL.

>> CITY CLERK: OKAY. COUNCILMEMBER KESARWANI.

>> R. KESARWANI: HERE.

>> CITY CLERK: TAPLIN.

>> T. TAPLIN: HERE.

>> CITY CLERK: COUNCILMEMBER BARTLETT. BARTLETT IS ABSENT.

>> CITY CLERK: TREGUB.

>> I. TREGUB: HERE.

>> CITY CLERK: TREGUB IS HERE. O'KEEFE.

>> S. O'KEEFE: HERE. [ROLL CALL]

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>> MAYOR A. ISHII: ALL RIGHT. NOW MOVING ONTO CEREMONIAL MATTERS. WE HAVE A NUMBER OF ADJOURNMENTS AND MEMORIES AS WELL AS ONE PROFANATION WHICH I WILL READ. IT'S A REQUEST FROM DISTRICT 2 TERRY TAPLIN, SO THANK YOU FOR THAT. ACTUALLY, WE HAVE REPRESENTATIVES, SO PLEASE COME UP TO THE FRONT. THANK YOU SO MUCH. RECOGNIZING PORT CHICAGO REMEMBRANCE DAY. WHEREAS THE PORT CHICAGO NAVAL MAGAZINE LOCATED APPROXIMATELY 20 MILES NORTH OF EAST BERKELEY WERE AFRICAN-AMERICAN SAILORS WERE EXCLUSIVELY ASSIGNED TO THE DANGEROUS TASK OF LOADING EXPLOSIVES ONTO CARGO SHIPS AND ON THE NIGHT OF JULY 17, 1944, A CATASTROPHIC EXPLOSION RESULTED IN THE DEADLIEST HOMEFRONT DISASTER OF THE WAR KILLING 320 PEOPLE. MOST OF THEM AFRICAN-AMERICAN SAILORS, INJURING 390 OTHERS, AND INFLICTING WIDESPREAD DAMAGE ON THE NEARBY TOWN OF PORT CHICAGO, CALIFORNIA. AND WHEREAS 258 SURVIVING AFRICAN-AMERICAN SAILORS CITING UNSAFE CONDITIONS PROTESTING THE ORDER AND DRAWING NATIONAL ATTENTION TO UNFAIR DISCRIMINATION AND HAZARDOUS WORKING CONDITIONS IN THE MILITARY, AND 50 OF THOSE SAILORS KNOWN AS THE PORT CHICAGO 50 WERE WRONGFULLY CHARGED AND CONVICTED OF MUTINY AND WHEREAS ON JULY 17, 2024, FOLLOWING PERSISTENT ADVOCACY FROM THE CITY OF BERKELEY, PRESIDENT JOE BIDEN AUTHORIZED NAVAL SECRETARY CARLOS TO EXONERATE THE PORT CHICAGO 50 AND ALL 256 SAILORS INVOLVED AFFIRMING THE INJUSTICE THEY SUFFERED AND RECOGNIZING THEIR

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ACTIONS AS A PIVOTAL MOMENT AS CIVIL RIGHTS AND THE LITERARY HISTORY. AND WHEREAS THE CITY OF BERKELEY HOLDS A UNIQUE PLACE IN HISTORY HAVING WELCOME TO THE PORT CHICAGO SAILORS DURING WORLD WAR II, SUPPORTED RESCUE EFFORTS, AND CONTRIBUTED LEGAL LEADERSHIP THROUGH BERKELEY NAACP PRESIDENT WALTER A GORDON, AND WITH A CONTINUED ENGAGEMENT WITH COMMUNITY LEADERS LIKE THE COMMEMORATIVE EVENTS SUCH AS PORT CHICAGO WE CAN, THIS LEGACY WILL BE PRESERVED AND HONORED. NOW THEREFORE IT BE RESOLVED THAT I, ADENA ISHII, MAYOR OF THE CITY OF BERKELEY, DO HEREBY DECLARE JULY 17, 2025, AS PORT CHICAGO REMEMBRANCE DAY TO RECOGNIZE THE BRAVELY AND LEGACY OF THE PORT CHICAGO SAILORS AND EDUCATE FUTURE GENERATIONS ABOUT THIS DEFINING CHAPTER IN AMERICAN HISTORY. [APPLAUSE]

>> THANK YOU. CAN I SAY A FEW WORDS? GOOD EVENING. MY NAME IS -- I THANK YOU FOR THIS PROCLAMATION RECOGNIZING JULY 17 AS PORT CHICAGO REMEMBRANCE DAY HERE IN BERKELEY. THE OFFICIAL DAY OF REMEMBRANCE DOES MORE THAN MARK A MOMENT IN TIME. IT ACKNOWLEDGES INJUSTICE AND IT AFFIRMS THE DIGNITY OF THOSE AFFECTED. IT SENDS A LASTING MESSAGE TO FUTURE GENERATIONS ABOUT THE POWER OF COLLECTIVE ACTION, THE IMPORTANCE OF SPEAKING TRUTH TO POWER, AND THE COURAGE IT TAKES TO DEMAND JUSTICE EVEN IN THE FACE OF ADVERSITY. THANK YOU ALL FOR YOUR COMMITMENT TO TRUTH, TO MEMORY, AND TO ADVANCING JUSTICE THROUGH MEMBRANES,

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INTEGRITY, AND LEADERSHIP. AND I WANT TO CLOSE BY SAYING THAT PORT CHICAGO WEEKEND 2025 WAS A TREMENDOUS SUCCESS AND IT WOULDN'T HAVE BEEN POSSIBLE WITHOUT ALL YOUR GENEROUS SUPPORT, SO THANK YOU SO MUCH. THANK YOU SO MUCH TO COUNCILMEMBER TERRY TAPLIN, THANK YOU TO THE MAYOR, THANK YOU ALL VERY MUCH. VERY MUCH APPRECIATED. THANK YOU. [APPLAUSE]

>> OH, WHEREVER YOU WANT TO BE. [APPLAUSE]

>> THANKS. THANK YOU SO MUCH.

>> MAYOR A. ISHII: ALL RIGHT. WE ARE MOVING ONTO ADJOURNMENTS IN MEMORY, I'M GOING TO PASS IT OVER TO COUNCILMEMBER TREGUB.

>> I. TREGUB: THANK YOU. I HAVE THREE ADJOURNMENTS IN MEMORY TONIGHT. THE FIRST ONE IS HONORING THE LIFE AND LEGACY OF MARIE GUNTER. TODAY, WE HONOR AND CELEBRATE THE LIFE OF MARIE GUNTER. A VISIONARY LEADER IN SUSTAINABILITY AND CLIMATE JUSTICE WHO SADLY LEFT US FAR TOO SOON ON SATURDAY, MAY 10, 2025. MARIE'S LEGACY IS PROFOUND, FAR-REACHING, AND ENDURING. WITH OVER A DECADE OF EXPERIENCE IN ADVANCING EQUITABLE ENERGY AND CLIMATE SOLUTIONS, MOST RECENTLY SHE LED SOLAR DEVELOPMENT AT GRID ALTERNATIVES BAY AREA MANAGING RESIDENTIAL AND COMMERCIAL CLEAN ENERGY PROJECT SERVING MULTIFAMILY AFFORDABLE HOUSING, NONPROFITS, AND FRONTLINE COMMUNITIES. SHE CHAMPION AT GRID'S EQUITY, DIVERSITY, AND INCLUSION AND WOMEN IN SOLAR INITIATIVES ADVOCATING FOR REPRESENTATION AND JUSTICE IN THE CLEAN ENERGY

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WORKFORCE. MARIE'S IMPACT EXTENDED ACROSS SECTORS CONSULTING FOR STARTUPS AND PRE-IPL COMPANIES, LEADING NONPROFIT BOARDS, ADVANCING ENVIRONMENTAL POLICY, INVENTORYING BIPOC WOMEN SEEKING SUSTAINABILITY. AS PART OF THE POLICY SQUAD THROUGH THE CLIMATE REALITY LEADERSHIP PROJECT, MARIE SHAPED LOCAL AND NATIONAL CONVERSATIONS AND ENVIRONMENTAL EQUITY AND HOLISTIC SUSTAINABILITY. MARIE WAS A FORMER B.A.R.T. -- SERVING AFRICAN-AMERICAN COMMUNITIES AND ACTIVELY CONTRIBUTE INTO SEVERAL OTHER JUSTICE FOCUSED ORGANIZATIONS. HER LEADERSHIP AND SERVICE EARNED HER SPECIAL CONGRESSIONAL RECOGNITION FOR OUTSTANDING AND INVALUABLE SERVICE TO THE COMMUNITY. MARIE WILL BE REMEMBERED NOT ONLY FOR HER GROUNDBREAKING WORK, BUT FOR HER RADIANT SPIRIT, FIERCE DETERMINATION, AND BOUNDLESS CURIOSITY. SHE IS DEEPLY MISSED. SHE WILL NEVER BE FORGOTTEN. MAY THAT SPIRIT, THAT DETERMINATION, AND CURIOSITY CONTINUE TO LIVE IN ALL OF US. [APPLAUSE] AND I THINK WE HAVE SOME SPEAKERS FOR THIS.

>> GOOD EVENING. MAYOR AND COUNCILMEMBERS. MY NAME IS THOMAS SCHILLING AND I WAS MARIE'S PARTNER IN LIFE AND SPIRIT. THANK YOU FOR HONORING HER TONIGHT. YOUR RECOGNITION MEANS SO MUCH. NOT ONLY TO THOSE WHO LOVED HER, BUT THE BROADER SUSTAINABILITY AND EQUITY COMMUNITY SHE SERVED WITH SUCH PASSION. MARIE AND I MET THROUGH A SHARED COMMITMENT TO SUSTAINABILITY. FROM THE START, IT WAS CLEAR SHE DIDN'T JUST CARE. SHE WAS COMMITTED.

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MARIE WAS A VISIONARY AND A BUILDER. SHE FOLLOWED HER CONVICTION WITH INTEGRITY AND GRACE. HER WORK BROUGHT TOGETHER CLIMATE JUSTICE, EQUITY, AND COMMUNITY. ESPECIALLY EMPOWERING WOMEN OF COLOR AND INDIGENOUS PEOPLE. SHE LOVED BERKELEY AND LISTENED DEEPLY. SHE BELIEVED IN THE FUTURE THAT WAS JUST, INCLUSIVE, AND SUSTAINABLE. AND SHE DEDICATED HER LIFE TO MAKE THAT REAL. ONE OF HER FINAL PROJECTS FOCUSED ON HOME ELECTRIFICATION IN CALIFORNIA, A POWERFUL AND PRACTICAL STEP COMMUNITIES CAN TAKE TO FIGHT CLIMATE CHANGE. SHE ALSO HELPED ENVISION A LOCAL SUSTAINABILITY SPEAKER SERIES HERE IN BERKELEY TO BUILD CONNECTION AND INSPIRE ACTION. MARIE LIVED WITH REMARKABLE RESILIENCE AND PRESENCE. SHE WAS ONE OF THE MOST THOUGHTFUL AND COURAGEOUS PEOPLE I'VE EVER KNOWN. SHE BROUGHT CARE AND BEAUTY INTO EVERYTHING SHE DID. MARIE HAD A GIFT FOR DEEP LISTENING. TO MAKE PEOPLE FEEL SEEN AND EMPOWERED. THAT'S HOW SHE BUILT TRUST. THAT'S HOW SHE BUILT COMMUNITY. I FEEL DEEP SORROW THAT SHE CAN'T CONTINUE THE WORK SHE BEGAN. BUT I AND MANY OTHERS CARRY HER VISION FORWARD. TO HONOR MARIE IS TO LIFT HER VALUES SHE EMBODIED, COURAGE, CARE, JUSTICE, AND SUSTAINABILITY. LET US COMMIT TO THOSE VALUES AND KEEP BUILDING THE FUTURE SHE BELIEVED IN. LET US HONOR SPIRIT LIVES ON. THANK YOU, AND THANK YOU, CANCEL MEMBER TREGUB. [APPLAUSE]

>> MAYOR A. ISHII: THANK YOU VERY MUCH. I THINK YOU'VE GOT

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ANOTHER ADJOURNMENT.

>> I. TREGUB: YEAH. THANK YOU. I WOULD JUST LIKE TO ASK EVERYONE TO STAY FOR PHOTOS AFTER. WE'RE GOING TO KEEP GOING THROUGH THESE. GEORGE LEITMANN. IS THE NEXT ADJOURNMENT IN MEMORY. TODAY, WE HONOR THE EXTRAORDINARY LIFE OF PROFESSOR DR. GEORGE LEITMANN, A DISTINGUISHED MEMBER OF THE BERKELEY COMMUNITY AND DEVELOP -- A BELOVED EDUCATOR WHO PASSED AWAY JUST SHY OF HIS 100TH BIRTHDAY. GEORGE' ATTORNEY WAS ONE OF REMARKABLE COURAGE AND RESILIENCE. FLEEING NAZI OCCUPIED AUSTRIA IN 1940, HE CARRIED WITH HIM THE MEMORY OF A FAMILY TRAGEDY, YET FOUND PURPOSE IN SERVICE AS A US -- U.S. COMBAT ENGINEER. AT BERKELEY, HE BECAME A PILLAR OF EXCELLENCE, JOINING THE FACULTY IN 1957, HE PIONEERED THE FIELD OF OPTIMAL CONTROL AND DYNAMIC GAME THEORY. WE HAVE SOME DYNAMIC GAME THEORIES HERE SOMETIMES. ANYWAY. OFFERING FOUNDATIONAL TEXTS THAT SHAPE SPACE SLIDE, ECONOMICS, ENVIRONMENTAL SCIENCE, AND EVEN EPIDEMIOLOGY. HE SERVED IN NUMEROUS ADMINISTRATIVE ROLES. DEPARTMENT CHAIR AND THE UNIVERSITIES FIRST -- DURING THE TURBULENT 1960S. HIS ACHIEVEMENTS WERE RECOGNIZED WITH THE HIGHEST HONORS. ELECTION TO THE US NATIONAL ACADEMY OF ENGINEERING, HONORARY DOCTORATE, THE FRENCH LEGION OF HONOR, THE AUSTRIAN CROSS OF HONOR FOR SCIENCE AND ART, THE BELLMAN AND -- METALS AND OTHERS. GEORGE MADE A LASTING IMPACT NOT ONLY IN BERKELEY, BUT ON THE BROADER

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MOVEMENT FOR KNOWLEDGE, JUSTICE, AND HUMAN DIGNITY ACROSS THE WORLD. THOUGH HE HAS DEPARTED, HIS SPIRIT REMAINS WOVEN INTO THE FABRIC OF OUR CITY AND UNIVERSITY. REST IN PEACE. YOU ARE AN INSPIRATION TO OUR COMMUNITY. [APPLAUSE] AND I THINK WE HAVE MEMBERS BOTH IN PERSON AND ONLINE FOR THIS ONE.

>> MAYOR A. ISHII: SORRY, WAS SOMEONE GOING TO SPEAK?

>> [INDISCERNIBLE]

>> MAYOR A. ISHII: JOE -- WHAT'S -- OKAY.

>> HELLO?

>> YES, WE CAN HEAR YOU.

>> JOE LEITMANN: YES. HI. I DON'T KNOW IF YOU CAN SEE ME, BUT GREETINGS FROM GROUND ZERO, WASHINGTON, D.C.. TO BEGIN, I WOULD LIKE TO THANK COUNCILMEMBER TREGUB FOR SPONSORING THIS ADJOURNMENT IN HONOR OF MY FATHER, GEORGE LEITMANN. THANKS GO OUT TO FELLOW COUNCILMEMBERS, MAYOR ISHII, AND ESTEEMED PARTICIPANTS OF TODAY'S COUNCIL MEETING. IN THE AUDIENCE WE HAVE TWO GOOD FRIENDS OF MY FATHER WHO WILL FOLLOW ME WITH BRIEF REMARKS. PROFESSOR -- IN THE AUDIENCE ALSO IS MY SISTER, ELAINE PARKER, MARK ASTOR, THE INTERIM DEAN OF THE COLLEGE OF ENGINEERING, AND SANTIAGO'S WIFE, ANNA. OF COURSE, GREAT APPRECIATION TO FRIENDS AND FAMILY WHO ARE SHARING THIS TRIBUTE WITH US ONLINE. THE HOLOCAUST REFUGEE, A DECORATED SOLDIER IN WORLD WAR II, A ROCKET SCIENTIST, A MENTOR TO GENERATIONS OF

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STUDENTS, A LEADER IN THE FIELDS OF GAME THEORY AND OPTIMAL CONTROL, A LOVING HUSBAND TO HIS WIFE, NANCY, OF 70 YEARS. A WORLD TRAVELER, CONNOISSEUR OF WINES. HIS CONTRIBUTIONS TO ACADEMIA WERE MONUMENTAL, BUT HE WAS ABOVE ALL MY FATHER. SADLY, ALL OF THAT ENDED WHEN HE LEFT US ON MAY 19, JUST DAYS SHORT OF HIS 100TH BIRTHDAY. THIS EVENING, I WOULD BRIEFLY LIKE TO HIGHLIGHT A LESS KNOWN DIMENSION OF HIS MULTIFACETED LIFE. MY FATHER'S ROLE AS PART OF THE BERKELEY COMMUNITY. HE AND NANCY WERE ACTIVE SUPPORTERS OF THE BERKELEY REP AURORA THEATER, VOLUNTEERING AND RAISING FUNDS OVER MANY YEARS. GEORGE CONTRIBUTED NUMEROUS PAINTINGS AND OTHER WORKS OF ART TO THE UNIVERSITY ART MUSEUM. HE SUPPORTED NANCY AND OPENING A SMALL BUSINESS IN THE COMMUNITY. A STORE CALLED MAY LAUNCH, WHICH HAD SHOPS ON SHATTUCK AND -- AVENUE. HE MONITORED AND REPORTED ON INCIDENTS OF POLICE BRUTALITY AND STUDENT UNREST IN AND AROUND THE UNIVERSITY. AS A CITIZEN, HE WAS POLITICALLY AND CULTURALLY ACTIVE. I REMEMBER HIM TAKING US TO OUR FIRST ANTI-VIETNAM WAR DEMONSTRATION IN 1965 AS WELL AS TO A JEFFERSON AIRPLANE CONCERT ON THE FACULTY OF GLADE. GEORGE WAS ALSO A BELIEVER IN PUBLIC EDUCATION. THESE AND OTHER EXAMPLES OF HIS CONTRIBUTIONS TO BERKELEY IMPARTED IN ME A SENSE OF CIVIC RESPONSIBILITY. I WORKED IN THE CITY OF BERKELEY'S LOW INCOME ENERGY ASSISTANCE PROGRAM BEFORE JOINING THE PEACE CORPS. I ENTERED WITH OAKLEY

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CITY MANAGER WHILE DOING A MASTER'S DEGREE, AND I COMPLETED A DOCTORATE IN CITY AND REGIONAL PLANNING AT CAL. WE DO NOT MOURN THE LOSS OF HIS PRESENCE. WE CELEBRATE THE LEGACY HE LIVES -- LEAVES BEHIND. HIS SPIRIT LIVES ON IN THE KNOWLEDGE HE PRODUCED AND THE FAMILY HE SO DEARLY LOVED. HE SET AN EXAMPLE FOR ALL OF US IN BRILLIANCE, HUMILITY, AND WARMTH. DAD, THANK YOU FOR EVERYTHING. FOR THE LESSONS, THE LAUGHTER, THE LOVE. YOU WILL ALWAYS BE WITH US, GUIDING US FORWARD, REMINDING US TO SEEK KNOWLEDGE, TO EMBRACE LIFE FULLY, AND TO HOLD ONTO THE BONDS THAT MAKE US -- REST IN PEACE KNOWING THAT YOUR WORK, YOUR WISDOM, AND YOUR LOVE WILL NEVER BE FORGOTTEN. AND NOW, OVER TO PROFESSOR SHANKAR. [APPLAUSE]

>> THANK YOU VERY MUCH TO THE COUNCIL AND THE MAYOR FOR RECOGNIZING TRULY A GIANT. GEORGE LEITMANN WAS MY COLLEAGUE. WHEN I WAS DEAN, HE WAS MY PARTNER IN INTERNATIONAL PARTNERSHIPS, AND I'M GOING TO TOUCH ON THAT. BUT HE WAS ALSO IN THE SAME RESEARCH FIELD AS ME, AND I CAN ATTEST TO HOW THE WORK HE BEGAN REALLY RIGHT AFTER HE CAME BACK FROM THE NUREMBERG TRIALS REALLY CAME TO BE THE THEORY OF GAMES AND OPTIMUM CONTROL YOU MENTIONED. HE IS -- IT'S REALLY STILL THE MAINSTAY OF A LOT OF THE RESEARCH GOING ON IN MY LAB AND ACROSS THE WORLD. IT'S A LEGACY OF WHO ACTUALLY CAME INTO PRINCETON. I THINK WE OWE GEORGE THE SCHOLARSHIP GO BUT THE OTHER THING THAT HE BROUGHT

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EVEN THOUGH HE HAD HAD THIS TRAUMATIC EXPERIENCE OF FLEEING AUSTRIA, FLEEING NAZI PERSECUTION IN AUSTRIA, HE BROUGHT A LOVE OF BRINGING THE WORLD IN BERKELEY. NONE OF HIS EXPERIENCES BITTERED HIM TOWARDS PARTNERSHIPS IN GERMANY AND FRANCE AND IT'S NOT A SURPRISE THAT HE WAS RECOGNIZED AND THE FRENCH PRESIDENT WAS ACTUALLY ON HIS WAY TO COME GIVE HIM THIS LEGION OF HONOR, BUT SOMETHING DETAINED HIM SO THE COUNCIL INSTEAD CAME AND SENT AN HONOR GUARD TO THE BERKELEY FACULTY FRENCH OFFICERS TO DO THIS. BUT HE -- AND I'LL JUST SAY ONE LITTLE STORY. YOU KNOW IT'S A SERIOUS THING, BUT HE BROUGHT A GROUP OF ALL DIRECTORS IN MAJOR GERMANY AND -- ONE TIME AND IT WAS LED BY THE DIRECTOR OF THE UNIVERSITY OF AACHEN, THE HEAD OF THE HOLY ROMAN EMPIRE. GEORGE INTRODUCED HIM AS THE SECOND MOST POWERFUL MAN IN AACHEN. HE WAS -- THE LAST PIECE -- A LOT OF THIS HAS BEEN SAID BY JOE ALREADY, BUT YOU KNOW, HIS LOVE OF WINE, THE GOOD LIFE, AND SHARING THAT ART WITH EVERYBODY ELSE WAS TRULY EXEMPLARY. WITH THE UNIVERSITY, WITH COMMUNITY. AND I WILL CONCLUDE BY SAYING THAT AT THIS TIME NOW WHEN AMERICAN EXCEPTIONALISM IS REALLY IN THE BALANCE, I FEEL THAT GEORGE EXEMPLIFIED AMERICAN EXCEPTIONALISM AT ITS BEST. AND YOU CAN SEE IT IN WHAT HIS CHILDREN DO, YOU KNOW, IN THE PEACE CORPS AND WORLD BANK, ALL THE THINGS THAT HE DID. SO I THINK WE WILL MISS HIM TREMENDOUSLY, BUT AS WAS SAID, HE REPRESENTS A LOT OF WHAT WAS

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GREAT ABOUT BERKELEY AND THE UNIVERSITY TOGETHER. SO THANK YOU VERY MUCH. [APPLAUSE]

>> MAYOR A. ISHII: THANK YOU. YOU HAVE ANOTHER ADJOURNMENT, A FINAL ADJOURNMENT IN MEMORY?

>> I. TREGUB: YEAH. ONE -- OH. MAYBE AFTER THIS.

>> GOOD EVENING, EVERYONE. I AM SANTIAGO CHEN. IT'S A GREAT PRIVILEGE AND HONOR TO SPEAK TO ALL OF YOU AT THE BERKELEY CITY COUNCIL. YEAH. MAY I SAY -- WELL, I STARTED AT UC BERKELEY IN THE 1970S. MY WIFE AND I WERE BERKELEY CITIZENS. COULD I SAY ONCE A BERKELEY CITIZEN, ALWAYS A BERKELEY CITIZEN. HERE, I NEVER THOUGHT I WOULD ONE DAY HAVE AN OPPORTUNITY TO SPEAK TO THE COUNCIL. BUT HERE I AM TO TELL YOU MY RESPECT OF PROFESSOR LEITMANN. I TRAVELED FROM BUFFALO, NEW YORK TO GERMANY TO CONTINUE PURSUING MY GRADUATE STUDY. HERE, I AM DESTINED TO MEET PROFESSOR GEORGE LEITMANN AND SUBSEQUENTLY BUILD AN EXTRAORDINARY RELATIONSHIP ACROSS 54 YEARS. IN 1971, I STARTED TAKING GEORGE'S COURSES. I REMEMBER HIS PRISTINE LECTURING, BOOMING VOICE, AND BIG SMILES. HIS WARM PERSONALITY ATTRACTED ME. I PASSED PHD QUALIFYING EXAM IN 1972. I ASKED GRACEFULLY AND HE GRACEFULLY ACCEPTED ME AS HIS PHD STUDENT. IN THE FOLLOWING YEARS THROUGH MY PHD PROGRAM, HE AND HIS WIFE, NANCY, TREATED US AND HIS OTHER PHD STUDENTS AS FAMILY. YEAR AFTER YEAR THEY INVITED US TO THEIR MAGNIFICENT HOME IN BERKELEY HILLS TO

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CELEBRATE HOLIDAYS WITH THEM AND THEIR FAMILIES. AND THEIR FRIENDS. THEY ALSO -- WE ALSO MET JOSEPH AND ELAINE, WHO WERE TEENAGERS THEN. AND EVERY YEAR BEFORE WE SEND OUT CHRISTMAS, NEW YEAR GREETING CARDS, THE FIRST ONE WE RECEIVED WAS FROM GEORGE AND NANCY WITH NANCY'S ELEGANT CALLIGRAPHY. THIS TRADITION CONTINUED FOR DECADES. I WORKED IN INDUSTRY BROADEN PURSUIT IN ACADEMIA CAREER. SO I DIDN'T HAVE MUCH CONTACT WITH GEORGE AND NANCY. DECADES LATER, OUR RELATIONSHIP SEEMED TO THIN OUT AND FADE. BUT THAT IS MYSTERIOUSLY. BY END OF 2019, WE REKINDLED OUR RELATIONSHIP WITH GEORGE AND NANCY. WE MAILED HIM A PERSONALIZED NEW YORK GREETING CARD WITH FAMILY PHOTOS TO WISH THEM HAPPY NEW YEAR. UNEXPECTEDLY, WE RECEIVED A HANDWRITTEN LETTER FROM GEORGE TELLING US THEY HAD MOVED TO BERKELEY BELMONT VILLAGE AND INVITED US FOR DINNER. WE WERE SO MOVED BY HIS AND NANCY'S KINDNESS AND EXCITED LOOKING FORWARD TO MEETING UP WITH THEM. I REALIZE I DIDN'T REALLY KNOW GEORGE THAT MUCH BESIDES HIS LECTURING, THE SOCIALIZATION DECADES AGO. AND KNOWING THAT HE HAD FOUGHT IN THE SECOND WORLD WAR AND ACTIVELY FACILITATING INTERNATIONAL RELATIONSHIP BETWEEN UC BERKELEY AND DIVERSITIES IN OTHER CONTINENTS, I THOUGHT I PREPARED TO DO SOME HOMEWORK BEFORE MEETING WITH THEM. THANKS TO GOOGLE SEARCH, I FOUND AND READ MANY ARTICLES ABOUT HIM AND WATCHED THE UC DOCUMENTARY VIDEO OF HIS RECEIVING FRENCH LEGION OF HONOR. AFTER THE JOYFUL

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INITIAL GATHERING, GEORGE AND NANCY GENEROUSLY CONTINUED INVITING US FOR DINNER AND THEIR INVITATION EXTENDED TO OUR DAUGHTER AND FAMILY. WE BECOME VERY CLOSE. ONE DAY IN 2020, GEORGE EMAILED ME ASKING IF HE AND NANCY COULD BE OUR. [INDISCERNIBLE] GRANDPARENTS. WHAT AN HONOR AND PRIVILEGE THAT WAS. DURING THE SUBSEQUENT COVID-19 PERIOD, I HAD SUCH A PRIVILEGE TO PROFOUNDLY LEARN MORE ABOUT GEORGE THROUGH A BIT OF INVOLVEMENT ABOUT THE TRANSCRIPT OF UC'S ORAL HISTORY INTERVIEW. DIGITIZING HUNDREDS OF VIDEOS IN GEORGE AND NANCY'S FAMILY ALBUMS AND PRODUCING ALMOST 2 HOURS LONG SLIDESHOW VIDEO SPANNING GEORGE'S ENTIRE LIFE UP TO 2023 TITLED " GEORGE LEITMANN: FAMILY, FRIENDS, AND EVENTS." FACILITATING INPUT FROM DOZENS OF GEORGE'S INTERNATIONAL FRIENDS WHO HE MAINTAINED LIFELONG CONTACT TO CREATE AN IMPORTANT SECTION IN ABOUT VIDEO. HELPED HIM PREPARE AND POSTED HIS WIKIPEDIA ARTICLE, FACILITATING INTERVIEWS OF GERMAN REPORTER AND GERMAN UNIVERSITY PROFESSOR AND BAY AREA DURING THEIR VISITS.

>> MAYOR A. ISHII: I'M SO SORRY, I JUST WANT TO CHECK IN BECAUSE WE DO HAVE QUITE A LONG MEETING AHEAD OF US. ARE YOU SORT OF --

>> I'M ABOUT DONE.

>> MAYOR A. ISHII: OKAY. THANK YOU.

>> AMONG GEORGE'S LIFELONG ACHIEVEMENTS, HIS INVALUABLE CONTRIBUTIONS IN RESEARCH AND PUSH THE ENVELOPE OF OPTIMUM

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CONTROL SERIES ETC. AND -- SIZE SUBJECTS RESULTING IN 340+ APPLICATIONS, FIVE BOOKS, AND SOME MULTIPLE TRANSLATED SERVING IN OVER 37 PROFESSIONAL CAPACITIES RECEIVING OVER 36. [INDISCERNIBLE] AWARDS ATTRACTING SO MANY AMERICAN AND INTERNATIONAL SCIENTISTS TO FONDLY COLLABORATE WITH HIM AND -- IN NUMEROUS DOCTORAL STUDENTS. GEORGE AND NANCY WILL ALWAYS BE OUR FAMILY'S GREAT FUTURE OF LIFE, SETTING EXAMPLES FOR HIS CHILDREN, HOW TO LIVE OUR LIVES, AND TREAT PEOPLE. BE ALWAYS OPEN-MINDED, KIND, GENEROUS, FOR JUSTICE, CARING FOR PEOPLE, TREATING THEM EQUAL. WE -- THEY BROADLY ELEVATED OUR PROSPECT OF LIFE AND THEY INTRODUCED US TO THEIR SO-CALLED GREAT FRIENDS, AS GEORGE ALWAYS LIKED TO INTRODUCE GOOD PEOPLE TO GOOD PEOPLE. AND I THANK GEORGE SO MUCH. MISS HIM DEARLY. BUT HE IS ALWAYS WITH US.

>> MAYOR A. ISHII: THANK YOU. [APPLAUSE]

>> I. TREGUB: THANK YOU. THE FINAL ADJOURNMENT PROCLAMATION TODAY IS IN MEMORY OF RITA MARAN. SORRY, RITA MARAN. TODAY, WE HONOR THE LIFE AND LEGACY OF DR. RITA MARAN, A DISTINGUISHED HUMAN RIGHTS SCHOLAR, EDUCATOR, AND PUBLIC SERVANT WHOSE WORK LEFT A LASTING IMPACT ON BERKELEY AND THE GLOBAL COMMUNITY. BORN IN MANHATTAN AND SHAPED BY THE EVENTS OF WORLD WAR II, DR. MARAN'S UNDERSTANDING OF JUSTICE -- HER ACTIVISM BEGAN IN EUROPE WHEN SHE WORKED WITH LOWER RESISTORS AND ORGANIZATIONS. AFTER

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MOVING TO BERKELEY, SHE EARNED A PHD IN INTERNATIONAL HUMAN RIGHTS LAW AND WENT ON TO TEACH AT BOTH UC BERKELEY AND THE UNIVERSITY OF SAN FRANCISCO. DR. MARAN WAS A FOUNDING BOARD MEMBER OF HUMAN RIGHTS ADVOCATES, AND NGO CREDITED TO THE UNITED NATIONS. SHE BECAME A LEADING VOICE AGAINST TORTURE, SPEAKING ACROSS EUROPE, AFRICA, AND THE U,S,. HER BOOK, TORTURE --

>> JOE LEITMANN: HOWDY. HEY. COULD YOU HEAR ME? OH.

>> I. TREGUB: HER BOOK, "TORTURE THE ROLE OF ARCHAEOLOGY IN FRENCH WAR" IS A CONTRIBUTION TO HUMAN RIGHTS LITERATURE. SHE WAS A PIECE MISSION OR FOR THE CITY OF BERKELEY. I HAVE THE GREAT PRIVILEGE OF BEING ABLE TO OVERLAP AND SERVE ALONGSIDE OF HER. SHE WAS A SENIOR FULBRIGHT FELLOW TEACHING IN INDONESIA AND WORKED WITH BOTH THE STATE DEPARTMENT AND ORGANIZATION FOR SECURITY AND COOPERATION IN EUROPE IN POST-CONFLICT BOSNIA AND SHE ALSO HELPED ESTABLISH A HUMAN RIGHTS ORGANIZATION THAT CONTINUES TO OPERATE TODAY. DR. MARAN WILL BE PROFOUNDLY MISSED. HER CONTRIBUTIONS TO HUMAN RIGHTS, HER DEDICATION TO PEACE, AND HER MENTORSHIP OF GENERATIONS OF STUDENTS AND ACTIVISTS. AT ONE POINT, I, TOO, WAS A STUDENT WHO HAD THE PRIVILEGE OF BEING MENTORED BY HER. THAT WILL CONTINUE TO SHAPE BERKELEY AND THE WORLD. MAY HER MEMORY BE A BLESSING AND AN INSPIRATION. [APPLAUSE] I THINK WE HAVE SPEAKERS IN THE ROOM AND ONLINE FOR TWO MINUTES PER SPEAKER. UP TO.

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>> MAYOR A. ISHII: SORRY, CAN I ASK THAT WE KEEP IT TO ONE MINUTE?

>> I. TREGUB: ONE MINUTE.

>> MAYOR A. ISHII: BECAUSE I THINK WE HAVE QUITE A LOT TO COVER ON OUR AGENDA. THANK YOU. APOLOGIES.

>> THANK YOU, META-MAYOR, AND COUNCILMEMBERS, AND ESPECIALLY COUNCILMEMBER TREGUB. YOU ALREADY MENTIONED SO MANY THINGS THAT WERE ON MY NOTES, SO I CAN KEEP IT SHORTER. YOU KNOW, IT'S SOMEWHAT OF A LUCK OF THE DRAW HE WAS A RESIDENT IN THIS CITY. IT'S A CRAPSHOOT, AND YET YOU HAVE SOME FANTASTIC PEOPLE HERE. RITA WAS ATTRACTED TO THE CITY FOR SO MANY REASONS THAT ARE RELATED TO WHAT COUNCILMEMBER TREGUB SAID. SHE WAS A CHAMPION OF HUMAN RIGHTS. SHE WAS AN IDEALISTIC PRAGMATIST WHO GREW UP, AS YOU SAID, WITH THE BACKGROUND IN THE WAR, HER VOLUNTEERISM TO HELP PEOPLE IN NEED, TO RECOGNIZE PEOPLE WERE STRUGGLING. SHE WAS A TRUE HUMANIST. SHE WAS BRILLIANT AND ANALYTICAL, AND TO DEEPEN THAT, AS COUNCILMEMBER TREGUB SAID, SHE WENT TO GET HER BACHELOR'S DEGREE IN THREE YEARS, SHE HAD HER MASTER'S DEGREE. SHE WAS WORKING AT THE LAW SCHOOL HERE IN BERKELEY AT THE TIME SHE DID HER PHD. SHE WORKED WITH AMNESTY INTERNATIONAL. SHE HAS A TREMENDOUS BACKGROUND. AS HE SAID ALREADY, SHE WAS A SCHOLAR AND AUTHOR. SHE WAS A TEACHER TO MANY PEOPLE IN MANY SCHOOLS AND AROUND THE WORLD. SHE HAD THESE NETWORKS AND THERE WERE MANY,

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MANY PEOPLE WHO KNEW HER AND WHO WERE INTERESTED IN HUMAN RIGHTS AND TORTURE AND WOMEN'S RIGHTS. SHE WENT TO THEM TO SPREAD HER MESSAGE AND HER KNOWLEDGE. SO SHE WAS TRULY OUTSTANDING IN THAT WAY. SHE ADDRESSED THE CITY COUNCIL VERY FREQUENTLY AT A MICROPHONE LIKE THIS. SHE WAS AN ACTIVIST, SHE LED MANY, MANY RESOLUTIONS AND DEMONSTRATIONS AROUND THIS CITY. AND THEN SHE JOYED U.N.A.. SHE'S BEEN IN BERKELEY FOR 40 YEARS AND WE HAVE A NUMBER OF MEMBERS FROM OUR U.N.A. ASSOCIATION WHERE SHE WAS A LONGTIME MEMBER OF THE PRESIDENT LOCAL CHAPTER. SHE WAS THE FIRST PERSON IN THE UNITED NATIONS ASSOCIATION, CURRENTLY 200 CHAPTERS, TO WIN THE AWARD AS THE OUTSTANDING ADVOCATE TO TRY TO LOBBY FOR THESE INTERESTS IN HUMAN RIGHTS WITH MEMBERS OF CONGRESS. AS YOU SAID, SHE WAS A MENTOR. SHEET INFLUENCED EVERY GENERATION. SHE WILL LONG BE READ MEMBER TO. SHE WAS A TREASURE TO THIS CITY. IT WAS A CRAPSHOOT, AND MY GOODNESS SHE FOUND A WONDERFUL HOME HERE. WE CONTRIBUTE TO HER WITH HER LASTING MEMORY. THANK YOU SO MUCH. [APPLAUSE]

>> I. TREGUB: DO WE HAVE -- WILLIAMS ON ZOOM?

>> SANDRA W, YOU SHOULD BE ABLE TO UNMUTE.

>> I. TREGUB: MAYBE WE CAN. [INDISCERNIBLE] LATER.

>> SANDRA, IT SHOWS YOUR UNMUTED. YOU SHOULD BE ABLE TO START YOUR REMARKS.

>> YES, HELLO. MY NAME IS SANDRA WILLIAMS AND I AM WITH THE

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UNITED NATIONS ASSOCIATION EAST BAY CHAPTER. I WANT TO CONCUR WITH EVERYTHING THAT HERB SAID ABOUT RITA. THERE ARE OTHERS IN THE AUDIENCE WHO ARE PART OF OUR CHAPTER. IF YOU CAN JUST QUICKLY STAND SO THAT YOU CAN SEE THEM. [APPLAUSE]

>> THANK YOU. WE STAND IN SOLIDARITY AND SUPPORT OF RITA'S LEGACY, AND AS WELL AS A RITA WAS AN OUTSTANDING HUMAN BEING WHO FOUGHT FOR HUMAN RIGHTS FOR EVERYONE ALL OVER THE WORLD. THANK YOU. [APPLAUSE]

>> MAYOR A. ISHII: THANK YOU. YOU ALL SO MUCH, AND I APOLOGIZE. I HATE TO RUSH FOLKS. WE JUST -- WE HAVE TO MOVE ON WITH OUR MEETING, BUT I REALLY WANT TO SAY JUST THANK YOU ALL FOR BEING HERE AND MAY WE ALL LIVE FULL AND AMAZING LIVES LIKE THESE PEOPLE DID. IT'S VERY IMPRESSIVE. WE ARE SO LUCKY IN THE CITY OF BERKELEY THAT WE HAVE SO MANY WONDERFUL PEOPLE HERE. CITY MANAGER, YOU HAVE ANY COMMENTS?

>> CITY MANAGER: ONE COMMENT, META-MAYOR, WHICH IS THAT WE NEED TO MOVE ITEM 11, WHICH IS THE SURVEILLANCE TECHNOLOGY ORDINANCE SUBMISSION FOR THE BERKELEY JAIL FROM CONSENT TO ACTION. PURSUANT TO PMC 2099. IT'S A LITTLE BIT OF A GRAY AREA, BUT I THINK OUT OF AN ABUNDANCE OF CAUTION, IT WOULD BE GOOD TO DO IT THAT WAY. IF THAT'S POSSIBLE.

>> MAYOR A. ISHII: TO THE ACTION CALENDAR?

>> CITY MANAGER: YES.

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>> MAYOR A. ISHII: I THINK THAT'S POSSIBLE. OKAY. I THINK OUR CITY AUDITOR -- YES, HERE YOU ARE. OF THE CITY AUDITOR HAS SOME COMMENTS AND I THINK A PRESENTATION FOR US.

>> CITY AUDITOR: THANK YOU SO MUCH. GOOD EVENING, EVERYONE. AND I'M HERE WITH AUDIT MANAGER CAITLIN PALMER. TONIGHT, I JUST WANTED TO PRESENT OUR AUDIT PLAN FOR FISCAL YEAR 2026. OF THIS PLAN OUTLINES THE KEY AREAS OF FOCUS FOR MY OFFICE FOR THE COMING YEAR INCLUDING CONTINUING ONGOING WORK, NEW INITIATIVES, AND CONTINUED WORK TO ENSURE TRANSPARENCY, EFFECTIVE GOVERNANCE. THIS EVENING I WILL COVER OUR AUDIT SELECTION PROCESS, ACCOMPLISHMENTS FROM THE PREVIOUS YEAR, AND PLANNED AUDITS AND ENGAGEMENTS FOR THIS YEAR AS WELL AS AN UPDATE ON THE WHISTLEBLOWER PROGRAM. TO DEVELOP OUR AUDIT PLAN, WE GATHER STICK HOLDER INPUT TO PRIORITIZE AUDITS THAT ADDRESS BERKELEY'S MOST CRITICAL NEEDS, ESPECIALLY DURING THIS DIFFICULT BUDGET TIME. WE GATHER AUDIT IDEAS FROM COMMUNITY MEMBERS, ELECTED OFFICIAL DEPARTMENT STAFF, CITY MANAGEMENT. WE ALSO ASSESS PAST AUDITS AND BERKELEY SPECIFIC RISKS. WE ANALYZE FINDINGS FROM OTHER GOVERNMENT AUDITS TO ANTICIPATE EMERGING ISSUES, AND WHEN PRIORITIZING AUDITS, WE TAKE INTO CONSIDERATION MANY FACTORS INCLUDING RISKS AND PERCEPTION OF RISK TO THE CITY IDENTIFIED BY MANAGEMENT, CITY COUNCIL, AND COMMUNITY FEEDBACK, ECONOMIC FACTORS LIKE POTENTIAL FINANCIAL IMPACT, ORGANIZATIONAL CHANGES

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SUCH AS MANAGEMENT OR INFORMATIONAL SYSTEMS, AND THE LENGTH OF TIME SINCE THE LAST AUDIT WAS COMPLETED IN THE AREA. WE ALSO CONSIDER STAFF CAPACITY. WE ARE A SMALL OFFICE AND HAVE LIMITED RESOURCES TO CONDUCT AUDITS. THIS PLAN BUILDS ON THE COMPLIMENTS FROM THE PREVIOUS YEAR. IN FISCAL YEAR 2024, WE RELEASED AN AUDIT OF RESTAURANT INSPECTIONS, AND SINCE THE RELEASE OF THAT REPORT, THE DIVISION HAS STAFFED UP THE FOOD SAFETY INSPECTION PROGRAM BY FILLING VACANT EXPECT HER AND SUPERVISOR ROLES AND EXPECT HIGH AND VERY HIGH-RISK FACILITIES THAT HAVE NOT BEEN INSPECTED IN 2023. WE ALSO RELEASED A FOLLOW-UP REPORT ON OUR 2009 LEASES AUDIT. WE OPENED EIGHT RECOMMENDATIONS FROM THIS AUDIT INCLUDING CLARIFYING ROLES AND RESPONSIBILTIES FOR LEASE OVERSIGHT, UPDATING COMPLETE CENTRAL LIST OF LEASES AND LICENSES. WE ALSO CONTINUE THE LIMITATION OF OUR NEW WHISTLEBLOWER PROGRAM, LAUNCHING THE PROGRAM INTERNALLY AND EDUCATING STAFF ON HOW TO IDENTIFY AND REPORT CONCERNS. WE ALSO FOLLOW UP ON WRECK OF ADDITIONS FROM PREVIOUS AUDITS TO ENSURE DEPARTMENTS STAY ACCOUNTABLE FOR THEIR CORRECTIVE ACTION PLANS. AS OF JULY 1, 2025, THERE ARE 65 OPEN RECOMMENDATIONS FROM NINE AUDITS ACROSS FIVE DEPARTMENTS AS WELL AS THE LIBRARY AND MAYOR AND COUNCIL. OF THOSE 65, 41 RECOMMENDATIONS HAVE ALREADY BEEN PARTLY IMPLEMENTED. IN FISCAL YEAR 2026, WE PLAN TO INITIATE AUDITS OR CONTINUE WORK IN THE FOLLOWING AREAS. HOMELESSNESS. WE

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WILL PRESENT TO COUNCIL ON JULY 29 CONTRACTS, WHICH IS CURRENTLY IN PROCESS. RENT STABILIZATION BOARD, FISCAL CONDITION. IN THIS AREA, WE ARE OPEN TO COUNCIL, STAFF, AND COMMUNITY IDEAS ON AREAS WHERE THE CITY CAN ENHANCE REVENUE OR DECREASE COST AS IT ADDRESSES AS THE CITY HAS A BIG CHALLENGE IN ADDRESSING THIS DEFICIT, AS YOU ALL ARE AWARE, AND HOW TO CONDUCT OPERATIONS MOST EFFICIENTLY AND EFFECTIVELY DURING THIS CHALLENGING ECONOMIC TIME. WILL ALSO BE DOING FOLLOW-UP OR RECOMMENDATIONS FROM PREVIOUS AUDITS AND OTHER SHORT-TERM PROJECTS AS NEEDED TO DELIVER TIMELY AND RELEVANT INFORMATION AND ANALYSIS FROM THE COMMUNITY. AND THE WHISTLEBLOWER PROGRAM. OF COURSE, IT'S AUDIT MAY CHANGE BASED ON EVOLVING RISK AND STAFFING NEEDS. AND AS WE CONDUCT OUR AUDIT PLAN AND CONDUCT THESE AUDITS, COMMUNITY MEMBER'S ARE ENCOURAGED TO CONTACT OUR OFFICE WITH AUDIT IDEAS, WHICH WE CONSIDERED. WE WANT TO THANK YOU AGAIN FOR THE OPPORTUNITY TO SHARE OUR AUDIT PLAN FOR FISCAL YEAR 2026. I WANT TO THANK DEPARTMENTS, THE CITY MANAGER, WANT TO THANK COUNCIL FOR SUPPORTING OUR MISSION TO PROMOTE TRANSPARENCY AND ACCOUNTABILITY IN OUR AUDITS. AND THEN FINALLY, I WANTED TO JUST TALK A LITTLE BIT ABOUT ANOTHER ITEM ON THE AGENDA TONIGHT. IT IS AN INFORMATION ITEM FROM THE ENVIRONMENTAL DIVISION FROM HEALTH HOUSING AND COMMUNITY SERVICES, HHCS, WHICH PROVIDES STEPS -- WE ISSUED THIS AUDIT ABOUT A YEAR AGO. IN JULY 2024.

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SINCE THEN, ENVIRONMENTAL -- THE ENVIRONMENTAL HEALTH DIVISION HAS MADE SOME GOOD PROGRESS. THEY FILLED TWO VACANCIES. THEY ALSO INSPECT IT HIGH AND VERY HIGH-RISK FACILITIES THAT HAVE NOT BEEN INSPECTED IN 2023. THE DIVISION HAS ALSO DEVELOPED NEW POLICIES THAT INCLUDE REVISED INSPECTION TARGETS FOR PERIODS OF SHORT STAFFING AND A BASELINE OF ONE INSPECTION PER YEAR. THESE POLICIES HELP TO ENSURE THEY WILL SUSTAIN AND IMPROVE COVERAGE THROUGHOUT THE CITY. UNFORTUNATELY, THE DIVISION HAS ALSO REMOVED THE INSPECTIONS DATA FROM THE ONLINE OPEN DATA PORTAL. WE THEREFORE CHANGED THE RECOMMENDATION STATUS FROM STARTED TO NOT STARTED. WAITING UNTIL A NEW INSPECTION SYSTEM IS IMPLEMENTED TO MAKE THIS INFORMATION AVAILABLE MEANS THE PUBLIC DOES NOT HAVE EASY ACCESS TO INSPECTION RESULTS A YEAR AFTER AN AUDIT WAS RELEASED. BERKELEY, UNLIKE ALAMEDA COUNTY, DOES NOT HAVE A PLACARD OR GRADING SYSTEM EASILY INFORM THE PUBLIC WHETHER THE RESTAURANT HAS BEEN INSPECTED. THE DATA FROM THE OPEN DATA PORTAL THAT WAS REMOVED MONTHS AGO WAS THE ONLY INFORMATION ON THE CITY'S WEBSITE DURING OUR AUDIT THAT CONTAINED INSPECTIONS INFORMATION BY RESTAURANT OR FOOD FACILITY. REMOVING THE DATA DECREASES TRANSPARENCY AND THE DIVISION DID NOT PROVIDE ANY INDICATION DURING THE AUDIT THAT ADDING THE REQUIRED INFORMATION WOULD NOT BE FEASIBLE. WE HOPE THAT THERE WILL BE A SOLUTION TO MAKE THIS INFORMATION

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ACCESSIBLE TO THE PUBLIC AS SOON AS POSSIBLE. THANK YOU.

>> MAYOR A. ISHII: THANK YOU, AUDITOR. THANK YOU BOTH FOR COMING. I APPRECIATE YOUR PRESENTATION. AND LET'S SEE. NEXT ON OUR AGENDA IS PUBLIC COMMENT ON NON-AGENDA MATTERS.

>> CITY CLERK: I HAVE FOUR CARDS. THREE CARDS. ONE IS A DUPLICATE. WE HAVE JORDAN H, CHERYL, AND GLENN TURNER. JORDAN H, CHERYL, AND GLENN TURNER.

>> PUBLIC SPEAKER: I SAW THAT DIRTY LOOK YOU GAVE ME.

>> CITY CLERK: CONGRATULATIONS.

>> PUBLIC SPEAKER: CITY CLERK, AS WELL AS OTHER PEOPLE. SO CHECK YOURSELF AND START MY TIME AGAIN, PLEASE. THERE SHOULD HAVE BEEN ANOTHER ADJOURNMENT IN MEMORY, AND I HOPE YOU GUYS WILL DO THAT IN THE FUTURE BECAUSE ON THE 19TH WE LOST JOANNA MACY AND SHE DESERVES AN ADJOURNMENT IN MEMORY. SHE WAS A LONGTIME BERKELEY RESIDENT AND AMAZING HUMAN. DOING THE WORK THAT RECONNECTS. SO SOMEONE SHOULD PUT IN AN ADJOURNMENT IN MEMORY FOR HER. AND TODAY CHILDREN ARE DYING OF STARVATION IN PALESTINE. CAN YOU LOOK AT ME AND AT LEAST PAY ATTENTION LIKE YOU CARE? I KNOW SOME OF YOU HAVE CHILDREN, SOME OF YOU DON'T. BUT YOU KNOW, CHILDREN ARE VERY IMPORTANT IN LIFE AND THESE CHILDREN ARE LOSING THEIR LIFE BECAUSE BERKELEY DIDN'T DO ANYTHING ABOUT A CEASE-FIRE. I BLAME YOU BECAUSE BERKELEY COULD SET THE TONE --

>> MAYOR A. ISHII: THANK YOU.

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>> PUBLIC SPEAKER: I KNOW MY TIME IS UP. I WENT TO THE CITY COUNCIL MEETING IN ALBANY. THEY GIVE PEOPLE THREE MINUTES.

>> MAYOR A. ISHII: CHERYL --

>> PUBLIC SPEAKER: DON'T CALL ME CHERYL. FORMER COUNCILMEMBER --

[MULTIPLE SPEAKERS]

>> CITY CLERK: WE HAVE GLENN TURNER AND JORDAN H. [APPLAUSE]

>> MAYOR A. ISHII: SORRY, HOLD ON. WE HAVE LOST OUR QUORUM, SO. OKAY. SORRY. GO AHEAD.

>> PUBLIC SPEAKER: THANK YOU. MY NAME IS JORDAN. I USED TO BE A BERKELEY RESIDENT. I'VE BEEN BERKELEY POLITICS MY WHOLE LIFE. A PATTERN I HAVE SEEN WITH BERKELEY CITY COUNCIL IS THAT WE'LL HAVE A CONSENT CALENDAR THAT IS JAMPACKED WITH ITEMS, AND SO THE ITEMS PEOPLE WANT TO TALK ABOUT SEPARATELY AND ONE VOTED ON SEPARATELY. AND AS IT CURRENTLY STANDS, WE NEED ONE OF YOU GUYS TO PULL THE ITEMS OFF OF CONSENT. I WANTED TO FLAG TO THE CITY OF RICHMOND, WHICH HAS AN INCREDIBLE CITY COUNCIL, A LOT OF PROGRESSIVE POLICIES, AND A LOT OF THAT HAS BEEN MADE POSSIBLE BY THE FACT THAT CONSTITUENTS ARE ABLE TO PULL THINGS FROM CONSENT. IN RICHMOND YOU ONLY NEED ONE PERSON, AND I UNDERSTAND WE'RE A BIGGER CITY, BUT I THINK MAYBE WE SHOULD CONSIDER HAVING A WAY FOR US AS CONSTITUENTS TO PULL SOMETHING OFF OF CONSENT SO WE ARE NOT FORCED TO KIND OF LIKE SIT HELPLESSLY AND WATCH 20 IMPORTANT THINGS ALL GET PASSED AT ONCE. SO MAYBE WE CAN THINK

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ABOUT IT. [APPLAUSE]

>> MAYOR A. ISHII: THANK YOU.

>> [INDISCERNIBLE] USED TO PULL IT, BUT NOT ANYMORE.

>> PUBLIC SPEAKER: MY NAME IS GLENN TURNER AND MY FATHER WAS BORN IN BERKELEY AND WENT TO SCHOOL HERE. OUR GRANDPARENTS WENT TO SCHOOL; MY PARENTS MET HERE IN BERKELEY. MY KIDS AND GRANDKIDS ARE IN SCHOOL HERE. IN A LIFETIME MANY GENERATION BERKELEY PEOPLE. I HAVE BEEN DISAPPOINTED IN THE WAY BERKELEY HAS LOST ITS SENSE OF TRANSPARENCY AND, YOU KNOW, SPEAKING OUT. BUT I WANT TO THANK JULIO WONG FOR ACTUALLY DOING SOMETHING GOOD. IN THE BERKELEY TIMES, THIS WEEK THERE'S AN ARTICLE ABOUT AUDITS REVEALS OPPORTUNITIES FOR HOMELESS RESPONSE TEAM. WELL, I TAKE THAT AS MEANING THEY FELL DOWN ON THE JOB AND THERE'S LOTS OF WORK TO DO HERE, AND I AGREE. I WAS HORRIFIED TO FIND OUT THERE'S ONLY 56 BEDS FOR, LIKE, OVER 300 HOMELESS PEOPLE. SO THEY KEEP SWEEPING PEOPLE OUT, AND THEN WHAT DO THEY DO? NOTHING.

>> MAYOR A. ISHII: SORRY, THANK YOU. THANKS FOR YOUR COMMENT. [APPLAUSE]

>> CITY CLERK: ALL RIGHT. SO NOW IT'S TIME FOR NON-AGENDA PUBLIC COMMENTS FOR PEOPLE THAT ARE PARTICIPATING REMOTELY. IF YOU WOULD LIKE TO PROVIDE NON-AGENDA PUBLIC COMMENTS, PLEASE RAISE YOUR HAND. AND WE HAVE DANIEL BROWNSON.

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>> PUBLIC SPEAKER: UM, THERE HAVE BEEN REPORTS LATELY THAT REGARDLESS OF LOCAL LAWS ABOUT IT POLICE DEPARTMENTS HAVE BEEN SHARING INFORMATION WITH I.C.E. TO ASSIST THEM WITH DEPORTATIONS. THIS IS CONCERNING BECAUSE SOME OF THOSE CITIES HAD POLICIES THAT PROHIBITED THEM FROM DOING SO AND THEY DID ANYWAY. AND I THINK THE CITY OF BERKELEY NEEDS TO CONSIDER THAT THE WHAT TO DO IF THAT HAPPENS IF IT HAPPENS HERE. THAT'S ALL.

>> MAYOR A. ISHII: THANK YOU. THANKS FOR YOUR COMMENT.

>> CITY CLERK: NO OTHER HANDS RAISED.

>> MAYOR A. ISHII: OH, OKAY. ALL RIGHT THEN. LET'S SEE. WE ARE MOVING ON TO THE CONSENT CALENDAR. ALL RIGHT. ARE THERE ANY COUNCILMEMBERS WHO HAVE COMMENTS ON CONSENT? DID YOU -- OH, OKAY. I DON'T KNOW IF OUR SYSTEM IS WORKING AGAIN, SO COUNCILMEMBER HUMBERT.

>> M. HUMBERT: THANK YOU, MADAM MAYOR. I JUST HAVE ONE COMMENT OR SET OF COMMENTS ON COUNCIL CONSENT KIND OF -- ITEM NUMBER 13, WHICH IS SENATE BILL 81. THE AUTHOR OF WHICH IS SENATOR JESSE ARREGUIN -- IN ORDER TO MAINTAIN A SECURE ENVIRONMENT ALIGNED WITH FACILITY MISSION AND COMMITMENT TO PATIENT CARE ALSO WOULD PROHIBIT INTEGRATION AND ENFORCEMENT AGENTS FROM ENTERING NONPUBLIC AREAS OF FACILITY WITHOUT A JUDICIAL WARRANT. AND ALSO PROTECT AND BAR THE DISCLOSURE OF A PERSON'S CURRENT OR PAST IMMIGRATION STATUS OR PLACE OF BIRTH FOR PURPOSES RELATED TO

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IMMIGRATION ENFORCEMENT, AND I THINK THIS IS A CRITICAL BILL AND I JUST WANT TO BRING ATTENTION TO THE FACT THAT THIS ITEM IS ON CONSENT TONIGHT. THANK YOU.

>> MAYOR A. ISHII: THANK YOU, COUNCILMEMBER. ARE THERE OTHER COMMENTS? COUNCILMEMBER KESARWANI.

>> R. KESARWANI: THANK YOU VERY MUCH, MADAM MAYOR. I WANTED TO REQUEST THAT WE -- FIRST, I WANT TO THANK THE AUDITOR FOR HER UPDATE ON ALL OF THE AUDITS. FOR THE RESTAURANT INSPECTION AUDIT STATUS REPORT THAT WE HAVE FROM THE CITY MANAGER, I WANT TO REQUEST THAT WE MOVE THAT TO ACTION BECAUSE I DID HAVE A FEW QUESTIONS FOR OUR HHCS DIRECTOR ABOUT THE STATUS THERE. I DO UNDERSTAND I THINK TWO OTHERS ALSO NEED TO MAKE THAT REQUEST FOR IT TO BE EFFECTUATED. SO. [INDISCERNIBLE]

>> MAYOR A. ISHII: LOOKS LIKE TWO OTHER FOLKS, THREE OTHER -- MULTIPLE OTHER FOLKS WE JOIN YOU IN THAT.

>> R. KESARWANI: SO WHAT HAPPENED. THANK YOU VERY MUCH.

>> MAYOR A. ISHII: ANYTHING ELSE YOU WANTED TO SHARE?

>> R. KESARWANI: NO, THAT'S ALL. THANK YOU.

>> MAYOR A. ISHII: OKAY. AND THEN HENSEL NEVER TREGUB?

>> I. TREGUB: I WAS GOING TO SUPPORT THAT REQUEST, BUT ALSO WANT TO THANK THE MAYOR AND MY COLLEAGUES, COUNCILMEMBER HUMBERT AND LUNAPARRA FOR COSPONSORING THE RESOLUTION IN SUPPORT OF CALIFORNIA SENATE BILL 81. THANK YOU.

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>> MAYOR A. ISHII: THANK YOU. ANY OF THE COUNCIL NUMBERS ONLINE HAVE ANY -- SORRY, COUNCILMEMBER BLACKABY. I CAN SEE YOUR HAND.
>> B. BLACKABY: THANKS, MADAM MAYOR. A COUPLE OF QUICK COMMENTS. FIRST IS ITEM 13. JUST WANT TO DRAW MY COLLEAGUE'S ATTENTION TO THE FAIR AND PARTIAL POLICING IMPLEMENTATION REPORT. WANTED TO NOTE APPRECIATE THE WORK OF CHIEF LEWIS IN THE DEPARTMENT AS WELL AS POLICE ACCOUNTABILITY BOARD. THEY HAVE UNIFIED ON AN AGREED-UPON SET OF FOLLOW-UP RECA ADDITIONS THERE. SO THE ITEM IS ACTUALLY A SUPPLEMENT ITEM. I JUST ENCOURAGE MY COLLEAGUES TO SEE THAT. IT'S A SUPPLEMENTAL LIST THAT BOTH THE -- WILL AGREE UPON. WILL CLOSE OUT ADDITIONAL ACTION ITEMS ON FAIR POLICING TASK FORCE. THE DATA WILL CONTINUE COME THE TRACKING OF ALL THE INFORMATION, BUT WILL FORMALLY CLOSE OUT THE PROCESS. JUST WANT TO ACKNOWLEDGE THE WORK WORKING TOGETHER ON THAT AS WELL AS A COUPLE OF ITEMS ON THE AGENDA WE ARE GOING TO BE HEARING ON THIS AGENDA ITEM LATER ON AND WANTED TO AGAIN COMPLEMENT THE WORK OF THE TWO ORGANIZATIONS. THERE'S AN OVERSIGHT FUNCTION AND DEPARTMENT FUNCTION AND ACKNOWLEDGING GOOD WORK WHEN THEY ARE ABLE TO WORK TOGETHER ON THINGS LIKE THIS IN ORDER TO ADVANCE THE EFFORT. THE ONLY OTHER THING I THINK I WANTED TO MENTION IS THAT ALSO ON ITEM 10, THE MILITARY EQUIPMENT REPORT, AGAIN, THANK YOU FOR THE DEPARTMENT FOR PRODUCING THAT. PEOPLE WILL NOTE THERE IS BEEN TWO SORT OF REPORTS ON MILITARY CONTROL

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EQUIPMENT. AGAIN, COMING THROUGH THE PUBLIC SAFETY COMMITTEE IS AN EFFORT AUTHORED BY COUNCILMEMBER O'KEEFE AND COUNCILMEMBER HUMBERT TO UNIFY THAT NEXT YEAR. THANKS FOR THEIR WORK ON THAT, AND THAT'S ALL I HAD.

>> MAYOR A. ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER LUNAPARRA, I CAN'T SEE YOU, SO YOU'LL HAVE TO CHIME IN IF YOU'VE GOT COMMENTS.

>> C. LUNAPARRA: WILL DO. THANKS.

>> MAYOR A. ISHII: ALL RIGHT. SOUNDS LIKE THAT IS IT THEN FOR COUNCIL COMMENTS, SO WE WILL CLOSE THAT END OPEN TO PUBLIC COMMENTS ON CONSENT OR INFORMATION ITEMS ONLY, KEEPING IN MIND THAT ITEMS 11 AND I THINK IT'S 17 HAVE MOVED TO ACTION. SO IF FOLKS HAVE ANY -- 17? YES. NO -- I'M SORRY.

>> 11 AND 19.

>> MAYOR A. ISHII: 19, THANK YOU. 11 AND 19 HAVE MOVED TO ACTION. YES?

>> PUBLIC SPEAKER: HEY. GORDON GILMORE HERE. I JUST WANTED TO -- OR I SAW NUMBER 12 WAS THE ELECTION OF IAN HUNT TO THE BERKELEY MENTAL HEALTH COMMISSION AND I JUST WANTED TO COMMEND HIM. I THINK HE'S WONDERFUL AND IT'S IMPORTANT. THANK YOU.

>> MAYOR A. ISHII: THANK YOU.

>> PUBLIC SPEAKER: IS THIS WHERE I CAN COMMENT ON ITEM 11?

>> MAYOR A. ISHII: NO, SO 11 IS MOVED TO ACTION. THANK YOU.

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OTHER COMMENTS ON CONSENT OR INFORMATION ITEMS ONLY? ANYONE ONLINE?

>> CITY CLERK: YES. WE HAVE FOUR COMMENTERS ONLINE. JUST BEFORE THEY START, JUST AS A REMINDER THAT ITEM 11, THE SURVEILLANCE TECHNOLOGY ORDINANCE SUBMISSION FOR BERKELEY CITY JAIL, SURVEILLANCE SYSTEM, HAS BEEN MOVED TO ACTION, SO NOW IS NOT THE TIME TO COMMENT ON THAT ITEM.

>> MAYOR A. ISHII: AND 19.

>> CITY CLERK: AND 19 REGARDING THE RESTAURANT INSPECTIONS. BUT THE FIRST ONLINE IS JOHN LINDSAY-POLAND.

>> PUBLIC SPEAKER: GOOD EVENING, COUNCIL MEMBERS. MY NAME IS JOHN LINDSAY-POLAND WITH THE AMERICAN -- SERVICE COMMITTEE. ON COMMENTING ON ITEM NUMBER 10. UNDER STATE LAW IS REQUIRED TO BE POSTED ON THE AGENCY WEBSITE. AS OF TONIGHT, IT IS NOT POSTED ON B.P.D'S WEBSITE FIGURE THAT IS A VIOLATION. IN ADDITION, THE LAW ENFORCEMENT AGENCY IS REQUIRED TO HOLD A COMMUNITY ENGAGEMENT MEETING HOSTED BY THE LAW ENFORCEMENT AGENCY IN WHICH THE PUBLIC MAY ASK QUESTIONS AND EXPRESS CONCERNS. THAT IS NOT A BROWN ACT MEETING. 90% AT LEAST OF THE LAW ENFORCEMENT AGENCIES ACROSS THE STATE HOLD SUCH ENGAGEMENT COMMUNITY MEETING AFTER THEY HAVE PUBLISHED AND POSTED ONLINE THERE AB 41 ANNUAL REPORT ON MILITARY EQUIPMENT USED. SO B.P.D. IS NOT IN COMPLIANCE WITH THIS STATE LAW. I WOULD ASK YOU TO INSTRUCT THE DEPARTMENT TO

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POST THE REPORT ONLINE AND TO HOST A COMMUNITY ENGAGEMENT MEETING AS THE STATE LAW REQUIRES.

>> MAYOR A. ISHII: THANK YOU. THANK YOU SO MUCH. THANKS FOR YOUR COMMENT. [APPLAUSE]

>> CITY CLERK: NEXT IS GEORGE LIPPMAN.

>> PUBLIC SPEAKER: YES, GOOD EVENING. I DON'T KNOW HOW LONG I HAVE, BUT MONI LAW HAS PLEDGED A MINUTE IF NECESSARY.

>> MAYOR A. ISHII: GEORGE, YOU HAVE ONE MINUTE. IS MONI ONLINE?

>> CITY CLERK: YES, SHE IS.

>> PUBLIC SPEAKER: I LIKE TO SPEAK ON ITEM 19, FAIR AND IMPARTIAL REPORT. THERE'S A LOT OF INFORMATION IN THERE AND I'M GLAD DEPARTMENT AND BOARD HAVE BEEN ABLE TO WORK TOGETHER AND THERE'S A LOT OF FINE STUFF IN THERE. I DISAGREE WITH CLOSING THE REFERRAL. AND THE REASON IS THAT WE HAVE COME SOME DISTANCE. WE HAVE A LOT LEFT TO DO. WE KNOW ABOUT A NUMBER OF ACTIVITIES THAT HAVE -- ACTIONS THAT HAVE BEEN TRACEABLE TO VARIOUS POLICE TEAMS AND/OR INDIVIDUALS, OFFICERS, AND ALSO THE REPORT FROM THE P.A.B. DISPLAYS, SORT OF SUMMARIZES WHAT IS LEFT TO BE DONE. AND IT'S A LOT. RACIAL DISPARITIES DECREASED SLIGHTLY. A NUMBER OF THESE PROJECTS ARE UNDERWAY THAT THE E.I.S., EARLY INTERVENTION SO FORTH, IS AN THE EARLY STAGES. WE ALL KNOW THE HISTORY OF THE DOWNTOWN STREETS TEAM. LET ME SAY IN MY REMAINING MOMENTS, WE HAVE PEOPLE IN THIS COUNTRY SAYING SOME VARIANT OF PAY, THAT

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NEVER HAPPENED OR I DIDN'T DO IT, THREE, I DIDN'T KNOW ABOUT IT, FOUR, IT WASN'T THAT BAD, FIVE, AND WE DON'T DO IT ANYMORE. IN BERKELEY, WE DON'T WANT TO FOLLOW THAT EXAMPLE. WE WANT TO FOLLOW THIS STORY THROUGH TO THE END AND KEEP THE FOCUS ON AND BE A BEACON OF LIGHT FOR THE ENTIRE COUNTRY. FOLLOW THIS STORY. KEEP THE PRESSURE ON. CELEBRATE THE WINS, BUT KEEP THE FOCUS ON THE PROBLEMS AND THIS TIME WE CAN GO BACKSLIDING AT ANY TIME. LET'S GO FORWARD THIS TIME.

>> CITY CLERK: NEXT IS AARON LECHUGA.

>> PUBLIC SPEAKER: HELLO, FOLKS. THANK YOU FOR THIS OPPORTUNITY. SO I'M CALLING IN REGARDS TO ITEM NUMBER SIX. AND THE YOUTH EQUITY PARTNERSHIP FUNDS. I'M ASKING TO REALLOCATE A PORTION OF THE FUNDS BEING RETURNED TO THE IDENTITY PROGRAMS FOR FISCAL YEAR 2026/2028. AND I JUST WANTED TO SAY, YOU KNOW, THE YOUNG MENTORS AND THE -- AFFINITY GROUP FOR BLACK AND BROWN MEN, AND WHAT WE DO IS WORK TO CHANGE LIVES, SAVE LIVES, AND GIVE OUR STUDENTS OPPORTUNITIES WHERE MIDDLE SCHOOL STUDENTS MENTOR OTHER MIDDLE SCHOOL STUDENTS AS WELL AS ELEMENTARY SCHOOL STUDENTS, HIGH SCHOOL STUDENTS, AND MENTOR MEDICAL -- MIDDLE SCHOOL STUDENTS AND IN THE COMMUNITY. YOU KNOW, HAVE COLLEGE GRADS, STUDENTS ATTENDING U.S.C., UCLA, THEY ARE BARBERS, ELECTRICIANS, AND THEY COME AND MENTOR --

>> MAYOR A. ISHII: YOU'RE OVER YOUR TIME. THANK YOU SO MUCH FOR

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YOUR COMMENT.

>> CITY CLERK: NEXT IS WILL G..

>> PUBLIC SPEAKER: HI, MY NAME IS WILL GREENBERG AND I'M A SOFTWARE ENGINEER SURVEILLANCE CAMERAS.

>> MAYOR A. ISHII: SORRY, YOU'RE ACTUALLY SPEAKING ON THE CONSENT CALENDAR. THIS IS CONSENT AND INFORMATION ITEMS ONLY. WHEN WE GET TO THE ACTION CALENDAR, YOU'LL BE ABLE TO TALK ABOUT ITEM NUMBER 17. BUT TO SET EXPECTATIONS, IT WILL PROBABLY BE MUCH LATER SINCE OUR ACTION CALENDAR IS GROWING.

>> PUBLIC SPEAKER: NO WORRIES. THANK YOU.

>> MAYOR A. ISHII: THANK YOU.

>> CITY CLERK: OKAY. NEXT IS MEREDITH ROSS.

>> PUBLIC SPEAKER: ALL. CAN YOU HEAR ME?

>> MAYOR A. ISHII: YES.

>> PUBLIC SPEAKER: THANK YOU FOR YOUR TIME AND SERVICE. WE CHAMPION EQUITABLE PUBLIC SCHOOLS SO THAT EVERY KID IN BERKELEY CAN THRIVE. I'M SPEAKING ON BEHALF OF THESE TWO EXTRAORDINARY PROGRAMS AT LONGFELLOW MIDDLE SCHOOL THAT MR. LECHUGA JUST SPOKE TO. THE THOUSANDS OF PROJECTS THE SCHOOLS FUND HAS SUPPORTED OVER THE DECADES, THESE ARE HANDS DOWN AMONG THE MOST IMPACTFUL AND FAR-REACHING. BOTH SERVE VERY TALENTED, FULL OF PROMISE LATIN X STUDENTS WERE NOT YET BEING SERVED BY OUR DISTRICT. WE FUNDED THESE PROGRAMS FOR FOUR STRAIGHT YEARS AND WE ARE SO

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GRATEFUL THAT THEY CONTINUE TO BE FUNDED NOW BY THE Y.E.P. PROGRAM. IT'S BIG GAINS FOR THE SUSTAINABILITY OF THESE PROGRAMS. I STILL HAVE ONE OF THE SMALLEST BUDGETS AND THEY STILL NEED NET SAVINGS --

>> MAYOR A. ISHII: THANKS FOR YOUR COMMENT.

>> CITY CLERK: LAST SPEAKER IS ELANA AUERBACH.

>> PUBLIC SPEAKER: HI. GOOD EVENING, EVERYBODY. I WOULD JUST LIKE TO UNDER SCORE JOHN LINDSAY-POLAND'S COMMENTS ABOUT PLEASE LET THE COMMUNITY KNOW WHEN THAT EQUIPMENT REPORT WILL BE UP ONLINE AND AVAILABLE PUBLICLY AND WHEN THE POLICE DEPARTMENT WILL BE HAVING A PUBLIC FORUM TO REVIEW THAT. I ALSO WANT TO -- WE HAVE DONE ANALYSIS OF THE RACIAL PROFILING. IT MIGHT HAVE GONE DOWN A LITTLE BIT, BUT IS HUGE. IF YOU ARE BLACK WALKING, BIKING, OR DRIVING IN BERKELEY, YOU ARE MULTIPLE TIMES MORE LIKELY TO BE PULLED OVER THAN WHITE PEOPLE. SO WE NEED TO CONTINUE THE FAIR AND IMPARTIAL POLICING TASK FORCE. THANK YOU. [APPLAUSE]

>> MAYOR A. ISHII: THANK YOU. IS THERE -- ARE THERE ANY MORE COMMENTS ONLINE?

>> CITY CLERK: NO MORE COMMENTERS ONLINE.

>> MAYOR A. ISHII: OKAY. THANK YOU. MR. CITY MANAGER, COULD YOU PLEASE ADDRESS THE COMMENT ABOUT B.P.D. BE OFF OF COMPLIANCE, PLEASE?

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>> CITY MANAGER: USUALLY WE DO POST THOSE AB 41 REPORTS.

>> MAYOR A. ISHII: THANK YOU. APPRECIATE IT. DO YOU WANT TO -- SHOULD WE WAIT FOR HER? OKAY. OKAY, GREAT. SO I KNOW THE CHIEF IS SPEAKING LATER, SO LET'S MOVE ON. IS THERE A MOTION TO APPROVE THE CONSENT CALENDAR?

>> SO MOVED.

>> MAYOR A. ISHII: A SECOND FROM COUNCILMEMBER TREGUB. AND PLEASE TAKE THE ROLE, CLERK.

>> CITY CLERK: OKAY. TO APPROVE THE CONSENT CALENDAR, COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN.

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT.

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB.

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE.

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY.

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA.

>> C. LUNAPARRA: YES.

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>> CITY CLERK: HUMBERT.

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII.

>> MAYOR A. ISHII: YES. LET'S MOVE ON TO OUR ACTION CALENDAR. I'D LIKE US TO ADDRESS THE RESTAURANT AUDIT INSPECTION REPORT. IT'S ITEM NUMBER 19 THAT MOVED FROM INFORMATION ITEMS. I'M GOING TO ASK THAT SCOTT GILMAN, OUR HEALTH COMMUNITY SERVICES DIRECTOR COME FORWARD. THANK YOU. TRYING TO GIVE YOU SOME TIME TO MAKE IT UP HERE.

>> SCOTT GILLMAN: GOOD EVENING.

>> MAYOR A. ISHII: THANK YOU. GOOD EVENING.

>> SCOTT GILLMAN: I BELIEVE THERE WAS SOME QUESTIONS FOR US. I DID WANT TO ADDRESS THE AUDITORS CONCERN, THOUGH, ABOUT POSTING ONLINE. CHARLIE AFTER WE BEGAN OUR PLAN OF CORRECTION, WE DISCOVERED THAT FIXING THE SOFTWARE THAT POSTED THE RESULTS ONLINE WASN'T FEASIBLE. ONE OF THE PROBLEMS THAT WE HAD WITH OUR AUDIT WAS THAT OUR SOFTWARE WAS AT END OF LIFE AND ESSENTIALLY HAD BUGS AND HAD BEEN CRASHING ON US, SO FIXING WHAT WAS POSTING ONLINE WASN'T POSSIBLE. WE ALSO FOUND THAT POSTING ONLINE IS NOT A REQUIREMENT, BUT IF YOU DO POST ONLINE, IT BETTER MEET STATE REQUIREMENTS AND HOURS DID NOT. SO BECAUSE IT WAS FLOWED INFORMATION, IT DID NOT MEET STATE REQUIREMENTS, AND HAVING THIS INFORMATION ONLINE COULD REALLY IMPACT A BUSINESS'S BUSINESS IF

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IT'S WRONG. WE FELT THAT THE DECISION TO PULL IT DOWN, YOU KNOW, WAS WARRANTED AT THAT POINT. WE'RE GOING AS FAST AS WE CAN. WE SAID IN OUR PLAN OF CORRECTION THAT WE WEREN'T EVEN GOING TO START ADDRESSING THAT ISSUE UNTIL JULY 2026. I'M GOING TO HAVE IT -- HOPEFULLY WILL BE FINISHED WITH THAT ISSUE AND HAVE IT FULLY IMPLEMENTED BY JULY 2026. THAT NEW SOFTWARE WILL BE IN PLACE AND PHASE 1 OF THAT WILL INCLUDE OUR ABILITY TO DO THE INSPECTIONS, BILL FOR THE INSPECTIONS, IT WILL HAVE A CONSUMER PORTAL. PHASE 2 WILL BE WE WILL BUILD THE GEO MAPS. THEY CAN MOVE THEIR MOUSE AROUND OVER TO WHERE THE RESTAURANT IS, THEY CAN CLICK ON THAT, AND THE INSPECTION WILL POP UP AND IT WILL HAVE THE RESULTS. IN THE MEANTIME, WE HAVE ADDED LANGUAGE TO THE WEBSITES OF THE PUBLIC CAN REQUEST A FULL COPY OF THE INSPECTION REPORT. ANYTIME THEY WANT. THEY CAN EVEN CALL ENVIRONMENTAL HEALTH. WE HAVE A LINK ON THE WEBSITE THEY CAN REQUEST THE MOST CURRENT INSPECTION REPORT THAT'S BEEN DONE OVER THE LAST YEAR.

>> MAYOR A. ISHII: THANK YOU SO MUCH. AND OR THEIR QUESTIONS, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES, I WANT TO THANK YOU, DIRECTOR GILMAN, FOR THAT UPDATE. I WANTED TO ASK YOU -- FIRST, I WANT TO COMMEND THE WORK THAT'S BEING DONE TO RESPOND TO THE AUDIT. I KNOW THAT THE INFORMATION REPORT NOTES THAT THE INSPECTIONS THAT WERE NOT COMPLETED FOR 2023 THAT WERE HIGH OR VERY HIGH RISK FACILITIES

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HAVE NOW BEEN COMPLETED, CORRECT?

>> SCOTT GILLMAN: THAT'S CORRECT.

>> R. KESARWANI: CATCHING UP IS ONE THING AND IT'S VERY IMPORTANT, BUT IN KEEPING UP AND BEING ABLE TO INSPECT ALL FACILITIES ANNUALLY, RIGHT? THAT'S OUR GOAL. HOW ARE WE DOING IN TERMS OF HAVING DONE THAT IN 2024 AND NOW IN 2025? CAN YOU SPEAK TO THAT?

>> SCOTT GILLMAN: SURE. WE ARE MOVING CLOSER TOWARDS BEST PRACTICE BEFORE THE CITY ACTUALLY HAS THE AUTHORITY TO SET POLICY FOR HOW FREQUENTLY WE GO OUT SO THAT THE AUDIT REPORT; TO GET CAUGHT UP WE WANTED TO DO THE MOST GOOD WEEK AHEAD AND GET EYES IN EVERY RESTAURANT. THE BEST PRACTICE AS LOW, MEDIUM, AND HIGH RANKINGS. FOR THE HIGHER RANKINGS, IT COULD BE THREE OR FOUR OR MORE PER YEAR THAT OUR STAFF GO IN THERE. THIS YEAR WE SET THAT FOR TWO FOR THE HIGH RANKINGS OR HIGH RISK, AND IF THE STAFF HAVE ANY CONCERNS OR PROBLEMS, THEY GO BACK AND CONTINUE UNTIL THEY ARE SATISFIED. WE ARE MOVING THEN ON A FEE STUDY THAT WILL OFFSET ANY COSTS WE HAVE. FEE STUDIES HAVE NOT BEEN REVIEWED IN 14 YEARS. WE JUST DISCOVERED THAT RECENTLY. I'LL BE ABLE TO GIVE YOU A CALCULATION FOR EXACTLY HOW MANY FTE'S IT WILL TAKE TO MEET THE BEST PRACTICE STANDARDS AND THE FEES TO BACK THAT UP. HOPEFULLY, THEY'LL HAVE THAT INFORMATION TO YOU SHORTLY AFTER THE BREAK. WE ARE MEETING CURRENT EXPECTATIONS,

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CURRENT POLICY THE WAY THAT IT IS, AND ARE CATCHING UP WITH STAFFING AND A LOT OF OTHER ISSUES.

>> R. KESARWANI: ACTUALLY, I DID WANT TO ASK YOU ABOUT STAFFING, DIRECTOR GILMAN, BUT THERE IS IN THE REPORT MENTION WE HAVE DONE SOME HIRING. I DON'T HAVE THE NUMBER DIRECTLY IN FRONT OF ME, BUT CAN YOU SPEAK TO THE HIRES THAT HAVE BEEN MADE AND HOW MANY VACANCIES WE CURRENTLY HAVE?

>> SCOTT GILLMAN: SURE. WE HIRED THE SUPERVISOR FOR THE PROGRAM. IS A FULL-TIME ENVIRONMENTAL HEALTH REGISTERED ENVIRONMENT HEALTH SPECIALIST THAT IS SUPERVISING THE STAFF NOW. RON IS THE DIRECTOR OF PROGRAM. WE ALSO HIRED AN ADDITIONAL INSPECTOR. WE HAVE VACANT RIGHT NOW IS ONE FULL-TIME VECTOR TECH, AND THAT INDIVIDUAL FOCUSES STRICTLY ON THE VECTOR PROGRAM. AND THEN WE HAVE AN OFFICE ASSISTANT THAT'S VACANT. JUST THE TWO.

>> R. KESARWANI: OKAY. SO THERE'S ONLY TWO VACANCIES. ARE THOSE POSITIONS THAT HAVE BEEN FROZEN OR DO YOU HAVE THE ABILITY TO HIRE THE VECTOR TECH?

>> SCOTT GILLMAN: HAVE THE ABILITY TO MOVE FORWARD WITH THAT WITH THE APPROPRIATE APPROVALS. YES, WE DO. WE ARE NEGOTIATING WITH THE COUNTY RIGHT NOW OUR CONTRACT AND MAKING SURE WE HAVE A CROSS SETTLE CONTRACT WITH THEM. WE JUST FINISHED THAT, SO WE KNOW WE HAVE FUNDING SECURE WE'RE GOING TO GO FORWARD WITH THE HIGHER.

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>> R. KESARWANI: OKAY. THANK YOU FOR THAT. SO GOING BACK TO THE ONLINE PORTAL, I JUST WANT TO THANK YOU AND APPRECIATE THAT WHAT I HEARD IS A COMMITMENT TO HAVE IT UP BY JULY OF NEXT YEAR. AND I KNOW THAT THIS AUDIT STATUS UPDATE, THE INFORMATION REPORT NOTES THAT YOU WILL UPDATE THE COUNCIL -- THE NEXT STATUS REPORT TO COUNCIL IS ANTICIPATED IN FALL OF 2026. I WANT TO ASK THAT YOU UPDATE US -- YOU SAID THAT YOU WERE GOING TO HAVE AN UPDATE AFTER THE BREAK. CAN YOU GIVE US A COMPREHENSIVE UPDATE IN SIX MONTHS? SO LET'S SAY JANUARY 2026 YOU CAN TELL US WHERE YOU ARE WITH EVERYTHING RELATED TO THIS AUDIT IN TERMS OF RESPONDING TO THE RECOMMENDATIONS?

>> SCOTT GILLMAN: ABSOLUTELY.

>> R. KESARWANI: OKAY. BECAUSE I DO WANT TO MAKE SURE THAT, YOU KNOW, WHEN OUR RESIDENTS HAVE AN INTEREST OR QUESTION ABOUT INSPECTIONS OF A FACILITY THAT THEY CAN ACCESS THAT INFORMATION, I ALSO RECOGNIZE THAT THAT IS NOT REALLY A USER-FRIENDLY WAY OF PROVIDING THE INFORMATION, AND I HAVE SAID THIS IN THE PAST AND I WANT TO REPEAT THAT MY HOPE FOR THE CITY IS THAT WE CAN BE LIKE OTHER JURISDICTIONS THAT DO AN INSPECTION AND THEN PROVIDE A PLACARD THAT THE RESTAURANT OR THE FOOD FACILITY CAN DISPLAY. THAT, I THINK, IS MORE USER-FRIENDLY SO PEOPLE CAN VISUALLY SEE AS THEY ARE MAKING A DECISION WHERE TO EAT --

>> SCOTT GILLMAN: YES.

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>> R. KESARWANI: AS THEY ARE MAKING A DECISION AND HAVE THAT PIECE OF MIND. I THINK WE HAVE SEVERAL STEPS TO DO TO GET THERE. YOU KNOW, STAFFING, GETTING THIS DATA SYSTEM UP-TO-DATE, DOING THE INSPECTIONS REGULARLY, AND THEN WE CAN THINK ABOUT THAT BEST PRACTICE THAT I HOPE WE CAN GET TO.

>> SCOTT GILLMAN: ABSOLUTELY.

>> R. KESARWANI: THANK YOU VERY MUCH. I'LL TURN IT OVER TO MY COLLEAGUES.

>> MAYOR A. ISHII: COUNCILMEMBER TREGUB.

>> I. TREGUB: THANK YOU, DIRECTOR. THREE QUESTIONS. THAT SOFTWARE UPDATE, CAN YOU JUST CONFIRM THAT'S THE ONE I RECALL WE APPROVED RECENTLY THAT TIES INTO THIS?

>> SCOTT GILLMAN: YES.

>> I. TREGUB: AND JULY 26 IS STILL THE PLANNED DATE?

>> SCOTT GILLMAN: CORRECT.

>> I. TREGUB: CAN YOU CONFIRM -- I THINK I HEARD YOU SAY THAT THERE WILL BE TWO INSPECTIONS FOR ALL HIGH-RISK FACILITIES THIS YEAR?

>> SCOTT GILLMAN: YES, AND I CAN ASK MR. TORREZ TO GO INTO MORE SPECIFICS ABOUT THAT, BUT YES. THAT IS THE CURRENT REQUIREMENT. TWO OR MORE DEPENDING ON WHAT THEY FIND.

>> I. TREGUB: AND IS THERE A WAY THAT THE COUNCIL CAN RECEIVE THAT INFORMATION?

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>> SCOTT GILLMAN: LIKE A SUMMARY OF --

>> I. TREGUB: SUMMARY, YES. HIGH LEVEL SUMMARY.

>> SCOTT GILLMAN: YES, WE CAN PUT SOMETHING TOGETHER. YOU WANT, LIKE, NAME AND FREQUENCY OF INSPECTIONS?

>> I. TREGUB: I THINK THAT WILL PROBABLY SUFFICE.

>> SCOTT GILLMAN: OKAY.

>> I. TREGUB: I WILL DEFER TO MY COLLEAGUES TO SEE IF THERE'S ANYTHING ELSE. BUT ON THAT, I WAS ACTUALLY WONDERING IF AN UPDATE COULD BE SENT OUT TO THE FULL COUNCIL ABOUT THIS, YOU KNOW, THIS IS THE INTERIM APPROACH. I UNDERSTAND THIS HAS BEEN OF HIGH INTEREST CERTAINLY TO MY CONSTITUENTS, I IMAGINE OTHERS AS WELL. AND I THINK WE WOULD BENEFIT BY SENDING SOMETHING OUT TO THE COMMUNITY ABOUT HOW TO REQUEST INSPECTION RESULTS AND SO FORTH.

>> CITY MANAGER: SORRY, COUNCILMEMBER. YOU'RE WANTING TO GET INFORMATION TO THE COMMUNITY ABOUT HOW THEY CAN REQUEST INFORMATION ON INSPECTIONS?

>> I. TREGUB: YES.

>> CITY MANAGER: I THINK THAT'S ON THE WEBSITE CURRENTLY.

>> I. TREGUB: OKAY. IT MIGHT BE HELPFUL TO DO IF WE CAN GET A HIGH LEVEL RIGHT UP FROM STAFF.

>> SCOTT GILLMAN: WHAT WE COULD DO IS GIVE YOU SOMETHING YOU CAN PUT IN NEWSLETTERS TO INFORM PEOPLE? THAT'S WHAT YOU'RE LOOKING

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FOR?

>> I. TREGUB: YES.

>> SCOTT GILLMAN: ABSOLUTELY WE CAN PUT SOMETHING LIKE THAT TOGETHER.

>> MAYOR A. ISHII: I JUST WANT TO CONFIRM IT IS ON THE WEBSITE SO IF FOLKS ARE INTERESTED IN REQUESTING REPORTS, IT'S THERE.

>> SCOTT GILLMAN: IT'S THERE, YES.

>> MAYOR A. ISHII: OKAY. COUNCILMEMBER O'KEEFE.

>> S. O'KEEFE: THANK YOU, MAYOR. I'M PRETTY FASCINATED BY THIS PORTAL SOFTWARE SITUATION. IF YOU DON'T MIND, I HAVE A COUPLE OF QUESTIONS. FIRST OF ALL, MY BIGGEST QUESTION RIGHT NOW IS IF PEOPLE CAN REQUEST A REPORT, WHY CAN'T YOU JUST PUT THAT REPORT ONLINE? HELP ME UNDERSTAND. WHATEVER THEY RECEIVE JUST BE ONLINE, RIGHT?

>> SCOTT GILLMAN: YEAH. TO BE COMPLETELY TRANSPARENT --

>> S. O'KEEFE: PLEASE.

>> SCOTT GILLMAN: I'M GOING TO TELL YOU BECAUSE I.T. TOLD ME IT WAS IMPOSSIBLE. I'M NOT A TECH PERSON. IT'S ALL FED ONLINE THAT DRIVES OUR BILLING AND THEN TRANSLATED INTO A SUMMARY REPORT, THE WAY THAT THE SOFTWARE PRESENTED IT. SO IT WASN'T A LINK TO EACH OF THE REPORTS. THE NEW SOFTWARE THAT WE HAVE THAT WE'RE BUILDING WILL DO THAT. IT WILL BE A LINK THAT WILL COVER AND GIVE THE ACTUAL REPORT.

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>> S. O'KEEFE: OKAY. IF I REQUESTED THE REPORT, I WOULD RECEIVE WHAT?

>> SCOTT GILLMAN: YOU WOULD RECEIVE THE ACTUAL REPORT, NOT THE SUMMARY THAT'S ON THE SOFTWARE.

>> S. O'KEEFE: AND WHAT FORMAT WOULD IT BE IN?

>> SCOTT GILLMAN: I BELIEVE IT'S A PDF.

>> S. O'KEEFE: SO WHY CAN YOU PUT THAT PDF ONLINE? I'M CONFUSED. BECAUSE I WAS GOING TO ASK WHAT WORKAROUNDS YOU TRIED BECAUSE THAT'S ACTUALLY MY CURIOSITY, BUT THIS ONE SEEMS FOREFRONT.

>> SCOTT GILLMAN: YEAH. WE HAVEN'T PRIORITIZED WHAT THINGS WE WERE GOING TO FOCUS IN ON, SO THAT WOULD ALSO INCLUDE PULLING STAFF OFF-LINE TO WORK ON THAT, AND THIS WAS SEVERAL MONTHS AGO WHEN WE CONSIDERED WHETHER WE WERE GOING TO DO THAT OR NOT. IF THAT'S SOMETHING THE COUNCIL WANTS US TO PURSUE OR LOOK AT, BE MORE THAN HAPPY TO DO THAT.

>> S. O'KEEFE: UNLESS THERE'S A REASON I'M MISSING, I THINK YOU COULD DO THAT IN ABOUT AN HOUR, POST A PDF. IF IT'S BIG OR SOMETHING, PLEASE DO THAT BECAUSE I THINK IT'S POSSIBLE THAN HAVING PEOPLE GO THROUGH A STEP TO REQUEST THAT PUTTING IT ONLINE. THAT'S MY MAIN QUESTION. BUT THEN I'M ALSO CURIOUS JUST ABOUT THE TIMELINE. WHAT IS THE CURRENT STATUS OF THE HUNT FOR NEW SOFTWARE? DO YOU HAVE A VENDOR ALREADY IDENTIFIED OR APPROVED OR SOMETHING?

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>> SCOTT GILLMAN: YES.

>> S. O'KEEFE: WHY WOULD IT TAKE YOU A YEAR TO GET THAT UP?

>> SCOTT GILLMAN: WE HAD DIFFERENT PHASES AND WE WERE GOING TO START ON THIS PROJECT IN JULY 2026. WE WERE GOING TO FINISH IT -- WE FOUND THE SOFTWARE, WE HAVE GOT THE DATA MIGRATION HAPPENING, AND THE NEW SOFTWARE, THE FIRST PHASE WILL GO LIVE THIS NOVEMBER.

>> S. O'KEEFE: OKAY. STILL SEEMS LIKE A LONG TIME TO ME, BUT I'M NOT THE PROJECT. IF YOU ALREADY HAVE THE SOFTWARE IDENTIFIED, HOPEFULLY YOU'RE PAYING A LOT FOR IT THEY WOULD HOPEFULLY PUT IT QUICKLY. IN THE MEANTIME, PLEASE PUT UP A PDF. I THINK THAT WOULD BE USER-FRIENDLY.

>> MAYOR A. ISHII: CAN I MAKE A RECOMMENDATION THAT WE MAKE A REQUEST TO PAUL? WE WILL TAKE THAT AS A REFERRAL TO STAFF TO FIGURE OUT IF THERE'S A WAY TO UPLOAD A PDF OR SOME OTHER DOCUMENTATION PEOPLE CAN LOOK AT ONLINE. I KNOW STAFF HAS WORKED WITH IT AND THERE'S BEEN SOME GLITCHES BUT WE WILL LOOK AT IT AND GET BACK TO YOU.

>> S. O'KEEFE: THANK YOU, PAUL FOR TAKING MY REQUEST. SORRY FOR THE BREACH OF ETIQUETTE.

>> MAYOR ISHII: ANYBODY ELSE HAVE COMMENTS ONLINE? COUNCILMEMBER BARTLETT, I SEE YOUR HAND.

>> B. BARTLETT: THANK YOU FOR THE REPORT. THIS IS SOMETHING WE

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FOLLOWED WITH GREAT INTEREST. THE RESTAURANT REPORTS. I THINK WE CAN TAKE THIS MOMENT AS WE FIGURE OUT THIS POSTING SITUATION. IN THE SOFTWARE CYCLE OF LIFE. MAYBE LET IT BE A TEACHING MOMENT FOR THE ORGANIZATION AS A WHOLE, IN TERMS OF UPGRADING ITS INTERFACE WITH THE COMMUNITY AND STEPPING INTO A MORE LIVE DIGITAL ATMOSPHERE FOR THIS KIND OF THING. THOSE ARE MY COMMENTS, THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. ANYONE ELSE? OKAY, I WILL JUST SAY THANK YOU. I KNOW THIS IS A LOT OF WORK, AND I APPRECIATE YOU ALL IN HIRING UP THE STAFF AND BRINGING THIS TO US, SO THANK YOU.

>> THANK YOU VERY MUCH.

>> MAYOR ISHII: ALL RIGHT. VERY GOOD. OKAY, MOVING ON. SO I WOULD LIKE US TO DO THE PUBLIC HEARING FOR ITEM 15, WHICH IS THE ORDINANCE VACATING A PORTION OF CARLETON STREET FROM WESTERLY TERMINUS EXTENDING 381.23 FEET EASTERLY.

>> ARE WE NOT HAVING PUBLIC COMMENT ON THAT ITEM?

>> MAYOR ISHII: RIGHT. THANK YOU. ALL RIGHT, IS THERE PUBLIC COMMENT ON THAT ITEM? THIS IS FOR ITEM 19 RESTAURANT AUDIT INSPECTION STATUS REPORT.

>> I WILL MAKE A BRIEF PUBLIC COMMENT. I WILL SAY I DON'T KNOW THE SITUATION BUT AS SOMEONE WHO WORKS WITH DATA, HAVING A PDF ISN'T GOING TO BE A PANACEA BECAUSE PEOPLE MAY NEED A

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SPREADSHEET OR MAYBE IT'S SOMETHING WHERE IT IS CONSTANTLY UPDATING. I DON'T KNOW ALL THE IN'S AND OUT'S OF THIS DATA BUT DEFINITELY APPRECIATE EVERYONE'S EFFORT TO MAKE EVERYTHING TRANSPARENT. I HAVE TO MENTION THIS TANGENTIAL ISSUE ABOUT CITY DATA BUT ON THE OPEN DATA PORTAL THERE'S A COMING SOON OPEN BUDGET APP, IT'S BEEN THERE FIVE OR SIX YEARS. IF YOU CLICK YOU GET A PASSWORD AND IT SAYS ACCESS DENIED. I ENCOURAGE, I KNOW EVERYONE, THERE'S NOT ENOUGH MONEY, THERE'S NOT ENOUGH STAFF AND EVERYONE IS REALLY DOING THEIR BEST. BUT DEFINITELY MORE TRANSPARENCY WITH THE NUMBERS AND EVERYTHING IS APPRECIATED. THANKS.

>> MAYOR ISHII: THANK YOU. IS THERE OTHER PUBLIC COMMENTS ON THIS ITEM?

>> WE GET TWO WHOLE MINUTES, THANKS. I HAVE GONE THROUGH FIVE CONVERSIONS OF SOFTWARE. I KNOW BERKELEY IS A LITTLE PATHETIC THE WAY THEY RUN THEIR ITEMS. ALL THE THINGS I PUT THROUGH WHEN I WAS ON COUNCIL AREN'T ONLINE.

>> MAYOR ISHII: SORRY, IS THIS ABOUT THE FOOD INSPECTION ITEM?

>> YES, IT IS. I'M TALKING ABOUT DATA. I'M REALLY EFFING TIRED OF YOU INTERRUPTING ME BECAUSE YOU DON'T THINK I'M TALKING ABOUT TASKS, BUT I AM. I'M TALKING ABOUT THE CONVERSIONS, STOP BEING SO DAMN RUDE. NOW THAT YOU INTERRUPTED ME, I SHOULD GET MY TIME BACK. WHEN YOU UPDATE THINGS IT SHOULD BE TRANSPARENT AND MAKE

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SURE ALL THE DATA IS BEING MOVED. YOU COULD HAVE A PDF; THAT'S A GOOD IDEA. A SPREADSHEET COULD BE A PDF. THERE'S WAYS TO GET AROUND THESE THINGS AND BERKELEY NEEDS TO BE BETTER IN SO MANY AREAS INCLUDING THE RUDENESS AND DISRESPECT AND NOT LISTENING TO THE CONSTITUENTS OR PAYING ATTENTION OR BEING ON YOUR PHONE OR ALL THIS OTHER CRAP YOU ARE DOING DURING THE COUNCIL MEETING AND NOT LOOKING UP. MARIONETTE, JUST SITTING THERE, NOT BLINKING, NOT MOVING. BE NICE. FREE PALESTINE.

>> MAYOR ISHII: ARE THERE ANY OTHER COMMENTS ON THE FOOD INSPECTION ITEM? ANYONE ONLINE?

>> CITY CLERK: ARE YOU TALKING ON THE FOOD INSPECTION ITEM?

>> HI, MY NAME IS SUNNY, I WAS WONDERING IT IF THAT GOES WITH FOOD CONCESSION CARTS. ARE CARTS, LIKE FOOD SERVICE CARTS OR LIKE MOBILE KITCHENS INVOLVED IN THAT? IF THERE IS ANYONE WHO IS A THOUGHT THINKER ABOUT MOBILE QUESTIONS MAYBE I CAN SPEAK WITH THEM AND THEY CAN ANSWER MY QUESTIONS.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: THERE'S ONE RAISED HAND. DAVID LAVIN, THIS IS PUBLIC COMMENT ON ITEM 19.

>> YES, CAN YOU HEAR ME I HOPE? DAVID LEVINE, I'M A RESIDENT OF DISTRICT 8. I JUST WANT TO UNDERSCORE. I THINK GETTING THIS INFORMATION OUT WOULD BE REALLY, REALLY HELPFUL. I APPRECIATE THE CONSTRUCTIVE COMMENTS ON THE MEMBERS OF CITY COUNCIL, AS

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WELL AS STAFF MEMBERS ON THIS. AND WHAT I WANTED TO FOCUS ON, IS THERE SOME WAY TO MAKE JUST THE KNOWLEDGE THAT WE HAVE INFORMATION AVAILABLE. I WAS THINKING OF SOMETHING LIKE HAVING RESTAURANTS HAVE A PAGE THEY COULD POST THAT JUST HAS A QR CODE. IF YOU WANT TO KNOW MORE ABOUT THE INSPECTION SYSTEM IN BERKELEY, HERE IS WHAT YOU DO. BECAUSE TO SAY OH IT'S ONLINE, YOU CAN FIND IT, WITHOUT THAT KIND OF KNOWLEDGE, I THINK WE ARE MISSING A LINK. ULTIMATELY I HOPE WE GET TO THE COLOR-CODED SYSTEM. BUT IN THE MEANTIME, I THINK FIGURING OUT A WAY TO CONNECT PEOPLE WHO ARE MAKING RESTAURANT DECISIONS, NOT PLANNING THREE DAYS AHEAD WOULD BE REALLY, REALLY HELPFUL. I THANK YOU FOR WORKING ON THIS IMPORTANT ISSUE.

>> CITY CLERK: THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: THAT'S IT.

>> MAYOR ISHII: ALL RIGHT. VERY GOOD. THAT WAS TECHNICALLY INFORMATION ONLY, NO VOTE NEEDED. WE CAN MOVE ONTO THE NEXT ITEM. ITEM 15, THE ORDINANCE VACATING A PORTION OF CARLETON FROM WESTERLY TERMINUS EXTENDING 381.23 FEET EASTERLY. DO WE HAVE A PRESENTATION?

>> WE DON'T HAVE A PRESENTATION BUT WE HAVE SOMEONE AVAILABLE TO ANSWER QUESTIONS.

>> MAYOR ISHII: OKAY, THEN I WILL TAKE PUBLIC COMMENT ON THIS.

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>> HI, I'M GORDON GILLMOR WITH THE BERKELEY HOMES UNION. AND I WANTED TO SPEAK TO THIS BECAUSE WHAT'S HAPPENING WITH THE VACATION OF THE DEAD-END OF CARLETON IS THAT A PLACE UNDER THE GUISE OF EXTENDING THE PUBLIC RIGHT OF WAY INTO THIS PLACE, IS THE DISPLACEMENT OF A COMMUNITY THAT HAS FOUND SAFETY THERE BECAUSE, ONE OF THE FEW PLACES THAT IS OUT OF THE PUBLIC RIGHT OF WAY. AND SIMULTANEOUSLY PUBLIC PROPERTY. SO THEY HAVE BEEN ABLE TO FIND RESPITE THERE AND SAFETY. I DON'T MEAN TO REHASH WHAT I BROUGHT UP LAST TIME. BUT THOSE WHO WERE DISPLACED FROM OHLONE PARK AND WERE FINDING LOCATIONS THROUGHOUT TOWN END UP GETTING HASSLED BY THE POLICE AND HOMELESS RESPONSE TEAM. AND WHILE NO ONE HAS BEEN DISPLACED FROM THE NEW RESIDENTS SINCE THAT POINT, THEY HAVE BEEN PUT UNDER SIGNS POSTING RULES THAT PUT THEM UNDER CONSTANT THREAT OF HAVING THEIR BELONGINGS TAKEN FROM THEM IF THEY MOVE AWAY FROM THEIR TENTS. AND THAT'S HAPPENED NEARBY RELOCATED FOLKS A NUMBER OF TIMES RECENTLY AND IT PUTS THEM IN A STATE OF HYPER VIGILANCE ABOUT THE LOSS OF THEIR ITEMS. AS SUCH WE NEED SOMEWHERE THAT THESE PEOPLE CAN GO THAT WOULD BE SAFE FOR THEM TO RELOCATE WHERE THEY WON'T BE PUT INTO THIS STATE OF CONSTANT DANGER. WHICH PREVENTS THEM FROM, YOU KNOW, BEING ABLE TO WORK TOWARD A SITUATION THAT WORKS BETTER FOR THEM. AND IS COPACETIC. THANK YOU.

>> MAYOR ISHII: THANK YOU. NEXT SPEAKER?

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>> GREETINGS. AS A PERSON WHO IS ACTUALLY DIRECTLY INVOLVED IN THE LOCATION, I CAN ATTEST TOO, IT'S ABSOLUTELY HORRENDOUS HELL AND EXTREMELY DANGEROUS HEALTH WISE, MENTAL HEALTH, AND PHYSICAL HEALTH. IT'S COME TO THE POINT WHERE THE STRESS IS, I DESERVE BETTER. WE ALL DESERVE BETTER. WE DESERVE TO HAVE SOME STABILITY. WE DESERVE TO HAVE HOPE THAT OUR EFFORTS, OUR TIME, OUR MATERIAL POSSESSIONS WHICH ARE ACTUALLY VALUABLE ITEMS THAT CAN BE EXCHANGED AND WE DESERVE A PLACE TO HAVE A MARKET WHERE WE CAN GET A GAIN. BECAUSE A HOMELESS PERSON WORKS 100 TIMES MORE THAN ANYONE ELSE FOR LESS THAN 10% OF THE COME BACK. WE DON'T HAVE SALARIES OR PENSIONS. I PERSONALLY WOULD LIKE TO BE COMPLETELY INVOLVED IN CONVERSATIONS REGARDING THIS LOCATION BECAUSE IT IS MY LIFE. AND ALAMEDA COUNTY, ALAMEDA ISLAND PER SE, NOT BERKELEY, I'M HOPING, BUT THEY TOOK MY MAGIC SCHOOL BUS I MADE WITH MY VERY OWN HANDS, IT WAS THE FIRST THING I HAD, I PUT SO MUCH EFFORT AND LIFE, GOING BACK TO THINGS I WAS GIVEN WHEN I WAS 3 YEARS OLD DESPITE SPINAL MENINGITIS, I HAVE HAD DISABLED, INCONVENIENCE EXPERIENCE WITH MY LIFE AND I CAN'T TAKE ANY MORE OF THAT. I WANT ONLY GOODNESS FROM HERE ON OUT. AND I WANT A CALL TO COMPASSION. COMPLETE. AND I WANT, I WOULD, I'M HERE TO TALK TO ANY INTERESTED AND CONCERNED PROFESSIONALS FROM BAYER, BECAUSE THIS IS THEIR PROPERTY. AND WE ACTUALLY DO VALUE THEIR OPINION. THANK YOU.

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>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT.

>> HI THERE. I JUST WANTED TO NOTE THAT YOU GUYS KEEP CELEBRATING ALL THESE PEOPLE IN YOUR ACKNOWLEDGMENTS AND THINGS FOR ALL THEIR ACTIVISM AND HUMAN RIGHTS. BUT YOU ARE TALKING AGAIN ABOUT RELOCATING AND THROWING AWAY PEOPLE'S STUFF LIKE THEY'RE NOT HUMAN. SO IF YOU DON'T HAVE AN ANSWER WHERE THESE PEOPLE CAN GO, THERE'S NOT ENOUGH HOUSING, THERE'S NOT ADEQUATE HOUSING. SO IF YOU CAN'T ANSWER THAT QUESTION WHERE PEOPLE CAN GO SAFELY, THEN JUST LEAVE THEM ALONE. LIKE YOU DON'T HAVE THE ANSWER, SO STOP FUCKING WITH THEM.

>> MAYOR ISHII: THANK YOU.

>> HI. THE CURRENT SITUATION ON THE STREETS OF BERKELEY IS GRIM. WE ALL KNOW THAT NO MATTER HOW SETTLED WE FEEL OUR PRESENCE IS CONSIDERED ILLEGAL. OUR DAYS OF LIVING PEACEFULLY WHEREVER WE ARE NUMBERED. CONSTANT ANXIETY WEARS US DOWN MENTALLY AND PHYSICALLY. SWEEPS KILL. STILL, BERKELEY KEEPS PUSHING PEOPLE FROM PLACE TO PLACE, POSTING SIGN THAT'S THREATEN ARREST OR FINES IF THEY DARE RETURN. FURTHER MENTAL HEALTH CHALLENGES AND INCARCERATION ARE THE LOGICAL OUTCOME OF BERKELEY'S APPROACH. BERKELEY IS HURTING ITS CONSTITUENTS. NEARLY ALL OF US LACK ACCESS TO 24 HOUR BATHROOMS OR DUMPSTERS. A PUBLIC HEALTH CRISIS ISN'T JUST POSSIBLE IT'S INEVITABLE IF THIS CONTINUES. SANCTIONING ENCAMPMENTS SHOULD BE PART OF THE SOLUTION NOW IN

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ORDER TO PREVENT WHAT WILL OTHER WISE FOLLOW. I DON'T KNOW IF YOU ARE GOING TO ADDRESS THIS OR NOT, I CERTAINLY HOPE YOU WILL. BUT IT SEEMS YOU ARE PASSING THE BUCK BY GIVING THAT PROPERTY THAT HAS A LARGE UNHOUSED POPULATION ON IT TO BAYER. SO EITHER YOU GUYS ARE GOING TO CLEAR IT, WHICH WILL BE BAD ENOUGH, POSSIBLY, PROBABLY. OR BAYER WOULD BE THE ONES RESPONSIBLE FOR CLEARING IT, ONCE YOU GIVE IT TO THEM. THEY DON'T HAVE ANY STANDARDS THEY ARE SUPPOSED TO BE HELD ACCOUNTABLE TO. I THINK AS ALWAYS COMMUNICATION WOULD HELP HERE. COMMUNICATION WITH THE PEOPLE WHO LIVE THERE, MAYBE BETWEEN THE PEOPLE WHO LIVE THERE AND BAYER. THESE ARE HUMAN BEINGS AND THEY LIVE THERE, JUST LIKE ANYONE ELSE, I KNOW THEY DON'T PAY RENT BUT THEY EXIST AND THERE SHOULD BE COMMUNICATION WITH THEM INSTEAD OF SIGNS BEING POSTED AS EVIDENCED BY THE AUDIT, FAIRLY IMPOTENT HRT SENT OUT TO NOT OFFER ANYTHING AND HAVING BELONGINGS HOPEFULLY STORED AND THE REST THROWN AWAY. I'M HERE TO CALL FOR COMMUNICATION AND FOR PEOPLE WHO ARE UNHOUSED TO BE TREATED LIKE HUMANS. THANK YOU.

>> MAYOR ISHII: THANK YOU, AMBER. [APPLAUSE]

>> WELL, I WAS PRETTY HORRIFIED TO FIND OUT THERE WAS 56 BEDS AVAILABLE, AND YET WE KNOW THERE'S HUNDREDS OF PEOPLE THAT THEY WERE HOMELESS IN OUR STREETS. WHAT'S HAPPENED IS WITH THE SWEEPS, AT LEAST IN NORTH BERKELEY WHERE I LIVE, YOU SEE STRAY BELONGINGS PLACES. YOU COULD SEE SO-AND-SO. I RECOGNIZE SOME OF

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OUR LOCAL HOMELESS PEOPLE THAT JUST GO AROUND. WE HAVE A HUGE PROBLEM. BUT WITH THE SWEEPS WHERE THEY GO INTO A CAMP WHERE PEOPLE HAVE COMMUNITY THAT HURTS THE COMMUNITY AND BREAKS IT UP. WHAT I'M CONCERNED ABOUT IS WHY IS THERE NOT THE MENTAL HEALTH DEPARTMENT? DO THEY HAVE OUTREACH WORKERS TO FIND OUT WHAT PEOPLE NEED? DO THEY HAVE FULL SERVICE, I KNOW THAT 30% LACK OF STAFFING IS ALWAYS THE ANSWER. BUT WHY IS THAT THE ANSWER? IF WE CAN BUY EXPENSIVE CAMERAS WHY CAN'T WE LURE PEOPLE IN WITH DECENT WAGES? FROM WHAT I HEAR LOTS OF PEOPLE ARE FLEEING BECAUSE THEY CAN GET BETTER PAY IN MARIN, THEY CAN GET BETTER PAY ELSEWHERE. WHY DON'T WE PONY UP THE BETTER PAY AND CUT THE CORNER FROM SOME OF THESE FANCY COMPUTER THINGS, WHICH YOU COULD DO ACTUALLY A LOT OF IT JUST WITH PAPER AND PENCIL? YOU KNOW. IT'S BEYOND ME WHY YOU WASTE THIS MONEY ON CAMERAS AND HIGH-TECHY THINGS AND POLITICAL POLICE EQUIPMENT FOR MILITARY. WHY MILITARIZE OUR CITY AND TERRORIZING PEOPLE, INSTEAD OF HELPING PEOPLE. YOU KNOW, CARE FIRST, JAILS LAST. THAT'S WHAT WE BELIEVE IN. THIS IS AGREED ON WITH THE CITY COUNCIL AT ONE POINT. CARE IS WHAT WE SHOULD BE DOING. WE HAVE COMMUNITY ORGANIZATIONS. WHERE ARE YOU IN COMMUNICATION WITH THEM? DO YOU SEND THOSE PEOPLE OUT WITH ANY CONTACTS WITH HOMELESS SUPPORT?

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT.

>> GOOD EVENING COUNCIL. MY NAME IS JENNIFER COGLY AND I AM WITH

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BAYER. WE EMPLOY ABOUT 850 PEOPLE AT THE BAYER SITE. THE MAJORITY OF THEM DON'T HAVE COLLEGE DEGREES. WE ARE THE MOST DIVERSE WORK SITE IN THE BAYER GLOBAL NETWORK. AND WE HAVE A DEVELOPMENT AGREEMENT WITH THE CITY OF BERKELEY THAT MEANS ABOUT A MILLION DOLLARS A YEAR OVER AND ABOVE OUR PROPERTY TAXES ARE PAID TO COMMUNITY ORGANIZATIONS. INCLUDING ABOUT 23 INTERNSHIPS FOR LOW-INCOME AND MARGINALIZED COMMUNITIES. THE SITE THAT WE ARE TALKING ABOUT, CARLETON STREET, BAYER OWNS PROPERTY ON BOTH SIDES OF THAT STREET. AND THERE'S NO PUBLIC OUTFLOW FROM THAT LOCATION. WE PLAN TO MAINTAIN THE STREET AND INSTALL A WATER TREATMENT FEATURE THAT WILL ADDRESS SOME OF THE STORM WATER ISSUES. AND THIS VACATION ALIGNS WITH HOW THE STREETS HAVE BEEN DEALT WITH IN THE OTHER 46 ACRES OF PROPERTY THAT WE OWN IN WEST BERKELEY. THE OTHER THING TO KNOW IS THAT THIS LOCATION MAKES MEDICINE FOR PEOPLE IN 50 COUNTRIES ALL OVER THE WORLD. WE HAVE REPORTED MULTIPLE FIRES AT THIS LOCATION. I RECEIVE COMPLAINTS FROM PEOPLE IN OUR QUALITY BUILDING OF SMELLING SMOKE INSIDE OF THEIR BUILDING DURING THE NIGHT. AND THERE HAS BEEN A SERIOUS FIRE RISK TO OUR PROPERTIES BECAUSE WHAT'S GOING ON AT THAT LOCATION. I THINK WE ALL DESERVE A SAFE PLACE TO LIVE. SO I DON'T DISAGREE WITH THOSE WHO HAVE COME BEFORE ME. I ALSO NEED TO MAKE SURE THERE'S A SAFE PLACE FOR OUR PEOPLE TO WORK AND THAT WE CAN MAINTAIN THE SAFETY OF THE MEDICINES WE PRODUCE FOR

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PEOPLE. WITH THAT, I WILL CONCLUDE MY COMMENTS. THANK YOU SO MUCH.

>> MAYOR ISHII: THANK YOU.

>> HI. I'M JEVRONI STOKES, I LIVE ON CARLETON. I WAS JUST WANTING TO ASK LIKE PREVIOUS PEOPLE SAID THAT YOU GUYS ACTUALLY COME TALK TO US. OBVIOUSLY, WE DO READ YOUR NOTICE AND WE ARE LISTENING BUT WE DON'T KNOW HOW THIS PROCESS GOES. YOU KNOW. BUT I'M PRETTY SURE THAT IF IT'S SENSIBLE, WE HAVE NO PROBLEM LEAVING. IT'S NOT LIKE WE REALLY WANT TO BE THERE. I MEAN THE FIRES ARE EITHER BECAUSE WE ARE STAYING WARM OR COOKING FOOD AND THEY ARE ALWAYS CONTROLLED. THERE'S NO OUTBURST OF FIRE; THEY DON'T HAVE TO WORRY ABOUT IT BURNING THEIR FENCE. DON'T PUT STUFF IN THE FENCE, THEY GET REAL PISSED OFF ABOUT THAT. IT'S NOT LIKE WE AREN'T WORKING WITH THEM. OR YOU GUYS. I JUST WANTED TO LET YOU KNOW, THAT YOU KNOW, THAT WE ARE LISTENING, TRYING TO FIGURE IT OUT TOO. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HELLO, AGAIN. EVICTIONS IN BERKELEY ARE A TOPIC THAT WE COME TO AGAIN AND AGAIN AND AGAIN BECAUSE THE BAY AREA HAS A CRISIS OF HOMELESSNESS BECAUSE OUR CITIES ARE UNAFFORDABLE. AND OFTEN WHEN I COME UP TO SPEAK ABOUT EVICTIONS IT KIND OF FEELS LIKE PUSHING AGAINST AN IMMOVABLE OBJECT BECAUSE THE VOTES END UP REMAINING THE SAME PRETTY MUCH ALL THE TIME. SO AS I SOMETIMES

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DO WHEN I HAVE THE OPPORTUNITY TO SPEAK ON THIS TOPIC TO THE PUBLIC I WILL USE THIS AS A MOMENT OF EDUCATION RATHER THAN A MOMENT OF LOBBYING TO SAY IF YOU ARE WONDERING WHY, IT FEELS THERE ARE MORE SWEEPS OF UNHOUSED COMMUNITIES NOW THAN THEIR USED TO BE, YOU ARE CORRECT. THIS IS BECAUSE OF A SUPREME COURT CASE CALLED GRANTS PASS THAT DECIDED YOU DO NOT NEED TO PROVIDE ADEQUATE SHELTER FOR SOMEBODY WHEN YOU EVICT THEM FROM WHERE THEY ARE LIVING. SO HISTORICALLY BERKELEY HAS BEEN LESS ABLE TO ENGAGE IN HOMELESS SWEEPS BECAUSE THE SUPREME COURT UNDER BOISE, I BELIEVE, MAYBE, SAYS YOU HAVE TO PROVIDE HOUSING BEFORE YOU CAN SWEEP PEOPLE. AND THAT'S NO LONGER TRUE. THAT'S NO LONGER TRUE BECAUSE OF TRUMP'S SUPREME COURT HE PACKED WITH FAR RIGHT CONSERVATIVES. AS BERKELEY RAMPS UP THESE EVICTIONS IT'S IMPORTANT FOR OUR COMMUNITY MEMBERS TO UNDERSTAND THIS IS ONLY POSSIBLE BECAUSE OF THE FAR RIGHT APPOINTMENTS MADE BY DONALD TRUMP. ONES AGAIN WE HAVE OUR BLACK LIVES MATTER FLAG, OUR PRIDE FLAG, BUT WE ARE DOING SOMETHING, WE ARE SEIZING UPON AN OPPORTUNITY GIVEN TO US BY THIS SUPREME COURT. IF BLACK LIVES MATTER WE SHOULD NOTE OVER 50% OF THE HOMELESS POPULATION IN BERKELEY IS BLACK. IF WE WANT TO LOOK AT THE PRIDE FLAG, WE SHOULD REMEMBER QUEER PEOPLE ARE DISPROPORTIONATELY REPRESENTED IN UNHOUSED COMMUNITIES. IT'S TIME TO LIVE BY OUR VALUES AND STOP TAKING AN OPPORTUNITY PROVIDED BY DONALD TRUMP TO TERRORIZE

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OUR MOST MARGINALIZED COMMUNITIES. THANK YOU.

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT. GO AHEAD, WHENEVER YOU ARE READY.

>> THE CHANCE THAT THE HAYWARD QUAKE KILLS HUNDREDS OR THOUSANDS IS 100%. IN OBSERVATION OF THIS FACT, AND THE FACT THAT I WAS RENTING A BUILDING 2330 BLAKE THAT ANYBODY WITH BASIC ENGINEERING DEGREE WOULD REALIZE IS A SOFT STORY, BUT IT'S NEVER BEEN A SOFT STORY, I'VE BEEN REPRESENTING A PLACE FOR AN OLD VAN SO THAT I WOULD HAVE A FIELD HOSPITAL WHEN THE BIG ONE HIT.

>> MAYOR ISHII: I'M SORRY, ARE YOU TALKING ABOUT THIS ITEM?

>> HOUSING, YES.

>> MAYOR ISHII: ITEM 15, WHICH IS THE ORDINANCE VACATING A PORTION OF CARLETON STREET.

>> YES, YES. I'M SPEAKING FROM THE POINT OF HOMELESS. I'M CURRENTLY --

>> MAYOR ISHII: OKAY, GO AHEAD.

>> GIVE HIM BACK HIS TIME.

>> MAYOR ISHII: LET HIM SPEAK, GO AHEAD. I'LL COUNT IT, GO AHEAD.

>> SO SHE JUST SPOKE ABOUT THERE'S, I WAS RENT CONTROLLED AND SOME RICH PERSON BOUGHT MY BUILDING AND EMPTIED EVERYONE OUT. AND THEN THE BUILDING GOT CONDEMNED AND THE VAN WAS FOR ME TO DO AN EARTHQUAKE OR CONDEMNED BUILDING. THEY JUST TOWED MY VAN. THE

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RENT BOARD WAS SUPPOSED TO TELL ME THAT THERE'S A RELOCATION FUND. THEY FAILED TO DO THAT FOR WEEKS AND A MONTH. THERE'S MULTIPLE ORGANIZATIONS IN THE CITY THAT ARE SCREWING ME LEFT, RIGHT AND CENTER. AND I JUST WANT TO KNOW DO I HAVE TO GO ALL THE WAY UP TO THE MAYOR TO CLEAN UP THIS MESS, SO I'M JUST, I'M SUING THE CITY FOR THE BUILDING DEPARTMENT THAT DOESN'T ANSWER AND THE RENT BOARD THAT DOESN'T ANSWER AND THE RELOCATION DEPARTMENT THAT DOESN'T ANSWER, YOU KNOW. I WAS TOLD TO COME TO THIS MEETING TO TELL.

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT.

>> DO I GO OR WAIT FOR YOU? HI. MY NAME IS JOHN RULE HOLDER THE II. I WAS PLACED AT GOLDEN BEAR AND I WASN'T PLANNING ON SAYING ANYTHING TONIGHT BUT THE SITUATION THAT LADY WAS DESCRIBING IS EXACTLY WHAT I HAVE BEEN PLACED IN. I CANNOT GET ANY FEELING OF SAFETY. I'M WONDERING WHY THE CITY MANAGER IS ABLE TO IGNORE ME. I'VE BEEN ABUSED, MY DOG HAS BEEN ABUSED AND HIS ASSISTANT SAYS YOU ALL HAVE NO DOINGS WITH THAT PROPERTY. I WAS TOLD IT WAS UNINCORPORATED BY ONE OF THE HOUSING DEPARTMENTS. IT'S SYSTEMATIC. IT'S PLANNED INCOMPETENCE. IT CAN'T -- IGNORANT PEOPLE CANNOT MESS UP THIS MUCH. IT'S PLANNED. IT'S SYSTEMATIC. THAT THINGS ARE JUST GOING WRONG FOR THIS POPULATION AND IT'S WRONG. AND YOU ALL KNOW IT. EACH ONE OF YOU. IF YOU DON'T GO TO GOLDEN BEAR AND SEE THERE ARE NOT SERVICES ON SITE, AND THEY ARE

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BILLING FOR THIS, AND REVENUE IS COMING INTO YOU. I UNDERSTAND MY TIME IS COMING UP.

>> MAYOR ISHII: IT'S NOT YOUR TIME. WE'RE TALKING ABOUT A SPECIFIC ITEM. SO IF YOU HAVE A COMMENT.

>> IT IS ABOUT WHAT YOU ARE DOING DOWN THERE. WHAT HAPPENS IS, OKAY, THEY GET PICKED UP AND PUT INTO A PLACE LIKE GOLDEN BEAR OR DOROTHY DAY AND GET PINCHED OUT. THE CITY MANAGER'S OFFICE DOESN'T STAND BEHIND THEM LIKE PETER RADU HASN'T GOTTEN WITH ME ON A REVIEW FROM DOROTHY DAY YEARS AGO. WHAT YOU ARE DOING IS GETTING PEOPLE BILLING AND PUSHING THEM BACK ON THE STREET WHERE THEY LOSE THEIR RIGHTS AND DOING THE WHOLE THING ALL OVER AGAIN. I DON'T KNOW IF YOU ARE COUNTING THEM ONCE OR TWICE, BUT I KNOW WHAT YOU ARE DOING IS WRONG BECAUSE YOU ARE TREATING THEM LIKE CATTLE.

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT.

>> IT'S INDENTURED SERVITUDE, YOU ARE PUSHING US INTO SLAVERY BECAUSE YOU ARE MAKING MONEY OFF US. YOUR CITY MANAGER SHOULDN'T BE ABLE TO IGNORE PEOPLE.

>> MAYOR ISHII: I'M SORRY. THANK YOU FOR YOUR COMMENT.

>> SO IT'S OBVIOUS THAT THE CITY ISN'T DOING WHAT THEY NEED TO DO WHEN. AND IN NO WAY SHOULD YOU DO THIS ITEM. YOU SHOULD LET THE PEOPLE STAY THERE, PROVIDE SERVICES, TREAT THEM LIKE THEY ARE HUMAN BEINGS, WHICH THEY ARE. WHICH WE KNOW YOU DON'T CARE

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ABOUT HUMANITY BECAUSE YOU DON'T GIVE A SHIT ABOUT PALESTINE AND THE INHUMANE TREATMENT THAT'S GOING ON OVER THERE, SO WHY WOULD YOU CARE ABOUT THE BERKELEY CITIZENS THAT LIVE ON THE STREETS OF BERKELEY? WELL WAKE UP. LOOK AT ME, Y'ALL. HELLO? PAY ATTENTION. IT'S NOT FUNNY EITHER. IT'S SAD THAT YOU ALL JUST SIT THERE WITH A DUMB GRIN ON YOUR FACE BECAUSE YOU ACTUALLY DON'T GIVE A CRAP ABOUT ANYTHING.

>> MAYOR ISHII: DO YOU HAVE COMMENTS ON THIS ITEM?

>> I AM TALKING ABOUT THE ITEM. I SWEAR TO GOD. IF I COULD, I WOULD SLAP YOU RIGHT ACROSS THE FACE.

>> MAYOR ISHII: THAT IS COMPLETELY INAPPROPRIATE.

>> YOU ARE BEING SO RUDE.

>> MAYOR ISHII: THAT'S INAPPROPRIATE BEHAVIOR. IT'S NOT RUDE OF ME TO KEEP YOU ON TRACK. WE HAVE AN ITEM.

>> IT'S RUDE BECAUSE MY TRACK IS NOT YOUR TRACK AND I CAN SAY WHAT I WANT WHEN I WANT TO SAY IT.

>> MAYOR ISHII: THAT'S CLEAR CHERYL BUT YOU HAVE GOT 47 SECONDS. IF YOU COULD LIKE TO SPEAK ON THIS ITEM, I WOULD LIKE YOU TO SPEAK AND FOCUS ON THAT.

>> I AM SPEAKING ON THIS ITEM. THEY ARE ASKING YOU TO TREAT THEM LIKE HUMANS. BUT YOU'RE NOT. YOU'RE NOT EVEN SHOWING THE RESPECT OF THIS ELDER IN FRONT OF YOU. YOU NEVER DO. NONE OF YOU DO. SHOW SOME RESPECT! YEAH, YOU MIGHT GET A LITTLE ELEVATED BECAUSE

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I'M SO EFFING TIRED HOW YOU TREAT ME AND HOW YOU TREAT THE PUBLIC. YOU DON'T LISTEN. ALBANY CITY COUNCIL LISTENED TO THE PUBLIC LAST NIGHT.

>> MAYOR ISHII: I'M NOT HEARING YOU SPEAK ABOUT THIS ITEM.

>> THAT'S BECAUSE YOU'RE NOT HEARING ME AT ALL. YOU NEVER DO.

>> MAYOR ISHII: I'M LETTING YOU TALK.

>> FREE PALESTINE, FREE THE PEOPLE. LISTEN TO THE PEOPLE. GET OVER YOUR EGOS.

>> MAYOR ISHII: YOUR TIME IS UP.

>> CITY CLERK: FIRST COMMENTER ONLINE IS FRIENDS OF FIVE CREEKS. THIS IS FOR ITEM 15, KARL STONE STREET. CARLETON STREET. FRIENDS OF FIVE CREEKS.

>> YES, MY NAME IS SUSAN SCHWARTZ, THE LONG TIME HEAD OF FRIENDS OF FIVE CREEKS, AN OWNERSHIP GROUP ON THE NARROW QUESTION, OUR OBJECTION TO VACATING THIS STREET WITHOUT TREATMENT OF THE STORM WATER WHICH THREATENS BOTH POLLUTION TO AQUATIC PARK AND FLOODING IN WEST BERKELEY. WE WITHDRAW OUR OBJECTION AND APPRECIATE THE PUBLIC WORKS AND BAYER HAVE WORKED TOGETHER. AND BAYER WILL PROVIDE TREATMENT. WE URGE YOU TO MAKE THIS A MATTER OF POLICY IN FUTURE VACATIONS, WHICH I NOW UNDERSTAND ARE REQUIRED BY STATE LAW. AND I APOLOGIZE THAT I SAID THAT THE CITY WAS GIVING THIS AWAY. YOU REALLY DIDN'T HAVE A CHOICE. AS I UNDERSTAND IT NOW. I'M NOT A LAWYER. BUT IN ADDITION TO OTHER

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MATTERS, YOU SHOULD REQUIRE BECAUSE OF THE FUTURE OF CLIMATE CHANGE THAT THE PROPERTY OWNERS AND THE CITY HANDLE HOW YOU ARE GOING TO TREAT THE URBAN RUN-OFF IN ADVANCE. FINALLY, WE LOOK FORWARD SINCE THE CITY IS WORKING ON A PLAN FOR THESE CHANGES TO SOME SORT OF PUBLIC HEARING BEFORE THAT PLAN IS FINAL TO DISCUSS THIS AND OTHER ISSUES WHICH WILL BE VERY SERIOUS WHEN WE HAVE A DELUGE, I KNOW IT SEEMS DISTANT NOW. THANK YOU SO MUCH.

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS ELANA AUERBACH.

>> HELLO, THIS IS ELANA AUERBACH. WHAT IS THE PLAN FOR THE PEOPLE WHO ARE LIVING THERE? I KNOW THE CITY MANAGER IS LOOKING INTO SITES WHERE YOU CAN HAVE SANCTIONED ENCAMPMENTS BUT WHILE THAT IS HAPPENING YOU HAVE HEARD FROM SOME OF THE PEOPLE LIVING AT CARLETON. THEY ARE VERY REASONABLE. AND THEY ARE COMMUNITY MEMBERS AND SOUNDS LIKE PERHAPS BAYER WOULD EVEN BE ABLE TO MAKE AGREEMENTS. I LIVE NEAR OHLONE PARK. THERE WERE MANY, MANY NEIGHBORS WHO WANTED TO HAVE AN AGREEMENT WITH THE PEOPLE WHO WERE LIVING IN THE PARK. IF WE COULD HAVE, UNTIL THEY COULD GET PERMANENT HOUSING, OR UNTIL ONE OF THESE SANCTIONED ENCAMPMENTS COULD BE ESTABLISHED. INSTEAD OF JUST CAPITULATING, AS THE PREVIOUS COMMENTER SAID, TO THE FAR RIGHT SUPREME COURT'S DECISION, YOU CAN BE CREATIVE. YOU CAN BE COMPASSIONATE AND KIND AND COLLABORATE WITH THE PEOPLE WHO ARE UNHOUSED, ALONG WITH THE

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PEOPLE WHO ARE HOUSED. WE CAN SOLVE THIS. IT IS NOT ROCKET SCIENCE, PEOPLE. PLEASE FIND A PLACE, AN ALTERNATIVE PLACE FOR THESE PEOPLE TO LIVE WHERE THEY CAN STAY, WHERE THEY WON'T BE HYPED UP ON ANXIETY AND HAVE TO EVERY COUPLE OF HOURS COME BACK IS THERE STUFF STILL GOING TO BE THERE? YOU CAN MAKE A HUGE DIFFERENCE. IT'S NOT DIFFICULT. IT JUST TAKES THE POLITICAL WILL TO DO IT. AND PLEASE LEAD WITH YOUR HEART, THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: OKAY, NEXT IS DANIEL BROWNSON.

>> JUST TO ECHO WHAT OTHER PEOPLE HAVE ALREADY SAID. LIKE I FEEL LIKE WITH ALL THE SWEEPS WHICH HAVE GOTTEN MORE FREQUENT BECAUSE OF WHAT SOMEONE ELSE ALREADY SAID ABOUT THE SUPREME COURT CASE, ALL IT DOES IS JUST SHOVE PEOPLE AROUND AND AROUND AND AROUND THE CITY. AND MAYBE THE HOPE IS THAT MAKING LIFE SO MISERABLE FOR THEM THEY WILL EVENTUALLY LEAVE. BUT IF THEY HAD SOMEWHERE TO GO, THEY ALREADY WOULD HAVE GONE THERE, THAT IS KIND OF THE WHOLE PROBLEM IS THAT THEY DON'T HAVE ANYWHERE TO GO. NO ONE WANTS TO LIVE ON THE STREET. IF THEY HAD SOMEWHERE THAT WASN'T AT RISK OF BEING SWEPT THEY WOULD GO THERE. I THINK A DIALOGUE NEEDS TO HAPPEN TO ACTUALLY GET SOME SORT OF MUTUAL SOLUTION, RATHER THAN ANOTHER VIOLENT SWEEP.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: THAT'S THE LAST SPEAKER.

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>> MAYOR ISHII: OKAY. SO NOW. I JUST WANT TO MAKE SURE. [DOG BARKING]

>> MAYOR ISHII: OKAY. SORRY. SOME DISTURBANCE IN THE ROOM. SORRY, ARE THERE QUESTIONS? FROM FOLKS? I WOULD LIKE TO ASK THE CITY MANAGER IF YOU COULD TALK THROUGH A LITTLE BIT WHAT THIS WOULD LOOK LIKE, A LITTLE BIT MORE IN TERMS OF HANDING IT OVER?

>> CITY MANAGER BUDDENHAGEN: SURE. SO TONIGHT IS THE FIRST READING. IF YOU PASSED THAT THERE WOULD BE A SECOND READING A WEEK FROM TODAY, TUESDAY THE 29TH. AT THAT POINT IF THAT PASSED THROUGH, THE VACATION WOULD GO INTO EFFECT. WE WOULD HAVE H.R.T. STAFF GO OUT THERE AND TALK WITH PEOPLE. AS SOME OF THE SPEAKERS MENTIONED WE ARE LOOKING FOR SEPARATELY, PER YOUR MAY 20TH REFERRAL, OTHER SITES FOR SANCTIONED ENCAMPMENT WITH STAFF ON SITE, LIKE A GRAYSON SORT OF MODEL. ALSO APPLIED IN CONJUNCTION WITH A NONPROFIT FOR THE COUNTY HOMELESS HOUSING PROJECT, IN WHICH CASE THAT'S ANOTHER SPOT THAT IF THAT WERE FUNDED WE WILL SEE WHAT THE COUNTY DOES WITH MEASURE W, OBVIOUSLY AND THIS SOLICITATION THEY PULLED BACK BUT PROMISED THEY WOULD PUT BACK FORWARD WOULD BE AN OPPORTUNITY FOR PEOPLE TO GO BACK. OBVIOUSLY, THE PROBLEM IS WE DO NOT HAVE SUFFICIENT HOUSING AND SHELTER FOR THE PEOPLE WHO NEED IT, WHICH IS WHY WE HAVE A HOMELESS CRISIS, NOT JUST IN BERKELEY BUT ACROSS THE COUNTY AND COUNTRY. TO THE EXTENT WE HAVE SHELTER OPPORTUNITY WE WOULD

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OFFER THAT. AND TO THE EXTENT WE DON'T, WE DON'T. SO IT'S A BALANCING OF, YOU KNOW, THIS STREET VACATION FOR THE PURPOSES OF BAYER BEING ABLE TO DO THEIR BUSINESS AND ALSO TRYING TO FIGURE OUT HOW TO WORK WITH THE PEOPLE WHO ARE THERE.

>> MAYOR ISHII: THANK YOU. I APPRECIATE THAT. COUNCILMEMBER TAPLIN?

>> T. TAPLIN: I MOVE ADOPTION OF THE FIRST READING.

>> CITY CLERK: WE HAVE TO CLOSE THE PUBLIC HEARING.

>> MAYOR ISHII: I JUST WANT TO MAKE SURE, DID YOU HAVE A QUESTION, COUNCILMEMBER BLACKABY?

>> B. BLACKABY: THANK YOU, MADAM MAYOR. CITY MANAGER, CAN YOU SPEAK BRIEFLY THE ECONOMIC IMPACT TO THE CITY. AS I UNDERSTAND THIS ACTUALLY IMPROVES THE CITY'S FINANCIAL SITUATION AND GENERATES REVENUE IF WE DO THIS. CAN YOU SPEAK TO THAT?

>> CITY MANAGER BUDDENHAGEN: YES, COUNCILMEMBER. AS JENNIFER CAULEY FROM BAYER CAME UP AND SPOKE, BAYER IF NOT THE SINGLE BIGGEST, THE BIGGEST CONTRIBUTOR TO THE CITY'S TAX BASE THAT WE HAVE. THEY ARE A MULTI-NATIONAL CORPORATION THAT PRODUCES IMPORTANT MEDICATIONS FOR THE WORLD. AND PRODUCES IMPORTANT TAX REVENUES FOR THE CITY, UPWARDS OF $1 MILLION A YEAR, CONSIDERABLY MORE, ACTUALLY, I CAN'T GO INTO SPECIFIC FIGURES ON THAT, BUT YOU KNOW, BAYER IS ONE OF OUR BIGGEST CORPORATE TAX PARTNERS THAT WE HAVE IN THE CITY.

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>> B. BLACKABY: SO IN EFFECT WE INCREASE PROPERTY TAX REVENUE, WE REDUCE SOME MAINTENANCE REVENUE BY BASICALLY ASSIGNING THE RESPONSIBILITY FOR MAINTENANCE TO BAYER. SO IN A SENSE WE REDUCE COST, INCREASE REVENUE AND GENERATE ADDITIONAL FUND WE CAN USE FOR OTHER USEFUL PROGRAMS?

>> CITY MANAGER BUDDENHAGEN: THAT'S CORRECT, COUNCILMEMBER.

>> B. BLACKABY: THANK YOU.

>> MAYOR ISHII: THANK YOU. SORRY, GO AHEAD, COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: I HAVE ONE MORE QUESTION, WE COVERED MOST OF THE THINGS THAT WERE IMPORTANT TO DISCUSS AFTERWARDS AND WE CAN DO THE MOTION. BUT A NUMBER OF PEOPLE WHO SPOKE TONIGHT WHO WERE UNHOUSED SPOKE ABOUT CONCERN OVER THEIR BELONGINGS SHOULD THEY BE FORCED TO MOVE. COULD YOU SPEAK BRIEFLY HOW THE CITY HANDLES THAT.

>> CITY MANAGER BUDDENHAGEN: COULD YOU SAY THAT AGAIN?

>> S. O'KEEFE: HOW DOES THE CITY HANDLE PEOPLE'S BELONGINGS WHEN ENCAMPMENT OR A PERSON ON THE STREET IS BEING ASKED TO MOVE. A LOT OF PEOPLE EXPRESSED FEAR ABOUT THAT. COULD YOU BRIEFLY SUMMARIZE OUR POLICY?

>> CITY MANAGER BUDDENHAGEN: SURE. AND OF COURSE THAT'S AN UNDERSTANDABLE FEAR IF YOU HAVE TO MOVE AND HAVE A LOT OF STUFF AND CAN'T MOVE IT ALL. WE HAVE A POLICY WHEREBY WE STORE

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BELONGINGS AT THE CITY OF BERKELEY PUBLIC WORKS CORPORATION YARD. NOTICE IS GIVEN TO WHOEVER THE PERSON IS THAT HAS BELONGINGS THAT THEY WISH TO HAVE STORED THEY AREN'T SOILED, OR NOT STORABLE, WE HAVE CLEAR GUIDELINES WHAT CONSTITUTES STORABLE ITEMS. THOSE ITEMS ARE THEN TAKEN TO THE CORP YARD; THE PERSON IS LEFT WITH THE PHONE NUMBER AND LOCATION THEY CAN PICK IT UP. THEY CAN CALL TO SCHEDULE A TIME TO PICK IT UP AND WE HOLD IT THERE AT THE CORP YARD FOR 30 DAYS.

>> S. O'KEEFE: THANK YOU.

>> MAYOR ISHII: THANK YOU. IS THERE A MOTION TO CLOSE THE PUBLIC HEARING? DID YOU MOVE THAT?

>> SO MOVED.

>> SECOND.

>> MAYOR ISHII: COULD YOU TAKE THE ROLL, PLEASE CLERK.

>> CITY CLERK: TO CLOSE THE PUBLIC HEARING, COUNCILMEMBER KESARWANI?

>> YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

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>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES. WE ARE MOVING ONTO COUNCIL DELIBERATIONS. DO FOLKS HAVE ANY OTHER COMMENTS THEY WANT TO ADD? ANYBODY ONLINE? OKAY, I JUST WANT TO MAKE A COMMENT AND THANK THE CITY MANAGER FOR SHARING THAT INFORMATION. WE RECOGNIZE THAT WE ARE IN A CRISIS. AND EARLIER TODAY COUNCILMEMBER TREGUB AND I SPOKE AT THE BOARD OF SUPERVISORS MEETING, SPECIFICALLY TO ADVOCATE FOR MEASURE W FUNDING WHICH GOES TOWARDS HOMELESSNESS. I JUST WANT FOLKS TO KNOW WE ARE DOING A LOT OF WORK TO ADVOCATE FOR MORE FUNDING AND FIND THE LOCATIONS THAT THE CITY MANAGER MENTIONED. WE RECOGNIZE THIS IS A REALLY SERIOUS ISSUE AND I WANT TO THANK EVERYONE FOR COMING TO MAKE COMMENTS FOR THAT. I THINK IT IS SO IMPORTANT WE ARE CONSIDERING OUR UNHOUSED POPULATIONS AND THE IMPACTS OUR DECISIONS HAVE ON THEM. SO THANK YOU. OKAY. I THINK YOU WERE GOING TO MAKE A MOTION.

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>> T. TAPLIN: THANK YOU, MAYOR. I MOVE ADOPTION OF THE FIRST READING.

>> R. KESARWANI: SECOND.

>> CITY CLERK: OKAY. TO APPROVE FIRST READING OF THE ORDINANCE, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: ABSTAIN.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: OKAY, MOTION CARRIES.

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>> MAYOR ISHII: OKAY, I WOULD LIKE US TO TAKE A BREAK. WE HAVE BEEN HERE A COUPLE HOURS WE SHOULD STRETCH. WE HAVE ITEM 16 AFTER THIS AND THEN 17.

>> CITY CLERK: AND THEN 11.

>> MAYOR ISHII: AND THEN 11. ACTUALLY, MAYBE WE SHOULD DO 11. MR. CITY MANAGER, DO YOU HAVE THOUGHTS --

>> CITY MANAGER BUDDENHAGEN: I WOULD DO 11 LAST.

>> MAYOR ISHII: 11, LAST. 16, 17, 11. THANK YOU. WE WILL BE BACK IN 10 MINUTES. [RECORDING STOPPED] [BREAK] [BREAK] [RECORDING IN PROGRESS]

>> MAYOR ISHII: OKAY, HI. WE ARE BACK IN SESSION. ARE FOLKS READY? OKAY. OH WAIT, OKAY, WE HAVE A QUORUM. ALL RIGHT, SO FOLKS ONLINE, COUNCILMEMBERS, JUST SO YOU KNOW, WE ARE COMING BACK. MARK, ARE WE GOOD TO GO?

>> CITY CLERK: WE ARE RECORDING AND HAVE OUR MICROPHONES AND EVERYTHING.

>> MAYOR ISHII: VERY GOOD. ALL RIGHT, FOLKS WE ARE IN THE ACTION CALENDAR AND GOING THROUGH PUBLIC HEARINGS. WE WILL MOVE ONTO ITEM 16, THE MEMORANDUM OF UNDERSTANDING COMPENDIUM, AGREEMENTS WITH OTHER LAW ENFORCEMENT AGENCIES AND PRIVATE ORGANIZATIONS. AND I BELIEVE WE HAVE A PRESENTATION. NO, WE DO NOT.

>> NO PRESENTATION, HAPPY TO ANSWER ANY QUESTIONS THAT COUNCIL HAS.

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>> MAYOR ISHII: VERY GOOD. IN THAT CASE I WILL OPEN THE PUBLIC HEARING. DO FOLKS HAVE QUESTIONS? WE CAN START WITH PUBLIC COMMENT, ACTUALLY. DOES ANYONE HAVE PUBLIC COMMENT ON ITEM 16?

>> CITY CLERK: THIS IS THE MEMORANDUM OF UNDERSTANDING COMPENDIUM AGREEMENTS WITH OTHER LAW ENFORCEMENT AGENCIES, PUBLIC COMMENT? NOW IS THE TIME.

>> SORRY, I'M NEW AT THIS THING, I'M A RECOVERING ELDER COMING TO JOIN YOU FOLKS AND VISIT A LOT. I'M VERY CONCERNED ABOUT THESE OTHER LAW ENFORCEMENT AGENCIES AND PRIVATE ORGANIZATIONS. I MEAN, THAT IS LIKE SO OBSCURE AND NOT FOCUSED. I HAVE NO IDEA WHAT THAT MEANS. I WOULD LIKE TO SEE A LIST WHO THESE PEOPLE WOULD BE. WOULD THIS BE WITH I.C.E. WITH COMPUTER A.I. ORGANIZATIONS THAT COULD BE GIVING HELP TO OUR POLICE? I'M JUST VERY CONCERNED THAT, YOU KNOW, AND THE WHOLE THING, WHAT IS THIS ACCEPTING ATTACHED SUSPICIOUS ACTIVITY REPORT? SAR. I DON'T SEE ANY ATTACHMENT. PERHAPS THERE'S A LINK SOMEWHERE. THIS SEEMS LIKE A VERY INCOMPLETE ITEM. AND SO, WHAT WOULD BE SUSPICIOUS ACTIVITY? SOMEBODY WANDERING AROUND TALKING TO THEMSELVES OR BEATING ON A DOOR OR SOMETHING? THAT WOULD BE A PSYCHIATRIC THING. SO IS THAT A POLICE ISSUE? YOU WOULD BE COMBINING WITH CALLING OUT POLICE FOR ALL KINDS OF ACTIVITIES? MUTUAL AID REQUEST, THIS LOOKS LIKE SOMETHING WHERE YOU MIGHT BE CALLING IN OTHER POLICE DEPARTMENTS TO QUELL RIOTS? WHAT IS THIS ABOUT?

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THIS DOESN'T REALLY SEEM TO ME, THIS IS KIND OF LIKE A BLANK CHECK. YOU KNOW, YOU CAN JUST ASK FOR IT AND MAYBE YOU WILL GET OUR HELP. WE DON'T KNOW WHAT IT IS YET, BUT WE WILL GO HELP WHATEVER ANYBODY ASKS US TO DO. I FEEL VERY UNCOMFORTABLE WITH THE IDEA THAT, YOU KNOW, THEN WHEN DO PEOPLE GET TO LOOK AT THESE OTHER LAW ENFORCEMENT AGENCIES? DO WE GET TO DECIDE OR FIND OUT?

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT. GO AHEAD.

>> HI. I'M FORMERLY A LONG-TERM BERKELEY RESIDENT, RAISED IN BERKELEY, ATTENDED BERKELEY PUBLIC SCHOOLS. I'M REALLY CONCERNED ABOUT THE LENGTH OF TIME IT TOOK FOR US TO RECEIVE THIS BARRAGE OF M.O.U.'S FROM THE POLICE DEPARTMENT. MY UNDERSTANDING IS THE LAST TIME WE SAW A COMPENDIUM OF THIS WAS IN 2018. AND WE SHOULD HAVE SEEN ONE EVERY SINGLE YEAR AND HAD OPPORTUNITY FOR PUBLIC COMMENT AND COUNCIL APPROVAL AND WE DIDN'T, IS MY UNDERSTANDING. SO WHAT FAILURE TOOK PLACE FOR THE LAST SEVEN YEARS THAT PREVENTED THAT FROM HAPPENING? AND HOW IS THAT GOING TO BE PREVENTED FROM HAPPENING GOING FORWARD? BECAUSE AS OF NOW, I THINK WE ARE JUST KIND OF TRUSTING THAT B.P.D. IS GOING TO BE TRANSPARENT AND WILLING TO SHARE INFORMATION AND CLEARLY THEY AREN'T, SO. I WOULD LOVE FOR SOME COUNCILMEMBERS TO ASK SOME SUBSTANTIVE QUESTIONS AND HARD QUESTIONS FROM B.P.D. ABOUT WHAT THEY HAVE PLANNED. SO THAT'S ALL. THANK YOU.

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>> MAYOR ISHII: THANK YOU. ARE THERE OTHER PUBLIC COMMENTS HERE IN PERSON? OR FOLKS ONLINE?

>> CITY CLERK: CURRENTLY WE HAVE FIVE HANDS RAISED ONLINE. AGAIN THIS IS FOR THE ITEM 16, MEMORANDUM OF UNDERSTANDING COMPENDIUM. WE HAVE OUR FIRST SPEAKER IS CHERYL DAVILA, FORMER COUNCILMEMBER.

>> YEAH, SO WE ARE A SANCTUARY CITY. AND WE'RE NOT SUPPOSED TO BE DOING ANYTHING WITH I.C.E. AND I ECHO WHAT WAS PREVIOUSLY SAID BY THE LAST SPEAKER. WHAT HAPPENED TO WHAT YOU WERE SUPPOSED TO DO AND WHY WASN'T IT DONE? IT SEEMS THE WHOLE TIME I'VE BEEN GONE NOTHING HAS BEEN DONE, BECAUSE WHEN I WAS ON COUNCIL I WAS TRYING TO MAKE THE POLICE BE ACCOUNTABLE, TRANSPARENT, IT DOESN'T SEEM LIKE ANY OF Y'ALL ARE DOING THAT. AND YOU NEED TO MAKE THEM, MAKE SURE THAT, YOU KNOW, WE COULD BE DEALING WITH MARTIAL LAW, WHAT DOES THAT MEAN, THEY ARE GOING TO COOPERATE WITH OUTSIDE FORCES, LITERALLY? THE ARMED FORCES? AND B.P.D. IS ARMED. SO WHAT DOES THAT LOOK LIKE FOR OUR COMMUNITY? ARE YOU GOING TO KEEP US SAFE? NO, I HOPE YOU WOULD. BUT IT SOUNDS LIKE YOU MIGHT BE TRYING TO COOPERATE WITH OTHER AGENCIES THAT YOU'RE NOT SUPPOSED TO BECAUSE WE ARE A SANCTUARY CITY. YOU NEED TO MAKE SURE YOU ASK THOSE KINDS OF QUESTIONS AND GET THOSE ANSWERS AND BE TRANSPARENT ABOUT WHAT'S GOING ON AND PLEASE DON'T GIVE THEM ANY MORE WEAPONS. THANK YOU.

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>> MAYOR ISHII: THANKS. ARE THERE OTHER PUBLIC COMMENTS?

>> CITY CLERK: YES, WE HAVE JOSH CAYETANO.

>> MAYOR ISHII: JOSH, ARE YOU THERE?

>> HI. CAN YOU ALL HEAR ME? MADAM MAYOR AND COUNCILMEMBERS, I'M JOSH CAYETANO, THE CHAIR OF THE POLICE ACCOUNTABILITY BOARD. THE ACCOUNTABILITY BOARD WANTS TO THANK THE DEPARTMENT FOR THE ISSUANCE OF THE M.O.U. BEFORE THE AUGUST BREAK. WE FLAGGED FOR THE DEPARTMENT IN SPRING THIS YEAR THAT THE M.O.U. HADN'T BEEN SUBMITTED SINCE JULY 2018, WHICH WAS SEVEN YEARS AGO. EVEN THOUGH BERKELEY'S MUNICIPAL CODE SAYS ANY AGREEMENT OR POLICY IS ONLY EFFECTIVE FOR ONE YEAR AND MUST BE RENEWED THEREAFTER. WE ALSO FLAGGED THE PREVIOUSLY SUBMITTED COMPENDIUM INCLUDED UNDERSTANDINGS WITH A FEDERAL IMMIGRATION AGENCY EVEN THOUGH THEY DIDN'T REFLECT FORMAL AGREEMENTS. THE P.A.B. IS PLEASED TO SEE THESE GENERAL UNDERSTANDINGS HAVE BEEN REMOVED FROM THE COMPENDIUM AND THE CITY MANAGER PLANS TO INCREASE THE RENEWAL TO EVERY YEAR TO EVERY THREE YEARS. THE POLICE ACCOUNTABILITY BOARD STILL RETAINS THE AUTHORITY UNDER ITS CHARTER TO REVIEW THE M.O.U. AT ITS DISCRETION SO THAT OVERSIGHT WON'T GO AWAY, EVEN IF THE PROPOSAL TO RENEW THAT EVERY THREE YEARS IS CHANGED. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: OKAY, NEXT SPEAKER WE HAVE IS ELANA AUERBACH.

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>> HI THERE. THIS IS ELANA. I WANTED TO REMIND YOU TO ASK THE CHIEF ABOUT WHEN THE REPORT OF AB 481, I THINK IT IS, ABOUT THE EQUIPMENT, WHEN THAT WILL BE MADE PUBLIC. IF IT'S ALREADY ONLINE AND IF THERE WILL BE, WHEN THERE WILL BE A COMMUNITY MEETING ABOUT THAT REPORT. AS WELL AS MAKING SURE, THANK YOU, I REALLY APPRECIATE THE POLICE ACCOUNTABILITY BOARD DIRECTOR COMING ON AND EXPLAINING WHAT HAD HAPPENED. SO APPRECIATE THE POLICE OVERSIGHT AND WOULD REALLY APPRECIATE SOME GOOD QUESTIONS FROM THE COUNCIL ABOUT HOW WE CAN ENSURE THAT WHAT HAPPENED IN LOS ANGELES WHEN TRUMP ORDERED THE NATIONAL GUARD AND THE MARINES TO BE THERE, WE SAW LAPD WAS BACKING THEM UP. SO WHAT IS THE PLAN IF THAT HAPPENS HERE? AND HOW ARE WE ASSURING OURSELVES THAT B.P.D. IS NOT JUST GOING TO FALL IN LINE BEHIND I.C.E. AGENTS AND THE MARINES? THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: OKAY, WE HAVE DANIEL BROWNSON.

>> YEAH, I ECHO ELANA'S COMMENTS. AND I WOULD BE WARY OF, AT THIS POINT SHARING ANY INFORMATION WITH FEDERAL LAW ENFORCEMENT AGENCIES UNLESS COMPELLED TO DO SO. BECAUSE EVEN IF LEGALLY THEY CAN'T SHARE ACROSS DEPARTMENTS, WE KNOW THAT TRUMP AND THIS ADMINISTRATION DOES NOT CARE ABOUT WHAT THEY ARE LEGALLY ALLOWED TO DO. IF ANY FEDERAL DEPARTMENT HAS INFORMATION WE GAVE THEM, THEY CAN THEN JUST GET THAT INFORMATION, I.C.E. CAN GET THAT

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INFORMATION AND USE IT TO HURT PEOPLE IN OUR COMMUNITY. SO I WOULD BE VERY WARY OF JUST AGREEING TO SOME OF THESE M.O.U.'S WITH FEDERAL AGENCIES. ALSO, IT'S A HUGE OMNIBUS. IT SHOULD BE CONSIDERED VERY CAREFULLY.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS MONI.

>> GOOD EVENING, COUNCIL AND COMMUNITY. I WANTED TO BRIEFLY STATE THAT I'M CONCERNED THAT BIG BROTHER GEORGE WELLIAN STYLE INTERVENTION IN OUR COMMUNITY WOULD BE UNHEALTHY FOR ALL. AND I ECHO THE REMARKS OF FORMER COUNCILMEMBER CHERYL DAVILA AS WELL AS OTHER SPEAKERS. WE NEED REASSURANCE IN THAT THE CASE OF LAW VERSUS CITY OF BERKELEY, I ENCOURAGE YOU TO READ IT, IT'S A FEDERAL COURT CASE THAT IMPOSED A NUMBER OF REQUIREMENTS UPON OUR POLICE DEPARTMENT THAT HAVE NOT BEEN MADE CLEAR OR IMPLEMENTED. WHEN THEY USED BATONS TO MY BACK AND FLASH BANGS AND OTHER WEAPONS OF HARM WE NEED TO MAKE SURE THAT DOESN'T HAPPEN AGAIN WITH THIS HEIGHTENED SENSE, BY THIS ALLEGED PRESIDENT. OTHERS FELT IT WASN'T ADEQUATELY ADDRESS. FINALLY IN THE COURT ORDER WE WANT TO MAKE SURE AS WAS STATED WE DON'T HAVE THE LOS ANGELES SITUATION WHERE PEOPLE ARE GOING TO BE SNATCHED, KIDNAPPED, DEPORTED, HARASSED FOR PEACEFUL PROTESTING WHICH IS WHAT WE WERE DOING IN 2016 DURING BLACK LIVES MATTER PROTESTS. I DO HOPE YOU WILL ACT FIRMLY TO ENSURE OUR POLICE DEPARTMENT

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DOESN'T BECOME A MILITARIZED ZONE WHERE WE ARE THE HOME OF THE FREEDOM OF SPEECH MOVEMENT, THE SANCTUARY MOVEMENT, THE ANTI APARTHEID MOVEMENT AND OTHER MOVEMENTS. LET'S STAY TRUE TO OUR HISTORY, OUR WORD, WHICH SHOULD NOT TURN THE WAY THE UNITED STATES IS GOING NATIONWIDE. THANK YOU FOR YOUR TIME AND PLEASE SERVE WITH PEACE AND JUSTICE ON OUR HEARTS AND MINDS. THANK YOU.

>> MAYOR ISHII: THANK YOU, MONI.

>> CITY CLERK: LAST SPEAKER IS GEORGE LIPPMAN.

>> YES, GOOD EVENING AGAIN. GEORGE LIPPMAN FORMER CHAIR OF THE POLICE REVIEW COMMISSION. I AM HAPPY TO SEE ALL THIS ATTENTION FOR THE MEMORANDUMS OF UNDERSTANDING. IN BRIEF, THIS IS SOMETHING THAT THE OVERSIGHT FOLKS -- OH BY THE WAY, I HAVE A MINUTE FROM JUDY ANNE ALBERTI, IF SHE IS STILL ON. YEAH, SO OVERSIGHT AND ACCOUNTABILITY FOLKS HAVE BEEN PUSHING FOR THIS, WHAT WAS PASSED IN 1973. THE TIME OF BIRTH OF THE P.R.C. ITSELF. THERE IS A LOT OF WORK THAT HAS BEEN DONE ON THIS. AND I WANT TO ENCOURAGE PEOPLE TO BE IN TOUCH WITH THE POLICE ACCOUNTABILITY BOARD AND OFFICE OF POLICE ACCOUNTABILITY BECAUSE IT'S IMPORTANT FOR PEOPLE TO GET A DEEPER UNDERSTANDING OF THE IN'S AND OUT'S OF IT ARE. I'M CONCERNED ABOUT THE TIMING. IT IS ACTUALLY NOT LEGAL TO MAINTAIN THESE RELATIONSHIPS, IF THEY ARE NOT APPROVED EVERY SINGLE YEAR. SO I DON'T KNOW IF THE COUNCIL HAS BEEN APPROVING IT BUT THE P.A.B. HAS NOT HAD ITS STATUTORY REVIEW. SO

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THOSE AREN'T ACTUALLY LEGAL, AS FAR AS I CAN TELL. I GREATLY RESPECT THE WORK THE P.A.B. IS DOING JUST ABOUT EVERYTHING, BUT I DON'T AGREE MOVING US BACK TO THREE YEARS. IN FACT, I THINK WE SHOULD DO THE OPPOSITE. THE CONCERNS HAVE BEEN RAISED BY OTHER MEMBERS OF THE COMMUNITY JUST NOW. WHAT REALLY SHOULD HAPPEN IS A REVIEW OF ALL NATIONAL FEDERAL ENTANGLEMENTS THAT WE HAVE. ASK THE P.A.B. TO DO THAT. LOOK AT EVERYTHING WE HAVE GOING WITH THE FEDERAL GOVERNMENT, NOT JUST IMMIGRATION, NOT JUST I.C.E., ALL THE OTHER IMMIGRATION AGENCIES AND EVERYTHING ELSE BECAUSE THEY ARE ALL REALLY ONE CROOKED ENTERPRISE.

>> MAYOR ISHII: THANK YOU, GEORGE. UNFORTUNATELY, THE OTHER PERSON YOU WERE HOPING TO GET A MINUTE FROM IS NOT ON THE CALL.

>> THANKS VERY MUCH.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: THAT'S IT FOR COMMENTERS ONLINE.

>> MAYOR ISHII: OKAY. THANK YOU VERY MUCH. COUNCIL, DID WE HAVE QUESTIONS? COUNCILMEMBER BLACKABY?

>> B. BLACKABY: THANKS, MADAM MAYOR. JUST A FEW QUESTIONS. GOOD TO SEE YOU, CHIEF. THESE ARE MOSTLY FOR YOU. FIRST, AS I WAS GOING THROUGH THE M.O.U.'S A COUPLE QUESTIONS. ONE IS I NOTED IN THE LIST THERE'S SOME ORGANIZATIONS THAT WE EXPLICITLY HAVE M.O.U.'S WITH AND OTHERS LIKE O.P.D. AND ALAMEDA COUNTY SHERIFF'S OFFICE THAT ARE COVERED BY MUTUAL AID POLICY 327. I

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WAS JUST WONDERING IF YOU CAN SPEAK TO, IS THERE RHYME OR REASON WHY WE HAVE SOME M.O.U.'S EXPLICITLY AND OTHER TIMES WE RELY ON MUTUAL AID POLICY. JUST CURIOUS YOUR COMMENTARY ON THAT.

>> GENERALLY SPEAKING IT JUST MAY DEPEND ON THE KIND OF INTERACTION, FOR EXAMPLE, WE HAVE A MEMORANDUM OF UNDERSTANDING WITH THE UNIVERSITY POLICE BECAUSE WE SHARE ACROSS JURISDICTIONAL LINES, SHARED PROPERTIES AND TO MAKE CLEAR IF AN INCIDENT OCCURS AT A CERTAIN LOCATION WHO WOULD BE RESPONSIBLE FOR IT? THINGS LIKE ALAMEDA COUNTY HAD A TASK FORCE WE WERE PART OF, SO WE HAD AN M.O.U. CREATED TO COVER THAT, WHICH HAS NOW BEEN RESCINDED BECAUSE IT EXPIRED. THERE'S GENERAL OPERATIONAL UNDERSTANDING THROUGH OUR MUTUAL AID AGREEMENTS ABOUT SUPPORTING OTHER JURISDICTIONS THAT NEED ASSISTANCE. SOMETIMES THERE ARE SPECIALTY CONTACTS THAT WOULD NECESSITATE OR AN AGENCY MIGHT PREPARE A MEMORANDUM OF UNDERSTANDING TO BE CLEAR ABOUT THAT HANDOVER. ANOTHER EXAMPLE IS C.H.P., AT WHAT POINT ON AN OFFRAMP DOES THE C.H.P. TAKE OVER OR POLICE TAKE OVER. WE WILL SEE WITH NEIGHBORING JURISDICTIONS IN A ROUTINE MANNER.

>> B. BLACKABY: THANKS. I NOTICED THE M.O.U. WITH B.U.S.D. IS PENDING UPDATE. IS THERE A SLOW-UP OR ROUTINE UPDATE THAT'S GOING ON?

>> YEAH, IF YOU LOOK AT THE VERSION THAT WAS IN THE PRIOR, IT WAS ACTUALLY JUST A LETTER BETWEEN ORGANIZATIONS. IT WASN'T A

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FORMAL M.O.U. THE WORK WE ARE DOING WITH THIS CURRENT VERSION OF THE M.O.U. IS TO ENSURE THERE ARE ACTUALLY WRITTEN AGREEMENTS ABOUT HOW YOU INTERACT. IT WAS MORE OF A VALUE STATEMENT HOW THEY WORK TOGETHER WITH SHARED INTEREST IN PROTECTING THE COMMUNITY INCLUDING THE SCHOOL. SO KNOWING THAT WE HAVE A SCHOOL RESOURCE OFFICER ON CAMPUS, KNOWING THAT WE INTERACT REGULARLY TO PROVIDE SECURITY FOR EVENTS ON CAMPUS, THE GOAL IS TO MOVE THAT TO A MORE OFFICIAL DESCRIPTION OF OUR UNDERSTANDING BETWEEN THE PARTIES AS TO RESPONSIBILITIES. AS YOU CAN IMAGINE, IT'S A FAIR AMOUNT OF WORK TO BASICALLY FROM SCRATCH DRAFT THAT KIND OF AGREEMENT. SO I ANTICIPATE THAT WILL TAKE SOME TIME IN PARTNERSHIP WITH THE SCHOOL DISTRICT AND THEIR TIMELINES TO GET THAT IN PLACE.

>> B. BLACKABY: THANKS. TWO OTHER THINGS WE HEARD DISCUSSION ABOUT THE TIMELINE AND P.A.B. SUGGESTED A THREE-YEAR TIMELINE. WOULD YOU SUPPORT AN ADJUSTMENT OF THE TIMELINE TO MAKE SURE MAYBE EVERY YEAR IS TOO FREQUENT, WE SETTLE ON A 2-3 YEAR TEMPO WHERE WE LOCK THAT IN AS A MATTER OF COURSE, RATHER THAN DOING IT EVERY YEAR? I'M JUST CURIOUS YOUR FEEDBACK ON THAT SUGGESTION?

>> YEAH, ABSOLUTELY, WE WOULD SUPPORT A LONGER REPORTING PERIOD. MOST OF THESE AGREEMENTS ARE DECADES-OLD. THINGS DON'T CHANGE. THE IDEA WE WOULD RETURN TO THEM ANNUALLY FOR FRESH SIGNATURES

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IS AN ADMINISTRATIVE BURDEN WITHOUT VALUE, NECESSARILY. SOME THINGS COME NEW EVERY YEAR, WE RECENTLY BROUGHT ON A PARTNERSHIP TO HAVE A.E.D.'S IN THE CONTROL VEHICLES TO RESPOND IF THERE'S A HEART ATTACK NEARBY. THAT REQUIRED A NEW MEMORANDUM OF UNDERSTANDING. SO THAT'S SOMETHING WE BROUGHT ON. IF THAT DROPPED OFF AFTER A YEAR OR TWO WE MIGHT WANT TO REMOVE THAT M.O.U. A LONGER PERIOD OF TIME WOULD ALLOW US TO BE MORE FLEXIBLE AND ADDRESS NEW ISSUES BUT ALSO NOT BURDENSOME FOR US TO CONTINUE TO REPORT REGULARLY. AGAIN, THIS REMAINS ONLINE. THOSE AGREEMENTS REMAIN ONLINE. EVEN THOUGH THE REQUIREMENT WAS TO BRING ANNUALLY, IT DID NOT STOP OUR ABILITY, THE ABSENCE OF A MEMORANDUM OF UNDERSTANDING WORKING WITH OUR REGION PARTNERS.

>> B. BLACKABY: YOU WOULD DO THAT UNDER THE GENERAL MUTUAL AID POLICY IN ANY EVENT?

>> THAT'S CORRECT.

>> B. BLACKABY: LAST QUESTION BECAUSE IT'S COME UP AND TO ASSUAGE CONCERNS. IF I.C.E. COMES AND ASKS SUPPORT FROM B.P.D. WHAT WOULD BE THE RESPONSE?

>> WE WOULD NOT BE PARTICIPATING IN THAT ACTIVITY.

>> B. BLACKABY: THANK YOU, CHIEF. APPRECIATE YOUR TIME.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER BARTLETT?

>> B. BARTLETT: THANK YOU. COUNCILMEMBER BLACKABY ASKED A COUPLE

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OF MY QUESTIONS. CHIEF, GOOD TO SEE YOU. MY MAIN QUESTION IS, I GUESS, OF THESE M.O.U.'S HAVE THERE BEEN SUBSTANTIAL CHANGES FOR THE ONES THAT WE HAVE CARRIED ON FOR ALL OF THESE YEARS?

>> SO IT'S A GREAT QUESTION AND WE REALLY TRIED TO ORGANIZE THIS COMPENDIUM IN A WAY THAT'S EASY TO UNDERSTAND, NOT ONLY FOR COUNCIL BUT PUBLIC TO FOLLOW THROUGH. YOU WILL SEE DETAILS ON AGREEMENTS THAT WERE JUST A SIGNIFICANT TORY UPDATE. IF WE RESCINDED SOMETHING WE EXPLAINED WHY WE RESCINDED IN REPLACEMENT, IF THERE WERE MAJOR CHANGES WE CALLED OUT WHAT THE CHANGES ARE. YOU CAN USE THE BEGINNING PART OF THE DOCUMENT TO BE A GUIDE. THE ANOTHER THING THE WAY IT'S SET UP, IT ORGANIZES BY TYPE OF AGREEMENT. I KNOW THERE WAS A PUBLIC COMMENT QUESTION ABOUT THE PRIVATE PARTY ORGANIZATIONS. SO IF YOU SEE ITS ORGANIZED IN A WAY YOU CAN TURN TO A SECTION AND SEE EXACTLY THOSE, WHAT CHANGES WERE MADE, WHAT THE AGREEMENTS WERE, TO PROVIDE THAT KIND OF DETAILED INFORMATION.

>> B. BARTLETT: AND LASTLY, I THINK IT WOULD BE HELPFUL FOR THE PEOPLE LISTENING TO HEAR, HOW DOES, I GUESS THE STATE LAW INTERPLAY WITH OUR PRACTICE? IN PARTICULAR THE SANCTUARY CITY STATE LAW?

>> WELL SO OUR DEPARTMENTAL POLICIES, CITY POLICIES ARE IN ALIGNMENT WITH STATE LAW. SO WE COULD MAKE GREATER PROTECTIONS AND STATEMENTS ABOUT OUR STATE SANCTUARY CITY VALUES BUT OUR

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CURRENT POLICIES ARE IN ALIGNMENT WITH THE LAW.

>> B. BARTLETT: OKAY, PERFECT. THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBERS, ARE THERE OTHER QUESTIONS HERE IN PERSON?

>> C. LUNAPARRA: I HAVE A QUESTION.

>> MAYOR ISHII: COUNCILMEMBER, I CAN'T SEE YOU, THANK YOU.

>> C. LUNAPARRA: THANK YOU SO MUCH, I'M NOT FEELING WELL, PLEASE BEAR WITH ME. I HAVE A QUESTION ABOUT ONE OF THE NEW M.O.U.'S, CAN YOU EXPLAIN A LITTLE MORE ABOUT THE MARSHAL SERVICE FUGITIVE TASK FORCE, WHAT IT IS AND HOW THE DEPARTMENT WOULD INTERACT WITH IT.

>> IT'S A GREAT QUESTION. THE WAY THAT WORKS IS IF WE ARE WORKING A CASE IN OUR INVESTIGATIVE UNIT, A CASE THAT OCCURRED IN OUR CITY AND WE IDENTIFY A SUSPECT FOR THAT CASE, HAVING A MEMBER ON THAT TASK FORCE ALLOWS US TO UTILIZE THAT PERSONNEL. A LOT OF TIMES THEY CAN ASSIST WITH OPERATIONS TO LOCATE, SIT, LOCATE AND WAIT FOR THAT SUSPECT TO BE AT A LOCATION WE KNOW THEY ARE IN. IT ENABLES, MULTIPLY OUR RESOURCES FOR OUR LOCAL CASES. SO IT'S ONE DIRECTIONAL IN THAT SENSE. IT'S US ASKING FOR HELP FOR LOCATING A SUSPECT FOR OUR CASE.

>> C. LUNAPARRA: GOT IT. OKAY, THANK YOU. THAT'S HELPFUL. I'M CURIOUS IF THE M.O.U.'S WITH D.H.S. ARE SIMILAR WITH THE U.S. CITIZENSHIP AND IMMIGRATION SERVICES, COASTGUARDS AND CUSTOMS

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IMPORT PROTECTION IF IT'S ALSO ONE-WAY?

>> WE DO NOT HAVE MEMORANDUMS OF UNDERSTANDING WITH THOSE ORGANIZATIONS.

>> C. LUNAPARRA: SORRY, I THINK I WAS MISUNDERSTANDING THE DOCUMENT. THANK YOU. CAN YOU EXPLAIN ALSO WHY THIS COMPENDIUM OF M.O.U.'S HASN'T BEEN BROUGHT BACK TO COUNCIL SINCE 2018?

>> ABSOLUTELY OF COURSE. A COUPLE THINGS HAPPENED, ONE BEING A PANDEMIC. THAT WAS ONE OF THE WORK ITEMS THAT WAS AGREED BY COUNCIL TO PAUSE DURING THE TIME WE WERE FOCUSED ON OUR RESPONSE TO THE PANDEMIC. ADDITIONALLY DURING THIS TIME PERIOD WE WERE UNDER A TRANSITION PROCESS FROM OUR GENERAL ORDERS TO THE LEX -- POLICY. THAT WORKED TO PRIORITY AMONG THE SUBCOMMITTEE WORK AND WORK THAT WENT TO TRANSITION THAT. AND OUR VERY LIMITED STAFF RESOURCES. AS YOU CAN IMAGINE PULLING THIS INFORMATION TOGETHER AND ENSURING IT WAS STILL ACCURATE, LOCATIONS OR ADDRESSES NAMED IN THESE STILL EXISTED. IT ALSO REQUIRES US TO GET THE SIGNATURES, COOPERATION AND RESPONSIVENESS BACK. IT WAS A TREMENDOUS LIFT. EXACTLY WHY WE ARE HOPING TO MOVE TO A LONGER REPORTING PERIOD.

>> C. LUNAPARRA: THANK YOU SO MUCH. AND THEN MY FINAL QUESTION, DO WE HAVE ANY FEDERAL AGENCIES WHERE WE HAVE KIND OF A TWO-WAY MEMORANDUM OF UNDERSTANDING? OR ARE THEY ALL ONE-WAY? DOES THAT MAKE SENSE?

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>> SO AGAIN, LIKE THE COMPENDIUM IS ORGANIZED BY ORGANIZATION OR TYPE OF ORGANIZATION. SO IF YOU LOOK AT CHAPTER, SORRY, TURN THE PAGE. CHAPTER 3 OF THE M.O.U. COMPENDIUM IT PROVIDES INFORMATION ON FEDERAL AGENCIES.

>> C. LUNAPARRA: OKAY, THANK YOU. THOSE ARE ALL MY QUESTIONS. THANKS.

>> MAYOR ISHII: THANK YOU. THANK YOU, COUNCILMEMBER. OKAY. ALL RIGHT, FOLKS. I THINK THAT WAS ALL OF THE QUESTIONS FROM COUNCIL. IS THERE A MOTION TO CLOSE THE PUBLIC HEARING?

>> SO MOVED.

>> I. TREGUB: SECOND.

>> MAYOR ISHII: CAN YOU TAKE THE ROLL, PLEASE, CLERK.

>> CITY CLERK: TO CLOSE THE PUBLIC HEARING. COUNCILMEMBER KESARWANI? TO CLOSE THE PUBLIC HEARING?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

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>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: OKAY.

>> MAYOR ISHII: MOVING ONTO COUNCIL DELIBERATIONS, DO FOLKS HAVE ANY COMMENTS THEY WOULD LIKE TO MAKE? YES, COUNCILMEMBER HUMBERT?

>> M. HUMBERT: THANK YOU, MADAM MAYOR. I WANT TO THANK CHIEF LOUIS AND ARLO AND EVERYONE AT B.P.D. FOR THEIR EXCELLENT AND HARD WORK ON THESE M.O.U.'S AND THE COMPENDIUM. I DIDN'T REALIZE QUITE HOW MUCH WORK WENT INTO IT; I MADE SOME ASSUMPTIONS BUT SOUNDS LIKE EVEN MORE THAN I ASSUMED. I ALSO WANT TO THANK THE POLICE ACCOUNTABILITY BOARD FOR THEIR REVIEW OF THE COMPENDIUM. I REVIEWED THE COMMUNICATION FROM CHAIR CAYETANO AND I'M REALLY PLEASED WITH THE COLLABORATIVE SPIRIT OF THIS REVIEW. I ALSO WELCOME THE SUGGESTION THAT WE COULD POTENTIALLY REDUCE THE FREQUENCY OF REVIEW AND RENEWAL. I DON'T THINK SUCH A CHANGE, I GUESS IT'S NOT REALLY BEFORE US TONIGHT BUT I WOULD CERTAINLY BE

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OPEN TO THAT. I DO, OF COURSE, WORRY THAT NO MATTER HOW MANY T'S WE CROSS AND I'S WE DOT HERE IN BERKELEY IN TERMS OF THESE AGREEMENTS, THE FEDS WILL FEEL THEY HAVE ANY LICENSE TO RUN ROUGH SHOT. BUT THESE M.O.U.'S ARE CRUCIAL TO SET EXPECTATIONS AND BASIS FOR ACCOUNTABILITY AND RESOURCE. I REALLY APPRECIATE EVERYONE'S WORK. ON THESE INCREDIBLY LENGTHY AND DETAILED DOCUMENTS AND I'M PLEASED TO BE ABLE TO APPROVE THIS TONIGHT. THANKS.

>> MAYOR ISHII: THANK YOU. ARE THERE OTHER COMMENTS FROM COUNCILMEMBERS? ANYONE ONLINE? OKAY, I JUST DO WANT TO MAKE A COMMENT TO SAY, ACKNOWLEDGE THE CONCERNS, I REALLY APPRECIATE THE QUESTIONS MY COLLEAGUES ASKED. AND I WANT TO HIGHLIGHT FOR FOLKS THAT OUR COUNCIL HAS ALREADY GIVEN DIRECTION TO OUR CITY ATTORNEY'S OFFICE TO WORK ON A SANCTUARY CITY ORDINANCE. DO KNOW, OF COURSE, WE ARE A SANCTUARY CITY HERE, THE FIRST IN THE COUNTRY AND WE AFFIRMED THAT SANCTUARY CITY STATUS IN JANUARY. FOLKS SHOULD FEEL CONFIDENT THIS IS AN ISSUE WE ARE TALKING A LOT ABOUT AND WE ARE GOING THE EXTRA STEP CREATING AN ORDINANCE TO MAKE SURE IT'S VERY CLEAR. BUT AS IT STANDS NOW AND MR. CITY MANAGER, PERHAPS IF THERE'S ANYTHING YOU WANT TO ADD, I WOULD INVITE YOU TO ADD AS WELL. BUT NO CITY STAFF, THAT'S ANYBODY, INCLUDING OUR POLICE DEPARTMENT CAN COLLABORATE WITH I.C.E. AND SO I HAVE ASKED THE CHIEF MANY TIMES AND THE CHIEF HAS ACTUALLY

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PUT OUT A STATEMENT ABOUT THIS SPECIFICALLY. I ENCOURAGE FOLKS TO TAKE A LOOK AT THAT ON THEIR WEBSITE. I THINK THEY HAVE DONE A LOT TO ENCOURAGE AND COMFORT THE PUBLIC TO MAKE SURE THEY FEEL CONFIDENT IN OUR POLICE DEPARTMENT. BECAUSE WE WANT PEOPLE TO BE ABLE TO CALL THE POLICE IF THERE ARE ANY CONCERNS AND NOT BE WORRIED ABOUT OUR POLICE DEPARTMENT COLLABORATING. IS THERE ANYTHING YOU WANTED TO ADD?

>> CITY MANAGER BUDDENHAGEN: I COULD JUST AMPLIFY WHAT YOU SAID, MADAM MAYOR AND SAY THAT YES, STAFF WILL NOT BE COOPERATING IN ANY WAY, THAT MESSAGE HAS BEEN CLEARLY RECEIVED BY STAFF. NOT JUST THE POLICE DEPARTMENT BUT ALL DEPARTMENTS. I WOULD ADD WE ARE IN THE PROCESS OF UPDATING SOME POLICIES, INCREASING SOME SIGNAGE TO DELINEATE PUBLIC/PRIVATE SPACES AND DO MORE WORK IN THAT REGARD.

>> MAYOR ISHII: THANK. YOU. AND THANK YOU FOR THAT UPDATE. APPRECIATE THAT. WITH THAT, IS THERE A MOTION?

>> B. BLACKABY: MOVE WE APPROVE THE COMPENDIUM.

>> M. HUMBERT: SECOND.

>> MAYOR ISHII: CAN YOU TAKE THE ROLL PLEASE, CLERK?

>> CITY CLERK: OKAY, TO APPROVE ITEM 16. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

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>> T. TAPLIN: AYE.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: OKAY, MOTION CARRIES.

>> MAYOR ISHII: ALL RIGHT. THANK YOU VERY MUCH. FOLKS WE ARE OF MOVING ONTO ITEM #17, THE SURVEILLANCE TECHNOLOGY ORDINANCE SUBMISSION FOR EXTERNAL FIXED SURVEILLANCE CAMERAS. CHIEF, I KNOW ARE SITTING RIGHT HERE AND READY TO GO. I'M GOING TO OPEN, ACTUALLY THIS IS NOT A PUBLIC HEARING. SO PLEASE CONTINUE.

>> GREAT, THANK YOU. WE WILL GET THIS GOING. GOOD EVENING, COUNCIL AND MAYOR. SO TO SET THE STAGE A LITTLE BIT WHAT WE ARE

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TALKING ABOUT FOR THIS ITEM. WE ARE CURRENTLY DISCUSSING THE APPROVAL OF THE FLOCK FIXED SURVEILLANCE CAMERA UNDER THE SURVEILLANCE TECHNOLOGY ORDINANCE. THIS IS THE NEXT STEP IN THE PROCESS TO COMPLETE TWO COUNCIL REFERRALS TO INSTALL CAMERAS, TO MEET CRITICAL PUBLIC SAFETY NEEDS IN OUR COMMUNITY. TONIGHT WE ARE LOOKING FOR COUNCIL APPROVAL OF THE ACQUISITION REPORT AND USE POLICIES RELATED TO THE FIXED SURVEILLANCE CAMERAS SO WE CAN MOVE FORWARD TO CONTRACT AND IMPLEMENTATION STEPS. BACKGROUND, THESE ARE FUNDED ITEMS AND THE USE POLICIES THAT ARE BEFORE YOU ARE THE SAME USE POLICIES THAT COUNCIL CONSIDERED WITH OUR ORIGINAL VENDOR FOR FIXED SURVEILLANCE CAMERAS.

>> WE CAN START WITH THE ACQUISITION REPORT. WE IDENTIFIED THE FLOCK CONDOR CAMERAS FOR A COUPLE REASONS. FIRST THE PERFORMANCE SPECS ARE EXCELLENCE. ZOOM, WIDE LENS, AND THEY ARE SOLAR POWERED WHICH GIVES US THE OPPORTUNITY TO INSTALL IN A WIDER RANGE OF LOCATIONS WITHOUT LIMITED BY ELECTRICAL GRID ACCESS. THAT ADDRESSES THE POWER SUPPLY WE HAD WITH THE PREVIOUS VENDOR. NEXT WE HAVE THE UTMOST CONFIDENCE IN FLOCK'S DATA SECURITY MEASURES. SO THEY OFFER END-TO-END ENCRYPTION. AND A BERKELEY-ONLY CLOUD ENVIRONMENT FOR STORAGE WHICH HUGELY REDUCES LOCAL INFRASTRUCTURE COSTS AND LEVERAGES FLOCK'S DEDICATED I.T. AND CYBERSECURITY TEAM, WHICH IS A MORE SECURE AND EFFICIENT APPROACH THAN STORING THE DATA ON OUR OWN PHYSICAL IN-HOUSE

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SERVICE. FINALLY, FLOCK HAS REALLY WORKED WELL WITH US, AND EXPRESSED OPENNESS TO AMENDING THEIR STANDARD CONTRACT LANGUAGE. SO WE ARE CONFIDENT THAT WE WILL BE ABLE TO WORK WITH THEM TO GET TO WHAT WE NEED TO GO WITH REGARDING THE CONTRACT LANGUAGE TO MEET THE SANCTUARY CITY COMMITMENTS AND VALUES OF OUR CITY. THE USE POLICIES WE SUBMITTED ALONG WITH THE ACQUISITION REPORT ARE UNCHANGED FROM THOSE PREVIOUSLY-APPROVED BY COUNCIL FOR FIXED CAMERAS AND APPROVED BY THE P.A.B. BECAUSE WE DON'T PLAN ON USING THESE CAMERAS FOR ANY PURPOSE NOT PREVIOUSLY CONSIDERED AND APPROVED BY COUNCIL. SO THOSE APPROVED USES ARE LISTED HERE ON THE SLIDE. BUT I WANT TO BE CLEAR, ONLY AUTHORIZED B.P.D. PERSONNEL WILL HAVE DIRECT ACCESS TO THE FOOTAGE. AND ONLY FOR THE SPECIFIC PURPOSES LISTED IN OUR POLICIES. REGARDING RETENTION PERIODS. THE RETENTION PERIOD FOR SURVEILLANCE CAMERAS IS LONGER THAN THE APPROVED PERIOD FOR A.L.P.R.'S BECAUSE THE PUBLIC SAFETY VALUE OF THE SURVEILLANCE CAMERAS WILL COME PRIMARILY FROM ACCESSING FOOTAGE DURING THE COURSE OF AN INVESTIGATION. AND IT OFTEN WON'T BECOME CLEAR THE FOOTAGE IS NECESSARY AT ALL UNTIL LATER IN THE INVESTIGATION. AS YOU MAY RECALL, WHEN THE POLICY WAS ORIGINALLY APPROVED BY COUNCIL, THE DISCUSSION RECOGNIZED THAT 30 DAYS WAS NOT ENOUGH TO PROVIDE THAT BUFFER FOR THE INVESTIGATION TO GET TO THE POINT WHERE WE WOULD KNOW THE FOOTAGE IS NECESSARY. A YEAR FELT TOO LONG SO WE

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LANDED ON 180 DAYS AS A MIDDLE GROUND. I KNOW THE CHIEF HAS SOME ADDITIONAL INFORMATION ABOUT THE VALUE OF A LONGER RETENTION PERIOD.

>> THANKS, AR LO. SO KNOWING THIS WAS OF INTEREST TO THE COUNCIL, I HAD A NUMBER OF CONVERSATIONS WITH OUR INVESTIGATIVE UNIT ABOUT EXACTLY THIS, ABOUT RETENTION PERIODS. THEY BEGAN TO QUICKLY TELL ME A BUNCH OF VERY SPECIFIC EXAMPLES, SO I WANT TO SHARE A COUPLE AND TALK BROADLY ABOUT WHAT WAS IMPORTANT TO THEM OR WHAT THEY RAISED UP AS FAR AS RETENTION PERIODS. IN MARCH 2024 THERE WAS A SHOOTING IN OUR CITY INVOLVING MULTIPLE FLEEING VEHICLES. THE SUSPECTS WEREN'T IDENTIFIED UNTIL FOUR MONTHS LATER IN JULY 2024. BUT BY THAT POINT CRUCIAL FLOCK FOOTAGE HAD BEEN AUTOMATICALLY DELETED DUE TO RETENTION PERIOD RESULTING IN LOSS OF THAT INFORMATION. IN 2016 ALEX GOODWIN WAS MURDERED IN OUR CITY. THIS CASE WENT COLD AFTER THE MURDER OCCURRED. WEEKS LATER A WITNESS CAME FORWARD PROVIDING A POTENTIAL SUBJECT AND VEHICLE DESCRIPTION ALLOWING US TO MOVE FORWARD. ANOTHER CASE THEY DESCRIBED A VICTIM REPORTED A SEXUAL ASSAULT THREE MONTHS AFTER THE INCIDENT OCCURRED AND THE BUSINESS WHERE IT OCCURRED HAS A RETENTION POLICY OF ONE YEAR, SO WE WERE ABLE TO GET TO THAT FOOTAGE AND THE PROSECUTORIAL TEAM WERE ABLE TO SEE, IT WAS CRUCIAL EVIDENCE TO PROVE THAT CASE. THERE'S A NUMBER OF REASONS THAT WE MAY DISCOVER AN INCIDENT LATE OR EVIDENTIARY VALUE MAY

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EMERGE LATER. ONE THING IS DELAYED REPORTING. WE OFTEN SEE DELAYED REPORTING INVOLVING DOMESTIC VIOLENCE AND SEXUAL ASSAULT WHERE A VICTIM MAY NOT BE COMFORTABLE COMING FORWARD UNTIL MANY MONTHS LATER. LABORATORY PROCESSING DELAYS CAN COST US 60-90 DAYS BEFORE WE GET LAB RESULTS BACK, NEEDING ADDITIONAL EVIDENCE WE WOULD WANT IN THAT FOOTAGE. SERIES AND CRIME PATTERNS. THAT'S MUCH BETTER. SERIES AND CRIME PATTERNS, IT COULD TAKE US SEVERAL WEEKS TO MAKE CONNECTIONS BETWEEN CASES. SO HAVING THAT INFORMATION RETAINED FOR A LONGER PERIOD OF TIME ALLOWS US TO BUILD THOSE CASES. AND FROM THE D.A.'S OFFICE, THEY HAVE SHARED THEY CONSISTENTLY UTILIZE VIDEO EVIDENCE AND IT'S NOT ONLY TO ESTABLISH SUSPECT PRESENCE BUT CORROBORATE AND CASE NARRATIVES. ONE IS OFFICER-INVOLVED INCIDENTS. SO LATE REPORTED POLICE MISCONDUCT, AGAIN AN INDIVIDUAL MAY NOT FEEL COMFORTABLE COMING FORWARD TO THE POLICE ACCOUNTABILITY BOARD OR POLICE DEPARTMENT UNTIL AFTER AN INCIDENT OCCURS. HAVING ACCESS TO THAT TO ENSURE THOROUGH INVESTIGATIONS IS A KEY ELEMENT. SO IT'S A BALANCE. I KNOW I HAVE TALKED TO SEVERAL COUNCILMEMBERS ABOUT THE BALANCES AND CHALLENGES AND UNDERSTANDING CONCERNS AROUND PRIVACY AND RETENTION PERIODS THAT ARE LONG. IT'S ALSO A REALITY OF MODERN CRIMINAL CASES AND EXPECTATIONS FOR CHARGING AND NEEDS OF VICTIMS TO HAVE THEIR CASE INVESTIGATED. SO THIS RECOMMENDATION AT 180 DAYS WAS MADE WITH ALL OF THOSE THINGS IN MIND. OKAY, SO

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I DO KIND OF WANT TO CALL OUT VERY CLEARLY SOME THINGS WE KNOW ARE KEY CONCERNS AROUND THIS TECHNOLOGY. ONE OF THEM BEING OUR COMMITMENT TO SANCTUARY CITY PROTECTIONS AND WHETHER THIS WOULD EXPOSE US TO ADDITIONAL RISK. WE TALKED ABOUT THE CONTRACT LANGUAGE BEING VERY CLEAR AND PROHIBITING SHARING WITH FEDERAL AGENCIES FOR IMMIGRATION PURPOSES. WE TALKED ABOUT THE DATA PROTECTION AND THOSE EFFORTS TO HAVE THE END-TO-END ENCRYPTION TO MAKE SURE THAT DATA IS SAFE AND SECURE. CLEARLY DEFINED USES SO WE ARE ONLY ACCESSING AND THE LIKELIHOOD OF SHARING IS ONLY WITHIN THE ESTABLISHED AND ALLOWED USES. AND ALL OF THIS WILL CONTINUE BE GUIDED NOT ONLY BY CONTINUING SANCTUARY CITY POLICIES BUT AS THEY STRENGTHEN, THE USAGE OF THIS TECHNOLOGY WOULD EVOLVE TO MATCH THAT. FINALLY STEP TOWARDS TRANSPARENCY AND ACCOUNTABILITY AROUND THIS TECHNOLOGY. WE WILL HEAR CLEARLY FROM COUNCIL WHAT THEY EXPECT TO SEE IN THE CONTRACT. FLOCK IS WILLING TO WORK WITH US ON CONTRACT LANGUAGE. AND THAT CONTRACT, ONCE WE ARE READY FOR APPROVAL WILL COME TO COUNCIL FOR FINAL APPROVAL. ADDITIONALLY THERE'S SPECIFIC AUDIT EXPECTATIONS BUILT IN THE POLICIES AND WE REPORT ANNUALLY ABOUT USES, THE AUDITS, ANY KIND OF BREACHES AROUND OR ATTEMPTED BREACHES AROUND OUR TECHNOLOGY. OKAY, SO THAT'S TRY TO COVER THE MAIN POINTS. WE DO HAVE ONLINE WITH US TONIGHT TREVOR CHANDLER, THE DIRECTOR OF PUBLIC AFFAIRS FOR FLOCK. BOTH ARLO AND I, AND TREVOR ARE HERE

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TO ANSWER ANY SPECIFIC QUESTIONS.

>> MAYOR ISHII: THANK YOU, CHIEF. COUNCILMEMBERS, DO YOU HAVE ANY QUESTIONS? COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: DANG, I HATE GOING FIRST. I THOUGHT IF I COUNTED TO FIVE. OKAY, HI. A COUPLE QUESTIONS. MOST OF THESE ARE LIKE EXPOSITORY, IF YOU CAN EXPLAIN MORE ABOUT SOME OF THE PROCESSES YOU MENTIONED. ONE I'M CURIOUS ABOUT IS THE AUDIT PROCESS YOU MENTIONED. IF YOU COULD DESCRIBE WHAT THAT LOOKS LIKE AND WHAT KINDS OF THINGS YOU ARE CHECKING AND WHAT DOES THE REPORT LOOK LIKE?

>> YEAH, SO THE AUDIT PROCESS, WE DO TWICE A YEAR. WE GO THROUGH ALL ACCESSES TO THE SYSTEM. RIGHT NOW FOR THE FEW CAMERAS THAT WE DO HAVE WE HAVE A DIFFERENT PLATFORM, BUT WE ACCESS THE LOGS OF WHO IS LOGGED IN, VERIFY THAT IT WAS FOR AN APPROVED USE. AND THEN DOCUMENT IF WE FIND ANY IMPROPER USES OR DATA BREACHES AND WE SUMMARIZE THAT INFORMATION AND REPORT ON IT IN OUR ANNUAL SURVEILLANCE TECHNOLOGY REPORT.

>> S. O'KEEFE: YOU ARE GOING TO CHECK EACH ONE TO SEE WHAT THEY SAID THEY DID THEY DID AND THE PURPOSE WAS VALID?

>> EXACTLY. WE CONFIRM THAT EACH ACCESS OF THE SYSTEM WAS FOR A PURPOSE APPROVED BY THE USE POLICY.

>> S. O'KEEFE: GREAT. THANK YOU. ANOTHER THING I THINK WOULD MAYBE BE HELPFUL FOR THE PUBLIC TO HEAR. I KNOW THERE'S BEEN A

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LOT, I'VE BEEN IN A LOT OF CONVERSATIONS I HAVE HEARD A LOT FROM THE PUBLIC. I THINK THERE'S BEEN SOME CONFUSION ABOUT THE DIFFERENCE BETWEEN THIS TECHNOLOGY WE ARE DISCUSSING TONIGHT AND THE ALPR TECHNOLOGY. THEY ARE BOTH SURVEILLANCE. MY UNDERSTANDING IS THEY ARE USED IN VERY DIFFERENT WAYS. I WAS WONDERING IF MAYBE BY EXAMPLES SAY YOU WOULD USE THE INFORMATION COLLECTED BY THE ALPR'S LIKE A TYPICAL EXAMPLE, VERSUS HOW YOU WOULD USE THIS VIDEO FOOTAGE INFORMATION, SO WE ARE ALL CLEAR HOW THIS IS DIFFERENT.

>> IT'S SUCH A GREAT QUESTION. BECAUSE BOTH TECHNOLOGIES ARE PROVIDED BY THE SAME VENDOR SO IT COULD BE CONFUSING WHEN YOU HEAR FLOCK. AUTOMATED LICENSE PLATE READERS ARE DIFFERENT FROM FLOCK SURVEILLANCE CAMERAS. THE ALPR'S ARE USED TO ALERT WHEN A STOLEN VEHICLE OR A VEHICLE ASSOCIATED WITH A FELONY HAS ENTERED OUR CITY. SO THAT IS INFORMATION THAT IS TYPICALLY IMMEDIATELY ACTIONABLE. WHEN USED IN THAT PURPOSE. THERE IS SOME INVEST GA TORY VALUE, WHEN WE HAVE A SPECIFIC LICENSE PLATE WE ARE WONDERING IF IT'S BEEN NEAR THE SCENE OF A CRIME OR SOMETHING LIKE THAT, THEN WE CAN SEARCH FOR THAT INFORMATION. THE SURVEILLANCE CAMERAS DON'T ALERT ON ANYTHING. SO THERE'S NO REALLY VALUE ON, FOR EXAMPLE, ANOTHER AGENCY BEING ABLE TO SEARCH ACROSS OUR CAMERAS. WHAT THAT MEANS IS THE WAY WE SHARE DATA IS VERY, VERY DIFFERENT. WITH SURVEILLANCE CAMERAS THERE

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WILL BE NO DIRECT ACCESS BY OTHER AGENCIES TO THE CAMERA FOOTAGE OR DATA. IF ANOTHER AGENCY THINKS THERE MIGHT BE SOME RELEVANT DATA FOR A CASE THEY ARE WORKING THAT WE HAVE, THEY WILL REACH OUT TO US DIRECTLY, WE WILL LITERALLY DOWNLOAD ANY RELEVANT FOOTAGE AND SHARE THAT WITH THEM, JUST LIKE WE WOULD IN ANY OTHER CASE. BUT IT WOULD NOT BE VIA THE FLOCK PLATFORM. SO EVERYTHING THAT WE'VE HEARD, WE HAVE READ IN SOME RECENT NEWS STORIES HAS OCCURRED BECAUSE ANOTHER AGENCY HAD ACCESS TO ALPR DATA OF ANOTHER AGENCY. BECAUSE IT'S SHARED TO GET THAT SORT OF VALUE FROM THOSE ALERTING SYSTEMS. THOSE MECHANISMS WOULD NOT EXIST FOR THE SURVEILLANCE CAMERA INFORMATION. SO ALL OF THE WAYS IN WHICH REPORTEDLY INFORMATION HAS MADE IT TO THE FEDS WOULD NOT BE POSSIBLE FOR THE SURVEILLANCE CAMERAS.

>> S. O'KEEFE: JUST TO BE CLEAR, THERE'S NO SITUATION WHERE THE CHP WOULD BE GRANTED ACCESS TO THIS AND DO SOMETHING WE WOULDN'T WANT THEM TO DO, THAT'S NOT POSSIBLE?

>> CORRECT, THAT'S NOT POSSIBLE.

>> S. O'KEEFE: MY LAST QUESTION FOR NOW IS FOR TREVOR CHANDLER, ARE YOU THERE? THE FLOCK? HE IS ONLINE, RIGHT?

>> I KNOW WE WERE WORK TO GET HIM PROMOTED.

>> S. O'KEEFE: TREVOR, YOU KNOW WHAT I'M GOING TO ASK YOU ABOUT, SO BE READY. I'VE BEEN EMAILING HIM ALL DAY.

>> HE IS ON THE ATTENDEE LIST.

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>> OKAY, I BELIEVE I HAVE BEEN UNMUTED.

>> S. O'KEEFE: HI TREVOR. SO AS YOU KNOW, I WAS EMAILING YOU TRYING TO UNDERSTAND SOMETHING ABOUT THE NATURE OF THE ENCRYPTION. I WAS WONDERING IF WE COULD GET THAT ON RECORD HERE. COULD YOU EXPLAIN THE NATURE OF ENCRYPTION, THE DIFFERENT PHASES OF ENCRYPTION THAT WILL BE STORED ON THE FLOCK CLOUD, RIGHT?

>> YES.

>> S. O'KEEFE: EXPLAIN ABOUT THE ENCRYPTION IN A RELATIVELY CONCISE WAY.

>> YES. SO ALL DATA AND IMAGES THAT ARE COLLECTED ARE ENCRYPTED BOTH AT REST IN THE CAMERA AND IN TRANSIT AT ALL TIMES. FLOCK UTILIZES THE A.W.S. GOV CLOUD AND WE ARE CRIMINAL JUSTICE INFORMATION SERVICE, WHICH IS THE STANDARD FOR HANDLING PUBLIC SAFETY DATA, IN ADDITION TO NUMEROUS OTHER CERTIFICATIONS, WE CONTINUALLY ARE UPGRADING AND AUDITING OUR ENCRYPTION PROCESSES. I'M HAPPY TO DIVE INTO THE VARIOUS LEVELS OF ENCRYPTION BUT THE MOST IMPORTANT THING TO NOTE THERE IS NO POINT IN THE COLLECTION OF THE DATA, IN THE TRANSITION OF THE DATA, OR IN THE DOWNLOADING OF THE DATA THAT IT IS NOT ENCRYPTED.

>> S. O'KEEFE: YEAH, THANK YOU. I THINK THAT'S THE THING I WANTED TO GET YOU TO SAY. YOU DON'T KNOW IF ANY OTHER COUNCILMEMBERS ARE INTERESTED IN THE ACRONYMS, THEY CAN ASK. I WANTED TO GET ON RECORD, I WAS TRYING TO GET CLEAR, THERE'S NO

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REAL WAY IN TO KIND OF STEAL THIS DATA BECAUSE THE ENCRYPTION IS VERY STRONG AND BASICALLY IMPOSSIBLE TO BREAK. YOU ACTUALLY HAVE SET IT UP SO THAT IT'S END-TO-END ENCRYPTED SO THERE'S NO GAPS IN THE DECRYPTION PROCESS, RIGHT?

>> CORRECT. THERE'S NO GAPS EVEN WHEN THE DATA IS IN THE CAMERAS THEMSELVES THERE'S AN ENTIRE ENCRYPTION LAYER IN THE CAMERAS AT REST. AND DURING TRANSMISSION, THERE'S NOT A SINGLE GAP IN THE ENCRYPTION PROCESS IN THE HANDLING OF THE DATA.

>> S. O'KEEFE: THANK YOU. THOSE ARE MY QUESTIONS FOR NOW BUT I RESERVE THE RIGHT TO HAVE MORE.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER BLACKABY?

>> B. BLACKABY: THANK YOU, MADAM MAYOR, THANK YOU, ARLO, THANKS CHIEF FOR BEING HERE. I HAVE A FEW QUESTIONS. MOST RELATE TO THIS DATA RETENTION QUESTION. I WANTED TO FOLLOW-UP ON A THREAD THAT COUNCILMEMBER O'KEEFE STARTED ON THE ALPR VERSUS FIXED SURVEILLANCE CAMERAS. WHY DO YOU THINK ON THE ALPR TIMING THAT 30 DAYS IS SUFFICIENT? BUT YOU NEED MORE TIME, I KNOW WE GAVE SOME EXAMPLES. BUT IT DOES FUNDAMENTALLY SEEM LIKE IT'S ABOUT HOW YOU USE THE TECHNOLOGY, RIGHT? IN A SENSE THE ALPR DATA IS GOOD FOR A SHORT TIME PERIOD WHEN THERE'S POTENTIAL YOU COULD MAKE A MATCH AND TRACK DOWN THE CAR IN REAL-TIME OR SHORTLY THEREAFTER. WHEREAS THE FIXED SURVEILLANCE CAMERA IS SOMETHING YOU CAN LOOK AT LATER OF INTEREST. COULD YOU JUST GO INTO THAT

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IN A LITTLE MORE DETAIL BECAUSE I'M REALLY INTERESTED IN UNDERSTANDING WHY 30 DAYS IS NOT IN YOUR VIEW APPROPRIATE FOR BOTH?

>> YEAH, YOU GAVE A GREAT SUMMARY THERE. SO THE ALPR'S COLLECT VERY SPECIFIC INFORMATION AROUND A LICENSE PLATE. SO AS A STOLEN VEHICLE OR A VEHICLE ASSOCIATED WITH A FELONY ENTERS OUR CITY, OUR OFFICERS WILL RECEIVE AN ALERT AND ARE ABLE TO GO RESPOND TO THAT CAR IN REAL-TIME. SO THAT OBVIOUSLY HAPPENS IMMEDIATELY. THERE IS INVESTIGATORY DATA IN THE ALPR DATA WE LOSE BEYOND 30 DAYS. JUST LIKE WITH CAMERAS USED IN INVESTIGATIONS, THERE COULD BE A CASE WHERE THREE MONTHS, SIX MONTHS DOUP THE ROAD WE REALIZE IT WOULD BE USEFUL IN THIS CASE TO PLACE A CAR NEAR A LOCATION. SO WE DO LOSE THAT. BUT THE BULK OF THE PUBLIC SAFETY VALUE HAPPENS WITHIN THAT MORE IMMEDIATE TIMEFRAME. I WILL LET YOU SPEAK A LITTLE BIT MORE TO THE INVESTIGATIVE VALUE OF LONGER RETENTION.

>> NOT TO RUN THROUGH THE WHOLE LIST AGAIN, BUT THAT WAS JUST REALLY TO TOUCH ON ALL THE DIFFERENT WAYS THAT WE LEARNED LATER THERE'S INVESTIGATIVE VALUE. I WOULD AGREE THAT HOLDING ONTO ALPR DATA LONGER WOULD POTENTIALLY BRING US MORE INVESTIGATIVE VALUE. WE KNOW A LICENSE PLATE INFORMATION IS MORE DETAILED AND CONNECTS, SOMEONE IS GOING TO BREAK INTO A SYSTEM AND FIGURE OUT WHO THAT VEHICLE IS REGISTERED TO, THERE IS MORE RISK, VERSUS

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SURVEILLANCE CAMERA FOOTAGE SITTING THAT IS NOT USED UNLESS A SPECIFIC REASON.

>> B. BLACKABY: WE AREN'T USING FACIAL RECOGNITION. IT'S LITERALLY AN INVESTIGATOR LOOKING AT IT AND USING HIS OR HER OWN JUDGMENT, RIGHT, IN EVALUATING THAT. WE AREN'T CAPTURING LIVE AUDIO. THERE'S NO AUDIO RECORDING. OKAY. AND IS THERE EVER A SCENARIO WHERE YOU ARE MONITORING LIVE VIDEO UNDER ANY OF THESE USE CASES?

>> YEAH, IF YOU ARE LOOKING AT USE CASES FOR ONGOING. IF THERE WAS AN ACTIVE SHOOTER IN A LOCATION WHERE ONE OF THOSE CAMERAS WAS BY, WE WOULD WANT TO LOOK AT THAT AND RESOLVE OR CONFIRM THAT WASN'T THE CASE AND/OR MONITOR AND SEE WHAT A SAFER ROUTE OF APPROACH OR JUST UNDERSTAND WHAT'S HAPPENING THERE.

>> B. BLACKABY: OKAY. AND LAST KIND OF STREAM AND I WILL STOP IS AROUND SORT OF THE SHARING QUESTION. HOW WOULD YOU CHARACTERIZE THE FREQUENCY WITH WHICH YOU MIGHT BE SHARING PINGS OR ACCESS TO THE ALPR DATABASE WITH OTHER JURISDICTIONS VERSUS HOW YOU WOULD BE SHARING THE VIDEO SURVEILLANCE FOOTAGE WITH OTHER JURISDICTIONS? IS IT A SIMILAR AMOUNT OF SHARING, MORE OR LESS, ONE WAY OR THE OTHER. HELP US UNDERSTAND A LITTLE HOW THAT PROCESS MIGHT WORK. ALPR VERSUS SURVEILLANCE.

>> RIGHT. AND SO WHERE A VEHICLE TRAVELS WHERE IT IS LOCATED A CERTAIN TIME, THAT HAS A LOT OF INFORMATION TO IT. THAT MIGHT

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HAVE BEARING OUTSIDE OF IT, RIGHT. OR IF SOMEONE IS TRYING TO LOCATE WHERE A SUSPECT IS AT A CERTAIN TIME OR TO CREATE A SEARCH WARRANT OR SOMETHING LIKE THAT. WHEREAS FOR THE FIXED SURVEILLANCE CAMERAS WE ARE TALKING ABOUT INCIDENTS OCCURRING IN OUR JURISDICTION. AS YOU CAN IMAGINE THERE'S NOT A LOT OF OTHER JURISDICTIONS WORKING CASES IN OUR CITY. WHERE YOU MIGHT COME UP IS AN AGENCY IS WORKING A CASE AND THE PERSON SAYS NO I DIDN'T COMMIT THAT CRIME, I WAS AT THE APPLE STORE ON FOURTH STREET IN BERKELEY. AN ALIBI. AND SO THE JURISDICTION MIGHT HIT US UP AND SAY CAN YOU CONFIRM WHETHER OR NOT THAT PERSON WAS SEEN ON THAT FOOTAGE OR NOT. IT'S NOT SUPER COMMON BECAUSE IT'S FOOTAGE OF OUR CITY AND THINGS OCCURRING IN OUR CITY.

>> B. BLACKABY: ALL OF THOSE SITUATIONS WOULD BE LOGGED, AUDITABLE, RIGHT? I GUESS WHERE I'M HEADING WITH THIS IS, I SEE AND UNDERSTAND I THINK THERE IS VALUE, YOU SHARE THE PRIVACY CONCERNS. IF WE WERE TO PROVIDE A SLIGHTLY LONGER TIME HORIZON, I WOULD REALLY WANT TO DO THAT ONLY IF WE WERE IRON CLAD ON THE ACCESS PIECE, LOGGING TRAIL AND AUDIT OF IT TO MAKE SURE WE HAVE THAT LOCKED DOWN SORT OF ON OUR SIDE.

>> IF YOU THINK ABOUT IT, IT'S ACTUALLY A TIGHTER CONTROL. THEY HAVE TO CONTACT OUR AGENCY; IT'S THE CAPTAIN OF THE DEPARTMENT THAT'S RECEIVING THAT AND APPROVING THAT REQUEST FOR AN OUTSIDE AGENCY. WHEREAS AT OUR LEVEL INTERNALLY OUR OFFICERS ARE BOUND

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BY THE POLICY AND FOLLOW THE POLICY AND DETECTIVES CAN ACCESS THAT FOOTAGE. THERE'S EVEN A HIGHER LEGAL EF REL OF SCRUTINY TO BE SURE, WE WOULDN'T BE RELEASING INFORMATION OR DATA TO OTHER JURISDICTIONS UNLESS IT FELL UNDER OUR ABILITY IN OUR USE POLICY. L

>> B. BLACKABY: YOU VOLUNTEERED EARLIER, WHATEVER WE DO SET TONIGHT, I WOULD WANT TO MAKE SURE WE HAVE A REVISIT WITHIN WHATEVER SIX MONTHS OR 12 MONTHS. DID WE SET SOMETHING TOO BROAD? TOO NARROW? TO MAKE SURE WE TRACK THAT AND CALIBRATE AND JUST BAKE THAT INTO THE REVIEW PROCESS WE WILL MAKE SURE WE SET THE APPROPRIATE TIMELINE.

>> CERTAINLY, IT WOULD BE REASONABLE FOR US AS WE DO OUR AUDITS HOW LONG WE ARE USUALLY GOING FORWARD AND TO CONTINUE TO ASK DETECTIVES TO RAISE THESE CASES UP WHERE THEY LOST EVIDENTIARY RESULTS AS A RESULT OF A TIMELINE. IS THERE A VALUE TO US HOLDING SHORTER OR LONGER.

>> B. BLACKABY: THANK YOU, CHEF, THANK YOU, MAYOR.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER TREGUB?

>> I. TREGUB: THANK YOU. SO I JUST WANTED TO CONFIRM THE AUDITING IS DONE BIANNUALLY, CORRECT? ONCE A YEAR YOU SEND A COMPREHENSIVE REPORT TO COUNCIL WITH FINDINGS. IS THERE ANYTHING PREVENTING YOU OR WOULD IT BE BURDENSOME TO JUST WHATEVER THE OUTCOME OF THE AUDIT IS TO SHARE THAT WITH COUNCIL TWICE A YEAR?

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>> SO YOU ARE SAYING PUBLISH THE SAME INFORMATION THAT WE PUBLISH IN THE ANNUAL SURVEILLANCE TECHNOLOGY ORDINANCE, BUT INSTEAD THOSE RESULTS OF BOTH AUDITS ONCE A YEAR AS WE FINISH THEM, SEND THEM TO COUNCIL?

>> I. TREGUB: YES.

>> YEAH, IF THAT'S SOMETHING COUNCIL DIRECTS US TO DO, ABSOLUTELY WE COULD DO THAT.

>> I. TREGUB: OKAY, THANK YOU. MY NEXT QUESTION IS ACTUALLY FOR --

>> MAYOR ISHII: SORRY, CAN I FOLLOW-UP ON THAT, IF YOU WOULDN'T MIND. I THINK THE QUESTION WAS ALSO WHAT'S INVOLVED IN THAT, IF YOU WERE, WHAT'S THE DIFFERENCE BETWEEN AUDITING TWICE AND AUDITING TWICE AND PRESENTING TWICE.

>> I THINK THAT'S WHY I LOOKED AT THE GUY WHO WILL BE DOING THE AUDIT BECAUSE THERE'S WORK INVOLVED DOING THE AUDIT. AS YOU IMAGINE WE LAUNCH A SIGNIFICANT NUMBER OF ADDITIONAL CAMERAS, THERE'S GOING TO BE MORE AUDIT WORK THAT'S GOING TO OCCUR. SO I WOULD SAY WE ARE GOING TO BE DOING THE AUDIT, WE WILL PREPARE A REPORT OF THE AUDIT, BUT PREPARING A COUNCIL ITEM TO THEN COME AND PRESENT IS AN ADDITIONAL LAYER OF ADMINISTRATIVE WORK, VERSUS SUBMITTING AN INFORMATION ITEM OR OFF-AGENDA MEMO TO COMMUNICATE THAT INFORMATION. WOULD MAKE MORE SENSE, YOU KNOW, WOULDN'T REQUIRE US TO ALSO GO THROUGH THE STEP OF PREPARING FOR

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THIS AND THINGS LIKE THAT.

>> I. TREGUB: YEAH, I WAS NON-SPECIFIC AS YOU POINTED OUT, CHIEF, AN AUDIT CAN BE PRESENTED DIFFERENT WAYS. AND SO, I'M JUST TRYING TO FIND THE RIGHT BALANCE BETWEEN THE COUNCIL HAVING INFORMATION THAT IS IN REAL-TIME OR AS CLOSE TO IT AS POSSIBLE AND REDUCING SOMETHING THAT COULD BE SEEN AS OVERLY BURDENSOME.

>> IF I MAY MAKE ONE MORE COMMENT ABOUT THAT AS WELL. I ALSO WANT TO CALL OUT THE FACT AS WE ARE DOING MORE REGULARLY AUDITING AND IF WE ARE REPORTING ON RESULTS OF OUR AUDIT AND DETERMINING WHAT LEVEL OF DEGREE WE ARE REPORTING ON, I WANT TO MAKE SURE WE AREN'T JEOPARDIZING ACTIVE ONGOING INVESTIGATIONS AS A RESULT OF THAT REPORTING. CONSIDER REASONABLE AMOUNT OF TIME SO NOT TO INTENTIONALLY RELEASE INFORMATION THAT JEOPARDIZES THE INTEGRITY OF A CASE.

>> I. TREGUB: THANK YOU. AND THERE COULD BE FURTHER DISCUSSION WHAT THAT MIGHT LOOK LIKE. I HAD A QUESTION FOR TREVOR. YOU KNOW, I WANTED TO UNDERSTAND, SO BOILER PLATE CONTRACT LANGUAGE 4.3 AND 5.3, I UNDERSTAND THAT CERTAIN JURISDICTIONS THAT HAVE SANCTUARY CITY OR JUST SANCTUARY POLICIES, YOU HAVE BEEN ABLE TO NOT INCLUDE THOSE IN THE CONTRACT. I JUST WANTED TO, YOU KNOW, BETTER UNDERSTAND KIND OF THE NEED FOR, LIKE WHAT IS THE VALUE THAT FLOCK IS OBTAINING FROM INCLUDING 4.3 AND 5.3 AND WHAT ARE SOME JURISDICTIONS IN WHICH THAT LANGUAGE WAS NOT INCLUDED AS

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PART OF A CONTRACT?

>> YEAH, ABSOLUTELY. SO THE SECTION YOU ARE REFERRING TO IS THE ANONYMIZED DATA. ONE OF THE THINGS WE ARE INCREDIBLY PROUD OF AT FLOCK IS THE VERY HIGH ACCURACY RATES OF THE CAMERAS WE HAVE AND THE MACHINE LEARNING THAT IS THERE. AND THE WAY WE CONTINUALLY IMPROVE ON THOSE ACCURACY RATES TO MAKE SURE THERE'S NO FALSE IDENTIFICATIONS OR ANYTHING LIKE THAT IS BY USING ANONYMIZED DATA THAT'S REMOVED OF ALL METADATA OF ALL LOCATION, EVEN OWNERSHIP SO NO ONE KNOWS WHETHER IT CAME FROM BERKELEY OR SAN FRANCISCO OR ANY OTHER CITY. SO WE CAN CONTINUALLY IMPROVE THE SERVICES WE PROVIDE. IT STATES THIS IS NOT DATA USED FOR SELLING. FLOCK DOES NOT SELL YOUR DATA. WE ARE NOT IN THE DATA BROKER BUSINESS. THE DATA IS YOURS. AND WHAT THIS ANONYMIZED DATA ALLOWS US TO DO IS TO CONTINUALLY IMPROVE THE LEVEL OF SERVICE FOR THE AI MACHINE LEARNING IN THE CAMERAS. WE ARE OBVIOUSLY IN A VERY HEIGHTENED POLITICAL ENVIRONMENT AND DESPITE THIS DATA BEING FULLY ANONYMIZED, THERE HAVE BEEN FOLKS WHO, OUT OF A PREPONDERANCE OF CONCERN AND CAUTION IN THIS POLITICAL ENVIRONMENT HAVE ASKED TO BE EVEN REMOVED FROM THAT AS AN EXTRA FAIL SAFE DESPITE THE FACT IT'S BEEN FULLY ANONYMIZED. SO WE HAVE BEEN ABLE TO MAKE THAT EXCEPTION. AND LIKE THE CHIEF SAID WE ARE HAPPY TO HAVE THAT CONVERSATION WITH BERKELEY AS WELL, IF THAT IS CONCERNED GIVEN THE HEIGHTENED POLITICAL ENVIRONMENT WE

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ARE IN RIGHT NOW.

>> I. TREGUB: THANK YOU. THOSE ARE ALL MY QUESTIONS FOR NOW.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER HUMBERT?

>> M. HUMBERT: THANK YOU MADAM MAYOR. I WANT TO THANK THE CHIEF AND ARLO FOR REALLY AN EXCELLENT PRESENTATION AND FOR BEING SO RESPONSIVE AND ANSWERING QUESTIONS SO FAR. I WANT TO SAY, AS A STARTING POINT, THAT I'M GENERALLY SUPPORTIVE OF THE EDITS PROPOSED BY THE POLICE ACCOUNTABILITY BOARD. I THOUGHT THEY MADE A LOT OF SENSE. BUT I DO WANT TO HEAR FROM CHIEF LOUIS WHETHER THESE ARE WORKABLE AND IF THERE'S ANYTHING SHE THINKS SHOULD BE ADJUSTED. I THINK 30 DAYS ISN'T FUNCTIONAL FOR INVESTIGATIVE PURPOSES AND I THINK WE REACHED THE APPROPRIATE COMPROMISE ON THIS ISSUE WHEN WE LAST VISITED IT, AND THAT'S 180 DAYS. I WANT TO ASK YOU ABOUT THE P.A.B.'S PROPOSED CHANGES WHICH I'VE LOOKED AT CAREFULLY AND APPRECIATE AND SEE IF YOU THINK THEY ARE WORKABLE.

>> YEAH, OF COURSE, THANK YOU. SO THE TWO RECOMMENDATIONS AROUND ADDING SUGGESTED CONTRACT LANGUAGE ARE IN ALIGNMENT WITH OUR VALUES AND WHAT WE EXPECT TO SEE IN THE CONTRACT. A LITTLE UNUSUAL IT WOULD BE IN THE USE POLICY BUT NOT UNUSUAL. ALSO ADDITIONAL RED LINE SITUATIONS THAT SEEM REASONABLE AND ACHIEVABLE, THE WAY IT WORKS AND HAPPY TO INCLUDE THOSE. AS I THINK I SAID HOPEFULLY CLEARLY AND EXPLAINED CLEARLY ENOUGH, I'M

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CONCERNED ABOUT A 30-DAY RETENTION PERIOD AND WHAT THAT WOULD MEAN FOR US TO CONDUCT THOROUGH INVESTIGATIONS.

>> M. HUMBERT: THANK YOU. I WAS THINKING PRIMARILY ABOUT THE RED LINE EDITS AND ADDS. THEY MADE SENSE TO ME AND SOUNDS LIKE THEY MADE SENSE TO YOU TOO. THANK YOU, THAT'S ALL I HAVE IN TERMS OF QUESTIONS, I HAVE COMMENTS BUT I WILL SAVE THEM.

>> MAYOR ISHII: THANK YOU. BEFORE I GO BACK, DOES ANYBODY ELSE HAVE OTHER QUESTIONS? I THINK COUNCILMEMBER LUNAPARRA? GO AHEAD.

>> C. LUNAPARRA: THANK YOU. I HAVE A COUPLE QUESTIONS FOR THE FLOCK REPRESENTATIVE AND A FEW FOR B.P.D. IS THE FLOCK REPRESENTATIVE STILL ON?

>> YES.

>> C. LUNAPARRA: OKAY, GREAT, THANK YOU. I'M CURIOUS WHAT THE FLOCK PROTOCOL, I THINK THIS IS ALSO FOR JUST -- IN THE EVENT I.C.E. AGENTS ARE REQUESTING PREVIOUSLY RECORDED FOOTAGE.

>> YES, AND THIS IS FULLY OUTLINED IN OUR CONTRACT, WE ARE LEGALLY OBLIGATED TO ALERT THE CITY OF BERKELEY TO ANY REQUEST FOR YOUR DATA, LEGAL OR OTHERWISE SO THAT YOU ALL CAN MAKE A DECISION ON HOW YOU WANT TO ENGAGE WITH THAT REQUEST. FLOCK HAS NEVER BEEN SERVED A SUBPOENA BY I.C.E. OR A WARRANT BY I.C.E. FOR DATA. IN THE EVENT THAT EVER HAPPENED WE WOULD FORWARD THAT REQUEST TO YOU AND MAKE SURE YOU ARE AWARE OF IT SO YOU AND YOUR LEGAL COUNSEL CAN TAKE WHATEVER ACTION YOU DEEM NECESSARY IN

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RESPONSE TO IT.

>> C. LUNAPARRA: OKAY, THANK YOU. AND DO YOU HAVE ANY PROTOCOL OF I.C.E. AGENTS PHYSICALLY SHOW UP AT A FLOCK OFFICE REQUESTING DATA. SIMILAR POLICY?

>> WHAT WE USE, A.W.S. GOV CLOUD WE DON'T HAVE SERVERS AT OUR HEADQUARTERS. IF THEY SHOWED UP PHYSICALLY, IT WOULD BE NO DIFFERENTLY SHOWING UP VIA EMAIL, WE STILL HAVE THE PROTOCOLS NECESSARY IN ORDER TO FULFILL THAT SORT OF REQUEST.

>> C. LUNAPARRA: THANK YOU. THOSE ARE MY QUESTIONS FOR FLOCK. AND THEN I HAVE A COUPLE QUESTIONS FOR B.P.D. THE FIRST ONE IS, I'M CURIOUS IF YOU'RE CONFIDENT WE CAN GET BACK THE $290,000 PREVIOUSLY DISPENSED TO EDGEWORTH?

>> YEAH, WE ARE WORKING CLOSELY WITH THEM AND PUBLIC WORKS TO IDENTIFY OTHER PRODUCTS WHERE THOSE SORTS OF CAMERAS ARE NEEDED AND WHERE THERE'S BUDGET FOR THEM. WE ARE IN THAT PROCESS RIGHT NOW, YES.

>> C. LUNAPARRA: DO YOU BELIEVE WE WILL BE ABLE TO?

>> YES, WE ARE ON OUR WAY AND WE HAVE A FEW PROJECTS IDENTIFIED THAT WILL BE COMING UP, AND SOME ARE IN PROGRESS NOW.

>> C. LUNAPARRA: CAN I ASK WHAT THOSE PROJECTS ARE?

>> YEAH, SO THE JAIL CAMERAS THAT WERE PART OF THE NEXT ITEM, WE WILL BE USING SOME OF THE CAMERAS THAT WE PREVIOUSLY PURCHASED, THE ANIMAL SHELTER THAT GOT THEIR CAMERAS APPROVED A COUPLE

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MEETINGS AGO WILL BE USING SOME AND A FEW OTHER PENDING FUNDING WITH PUBLIC WORKS.

>> C. LUNAPARRA: OKAY, THANK YOU. AND THEN MY NEXT QUESTION IS, LAST WEEK THERE WERE REPORTS THAT THE OAKLAND POLICE DEPARTMENT AND SAN FRANCISCO POLICE DEPARTMENTS WERE ILLEGALLY SHARING DATA FROM SURVEILLANCE CAMERAS WITH I.C.E. AND OTHER FEDERAL AGENCIES. CAN YOU SPEAK DIRECTLY TO HOW THAT COULD HAPPEN? AND WHAT SAFEGUARDS THERE ARE IN OUR CITY TO ENSURE SOMETHING LIKE THAT CAN'T OR WOULDN'T HAPPEN IN BERKELEY.

>> YEAH, SO THOSE STORIES WERE REGARDING ALPR'S. AGAIN A DIFFERENT TECHNOLOGY THAN THE SURVEILLANCE CAMERAS WE ARE DISCUSSING TONIGHT. THE STORIES INVOLVED A THIRD AGENCY ACCESSING DATA OF OAKLAND P.D., FOR EXAMPLE, AND IDENTIFYING THE REASON FOR THE SEARCH AS HAVING TO DO WITH A FEDERAL AGENCY. SO THAT WHOLE PROCESS WOULD NOT BE POSSIBLE WITH THESE SURVEILLANCE CAMERAS BECAUSE WE WON'T BE SHARING THEM OUT WITH OTHER AGENCIES. SO IT WOULD JUST BE US SEARCHING ON THE CAMERAS.

>> C. LUNAPARRA: OKAY, THANK YOU. AND THEN MY FINAL QUESTION IS ABOUT THE CURRENT FIXED CAMERA THAT WE HAVE IN OUR CITY. IT WAS REVIEWED EIGHT TIMES IN THE REPORTING PERIOD BY THE DEPARTMENT. DO YOU HAVE THE INFORMATION ABOUT WHEN THESE WERE ACCESSED DURING THE RETENTION PERIOD? IF THEY WERE ACCESSED ON DAY 15 OR DAY 30 OR DAY 60 OR WHATEVER?

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>> THAT'S A GREAT QUESTION. I DON'T HAVE THAT OFF THE TOP OF MY HEAD. BUT THAT WOULD BE INTERESTING TO LOOK AT.

>> ANOTHER REALLY IMPORTANT NOTE ABOUT THE CAMERA, THAT'S ONE OF THE REASONS WE PIVOTED IN MARCH TO DIFFERENT LOCATIONS WE REALIZED PUTTING THAT FIXED CAMERA ON A TRAFFIC INTERSECTION GAVE US VERY LIMITED EVIDENTIARY VALUE. NOW WITH THE LOCATIONS IDENTIFIED IN PEDESTRIAN-HEAVY LOCATIONS WE EXPECT TO HAVE A LOT MORE VALUE FROM THOSE AND BE ABLE TO AGAIN, CAPTURE DATA ABOUT WHEN WE ARE LOOKING AND HAVE A ROBUST AUDIT REPORT ONCE WE GET THOSE TECHNOLOGIES IN PLACE.

>> C. LUNAPARRA: THANK YOU. WOULD IT BE POSSIBLE TO RECORD WHEN IT WAS ACCESSED FOR THE FUTURE, FOR THOSE ONGOING EVALUATIONS?

>> YOU ARE SAYING TO RECORD, TO COUNT HOW MANY DAYS FROM THE EVENT THAT WE ARE REVIEWING HAVE PASSED TO THE DATE THAT WE REVIEW IT?

>> C. LUNAPARRA: YES.

>> YEAH, WE CAN TAKE A LOOK AT WHAT THAT WOULD INVOLVE.

>> MAYOR ISHII: CAN I CLARIFY SOMETHING THAT MIGHT BE USEFUL?

>> C. LUNAPARRA: YES.

>> MAYOR ISHII: I THINK PERHAPS IT MAY BE WE ARE WONDERING WHEN THE DATE OF THE INCIDENT HAPPENED AND THE INFORMATION ACCESSED AND THAT WILL CLARIFY THE TIME PERIOD.

>> RIGHT, WAS IT 30 DAYS OR 180 DAYS.

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>> C. LUNAPARRA: EXACTLY.

>> MAYOR ISHII: MAYBE THAT WILL BE SIMPLER. THANK YOU.

>> C. LUNAPARRA: THANK YOU SO MUCH.

>> MAYOR ISHII: IS THAT IT, COUNCILMEMBER?

>> C. LUNAPARRA: YES, THAT'S IT. THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR QUESTIONS. COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: THANKS. JUST A FEW MORE. I JUST WANT TO CHIME IN ON WHAT YOU WERE TALKING ABOUT. I BELIEVE WHEN SOMEBODY DOES A SEARCH ON THE SYSTEM, OBVIOUSLY THE TIME AND DATE OF THE SEARCH WILL BE RECORDED. ALSO YOU HAVE TO SEARCH BY A DATE, RIGHT? IT'S LINEAR FOOTAGE OF TIME. SO I THINK THAT WOULD JUST BE A SUBTRACTION PROBLEM, IS THAT RIGHT?

>> YEAH, I THINK WE COULD PROBABLY --

>> S. O'KEEFE: THAT SHOULD BE STRAIGHT FORWARD TO COLLECT. IF YOU ARE ALREADY COLLECTING THE INFORMATION YOU NEED.

>> YEAH, SO THE DATE RANGE IS SIMPLER TO SEE FOR THE ALPR'S BECAUSE YOU ARE SEARCHING FOR A SPECIFIED DATE RANGE. YEAH, WE WOULD SEE THE SPECIFIC DATE YOU ARE LOOKING AT.

>> S. O'KEEFE: THE FOOTAGE WILL ALSO HAVE DATES. I THINK THAT ACTUALLY SHOULD BE EASY. TWO FOLLOW-UP QUESTIONS FROM THINGS I HEARD. ONE IS FOR POLICE -- OH, BACK TO THE AUDITING QUESTION, I THINK THERE WAS A BRIEF DISCUSSION FROM COUNCILMEMBER TREGUB

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ABOUT THE ISSUE OF THE AUDIT, THE INFORMATION OF THE AUDIT INTERFERING WITH POSSIBLE ONGOING INVESTIGATIONS. SO I WAS WONDERING, WE KIND OF LEFT THAT BEFORE I WAS READY. DO YOU HAVE A SUGGESTION? LIKE IS THERE A GAP, A TIME GAP THAT YOU COULD NAME THAT WOULD MAKE THAT MORE COMFORTABLE? LIKE LET'S SAY YOU WERE DOING AUDITS FROM SIX MONTHS AGO. DO YOU HAVE A SUGGESTION FOR SOMETHING WE COULD ADD?

>> YES, CERTAINLY LOOKING AT INCIDENTS FROM SIX MONTHS AGO WOULD LIMIT THE NUMBER OF INCIDENTS THAT WOULD POTENTIALLY BE PART OF ONGOING INVESTIGATIONS. AND THEN LIMITING THE TYPE OF INFORMATION WITHIN THAT WOULD ALSO PROTECT US FROM REVEALING SOMETHING THAT WOULD HARM AN ONGOING INVESTIGATION, OR REVEAL SOME PERSONALLY-IDENTIFYING INFORMATION.

>> S. O'KEEFE: AS LONG AS YOU HAD THE ABILITY TO REDACT WHAT WAS IN THE AUDIT AND THE TIME BARRIER ALSO WOULD HELP.

>> YES.

>> S. O'KEEFE: I THINK THAT SEEMS LIKE A GOOD APPROACH. MY FOLLOW-UP QUESTION IS MORE IN THAT DIRECTION. THIS IS SOMETHING WE SPOKE ABOUT BRIEFLY EARLIER. WHAT DO YOU THINK ABOUT THE IDEA OF RELEASING, IN ADDITION TO THE AUDIT JUST THE RAW DATA. WHICH WOULDN'T HAVE QUESTION MUCH. YOU LOOK AT THE ACTUAL FOOTAGE TO MAKE SURE IT WAS CORRECT OR WHATEVER. BUT IF PEOPLE WERE ALSO ABLE TO SEE A LIST OF REASONS SOMEBODY SEARCHED AND WHY AND

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WHEN, THAT WAS FROM A LITTLE WHILE AGO, DO YOU THINK THAT WOULD BE CUMBERSOME? I THINK IT WOULD BE HELPFUL FOR THE PUBLIC BUT ALSO WANT TO KNOW WHAT THAT WOULD LOOK LIKE FROM YOUR END.

>> SO YEAH, JUST TO CLARIFY, THAT WOULD INVOLVE GOING THROUGH THOSE INDIVIDUAL INSURANCE DEPARTMENTS AND MAKING SURE WE WORE NOT RELEASING ANYTHING THAT WOULD BE HARMFUL TO AN ONGOING INVESTIGATION OR ANY PERSONALLY IDENTIFYING INFORMATION. SO UNDERSTANDING THAT WOULD CREATE SOME ADDITIONAL WORK FOR US BUT ESPECIALLY IF WE COULD PUT IN SOME LIMITATIONS TO THAT, SOME PARAMETERS AROUND THE TIME PERIOD TO HELP FACILITATE THAT, THE PORTION OF THE RAW DATA THAT INCLUDES THE DATE OF THE SEARCH AND THE REASON FOR THE SEARCH, I THINK WE COULD PRODUCE THAT.

>> S. O'KEEFE: THAT WOULD BE GOOD. ONE THING TO NOTE, I KNOW THIS IS MORE OF A COMMENT BUT JUST FOR CONTEXT TO THAT QUESTION, THE ARTICLE A LOT OF PEOPLE ARE REFERENCING, AROUND THIS KIND OF DATA. I WAS THINKING IF IT WAS REPORTED PUBLICLY, I THINK THAT MIGHT ALLEVIATE SOME OF THE FEARS THE ARTICLE IS BRINGING UP. WE CAN TALK ABOUT THAT MORE LATER. THANK YOU FOR THAT ANSWER. I HAVE ANOTHER QUESTION. IT'S MY LAST ONE. IT'S FOR TREVOR.

>> YES.

>> S. O'KEEFE: I DIDN'T WANT YOU TO FEEL LEFT OUT. I WAS A LITTLE CONFUSED, I MAY HAVE MISSED SOMETHING SO I APOLOGIZE. WHEN YOU WERE ANSWERING COUNCILMEMBER TREGUB'S QUESTION, I HEARD

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YOU TALK ABOUT ANONYMIZED DATA. AND I DIDN'T QUITE UNDERSTAND WHAT YOU MEANT. AND ACTUALLY, ONE THING I REALLY WANT TO CLARIFY IS DOES THIS OPERATION WE ARE TALKING ABOUT INVOLVE ANY FACIAL RECOGNITION?

>> NO.

>> S. O'KEEFE: OKAY. THAT'S WHAT MY UNDERSTANDING, I JUST WANTED TO MAKE THAT VERY CLEAR. IT ALMOST SOUNDED LIKE YOU WERE TALKING ABOUT PEOPLE'S IDENTITIES. COULD YOU CLARIFY WHAT YOU MEANT?

>> YEAH, MAINLY, ESPECIALLY WITH THE MACHINE LEARNING, IT'S MAINLY APPLICABLE FOR OUR L.P.R. BECAUSE OF UPDATED CAR MODELS, THAT SORT OF THING.

>> S. O'KEEFE: MACHINE LEARNING MAKES SENSE IN THE ALPR CONTEXT BUT I WASN'T SURE THIS CONTEXT.

>> IN THIS CONTEXT WHILE THERE'S NO FACIAL RECOGNITION THERE'S NOTIFICATION OF IF THERE'S A HUMAN IN FRAME, THAT'S WHAT THIS IS IN REGARDS TO.

>> S. O'KEEFE: I SEE. BUT I WANT TO MAKE THAT REALLY CLEAR, NO FACIAL RECOGNITION WRITTEN IN THE DOCUMENTS IN THESE POLICIES. THANK YOU VERY MUCH. THOSE ARE ALL MY QUESTIONS, I PROMISE.

>> MAYOR ISHII: OKAY. I HAVE SOME QUESTIONS AS WELL. THANK YOU ALL SO MUCH. SO I KNOW WE HAVE TALKED A LITTLE BIT, QUITE A BIT ABOUT WHO CAN ACCESS THIS FLOCK DATA. I WANT TO MAKE SURE FROM THE CITY OF BERKELEY SIDE, IS IT JUST B.P.D. OFFICERS?

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>> WELL, AS YOU CAN IMAGINE, THERE'S INSTANCES WHERE OUR DISPATCHERS MIGHT WANT TO BE ABLE TO MAKE USE TO PROVIDE INFORMATION TO OFFICERS. AS WE STEP INTO THIS TECHNOLOGY WE ARE GOING TO LEARN WHAT THOSE USES MIGHT BE. OUR COMMUNITY SERVICE OFFICERS WHO WE ARE DEPLOYING AS A MID-LEVEL APPROACH WILL BE ENGAGED IN TAKING REPORTS AND THERE MAY BE EVIDENTIARY VALUE ON THAT FOOTAGE IN THAT SPACE. BUT EVERYTHING IN OUR ORGANIZATION IS BOUND TO THE DEPARTMENTAL POLICY, TO STATE LAW AND THE CITY'S POLICIES.

>> MAYOR ISHII: SURE, JUST TO CLARIFY, THAT'S JUST FOLKS WITHIN B.P.D. WHETHER SWORN OR UNSWORN, NOT LIKE OTHER DEPARTMENTS.

>> THERE MIGHT BE SOME INSTANCE WHERE I.T. FOR SOME TECHNICAL REASON WAS ENGAGED AND THAT'S WRITTEN IN OUR POLICIES BUT THAT WOULD NOT BE A REGULAR USE AND WOULD BE A MONITORED AND REPORTED USE.

>> MAYOR ISHII: SURE. AND I ALSO WANTED TO CLARIFY FOR, I UNDERSTAND THAT WE ARE GOING TO HAVE A CLOUD THAT WE HAVE ACCESS TO, BUT DO FLOCK EMPLOYEES ALSO HAVE ACCESS TO THAT DATA?

>> TREVOR MIGHT BE ABLE TO SPEAK TO THE TECHNICAL COMPONENTS OF THAT. BUT IT IS OUR CLOUD ENVIRONMENT. THE DATA IS NOT CO-MINGLED WITH ANY OTHER AGENCY'S DATA. SO IT'S ISOLATED TO OUR ACCESS AND USE. AS WE GET AUTHENTICATED THROUGH THE PLATFORM, THAT'S WHAT GRANTS US ACCESS TO THE FOOTAGE.

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>> YES, AND FLOCK ONLY HAS ACCESS TO THE DATA AS OUTLINED IN THE CONTRACT WHICH IS TO ADDRESS MALFUNCTIONING ISSUES. SO WE DON'T HAVE A GENERAL RIGHT OF ACCESS TO THE DATA.

>> MAYOR ISHII: THANK YOU, I APPRECIATE THAT. AND CHIEF, I KNOW THAT COUNCILMEMBER LUNAPARRA HAD ASKED SOME QUESTIONS IF FLOCK HAD BEEN ASKED BY I.C.E. AGENTS FOR DATA, CAN YOU JUST TALK THROUGH, OKAY, FLOCK SAID YOU HAVE TO TALK TO THE CITY OF BERKELEY, IT'S THEIR DATA, THEN WHAT WOULD HAPPEN, CAN YOU JUST TALK US THROUGH THAT?

>> WHAT I IMAGINE IS FLOCK WOULD NOTIFY US THAT SOMEONE WAS TRYING TO MAKE ACCESS. WE WOULD DIRECT FLOG, THAT'S OUR DATA, TREVOR SHARED WHAT THEY WOULD DO. I WOULD PROBABLY RECEIVE THE SUBPOENA AND ENGAGE IN A LONG CONVERSATION WHAT THEY WERE SEEKING AND WHY, TO SEE IF IT COMPLIED WITH THE STATE LAW, SANCTUARY CITY POLICY, I WOULD ASK TO SEE WHAT THEY WANT AND WHY AND I CARRY FORWARD TO THE CITY MANAGER, CITY COUNCIL AND CITY ATTORNEY'S OFFICE. SO WE COULD HAVE A LONG CONVERSATION ABOUT WHAT THEY WERE ASKING AND DETERMINE THE STEPS WE WOULD NEED TO PURSUE IF IT WAS AGAINST THAT IF AGAINST OUR EXISTING USE POLICY AND VALUES.

>> MAYOR ISHII: THANK YOU. I KNOW WE TALKED ABOUT HOW THIS TECHNOLOGY WE ARE TALKING ABOUT DOESN'T HAVE FACIAL RECOGNITION. THAT'S NOT ALLOWED IN OUR POLICIES ANYWAY. I'M WONDERING IF YOU

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ARE USING THE TECHNOLOGY WITH A LICENSE PLATE READER TECHNOLOGY OR ANY OTHER ADD-ONS THAT MIGHT COME FL IN THE FUTURE.

>> NEITHER OF THE TWO TECHNOLOGIES WILL ALERT TO EACH OTHER. THEY ARE NOT INTEGRATED LIKE THAT. BUT ANY, SOFTWARE AND HARDWARE IS A SERVICE. SO ANY UPDATES THAT WOULD COME THAT WOULD BE EXCLUDED IN OUR CONTRACT, WE WOULDN'T BE ABLE TO FOLLOW, IF IT'S IN OUR USE POLICY. WE WOULD HAVE TO COME BACK TO COUNCIL TO BE ABLE TO USE.

>> MAYOR ISHII: THANK. AND FOR TREVOR ONLINE, THANK YOU FOR BEING HERE SO LATE THIS EVENING. CAN YOU SPEAK TO, I WANT TO MAKE SURE, WE HAVE CONCERNS ABOUT FLOCK HAVING THE DISCRETION TO HAND DATA OVER TO OTHER LAW ENFORCEMENT AGENCIES IF THEY FEEL THERE'S A PUBLIC RISK. I WONDER IF THIS IS SOMETHING TO ADDRESS WHEN WE HAVE CONTRACT DISCUSSIONS WITH THAT. YES, IN OUR CURRENT CONTRACT LANGUAGE WE TRY TO BE AS CLEAR AS POSSIBLE BY THE LEGAL LENGTHS WE CAN GO THROUGH PIECE OF SUBPOENA AND WARRANT SIGNED BY A JUDGE AND WHAT NOT. WE WILL CONTINUE TO WORK THROUGH THE CONTRACT LANGUAGE TO THAT REGARD.

>> MAYOR ISHII: THANK YOU. AND JUST SO FOLKS CAN UNDERSTAND WHEN WE TALK ABOUT THESE REPORTS, WE ARE TRYING TO GET AUDIT INFORMATION, WHAT FORM DO THEY SIGN, IS IT A PDF, A FILE, WHAT DOES THAT LOOK LIKE?

>> SO IS THERE INFORMATION YOU GET FROM FLOCK, MAYBE A QUESTION

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FOR, ARLO.

>> WE ARE ABLE TO SEE A LOG OF EACH INDIVIDUAL ACCESS AND THE REASON FOR IT. SO THEN WE SUMMARIZE THAT IN OUR AUDIT REPORT.

>> MAYOR ISHII: I THINK THOSE ARE ALL MY QUESTIONS. MY COLLEAGUES WERE GREAT QUESTION ASKERS. COUNCILMEMBER TAPLIN?

>> T. TAPLIN: THANK YOU, MADAM MAYOR. I HAVE

>> WE WANT TO MAKE SURE THAT WE ARE PROVIDING ASSURANCES TO THE COMMUNITY AND COUNCIL THAT WE ARE LOOKING AT THE RIGHT THINGS FOR THE RIGHT REASONS. WE WANT TO MAKE SURE WE AREN'T PUTTING OUR COMMUNITY AT RISK. WHAT MIGHT SEEM LIKE A SMALL ASK AND HAVER OR DOWNLOADING SOMETHING THAT COULD CREATE,, PREPARING A COUNCIL REPORT AND COMING MORE OFFICIALLY THAN PRODUCING A REPORT ANNUALLY OR OFF THE AGENDA MEMO. I HIGHLY VALUE THE WORK OUR OFFICE OF STRATEGIC POLICE ACCOUNTABILITY THAT ARLO IS ENGAGED IN. WE HAVE COMPETED AUDIT RESPONSIBILITIES; WE AUDIT OR PROPERTY ROOM AND HAVE POLICIES AROUND THE WEAPONS. ALL THE DIFFERENT WAYS WE CAPTURE DATA. WHAT I MEAN BY THAT, IF WE ASK OFFICERS TO COLLECT MORE DATA ABOUT WHAT THEY ARE DOING, OR WHY, IT'S JUST AN ADDED TASK, IN A TIME WE ARE REALLY WORKING ON A SHOESTRING OF PERSONNEL. FOR ME IT'S IMPORTANT TO BE REPORTING ON AND CAPTURING THE THINGS THAT MAKE SENSE AND PROVIDE US VALUE. AND AS WE MAKE DECISIONS ABOUT USE POLICIES AND BRINGING TECHNOLOGIES ON, AND SO I JUST REALLY WOULD LEAN INTO US

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UNDERSTANDING THE COST OF TIME AND REALLY FOCUSING ON AND MAKING THINGS AS WELL. BUT NOT SO MUCH THAT THEY ARE UNNECESSARY OR BECOME UNHELPFUL.

>> MAYOR ISHII: COUNCILMEMBER TREGUB, DO YOU HAVE ANOTHER QUESTION?

>> I. TREGUB: YEAH, JUST AS A FOLLOW-UP TO THAT. CURRENTLY, CAN YOU JUST CONFIRM DATA? THERE IS A BIANNUAL AUDIT, WHATEVER WE ARE CONTEMPLATING APPROVING TONIGHT WILL NOT BE A CHANGE TO THE CITY OF THE AUDIT, CORRECT?

>> YEAH, IF WE DON'T CHANGE FROM BIENNIAL, THERE WILL BE NO CHANGE. THAT'S WHAT IS CURRENTLY ENSHRINED IN POLICY.

>> I. TREGUB: SO THIS, WHAT KIND OF, WHAT IS THE PURPOSE OF THE BIENNIAL AUDIT RIGHT NOW?

>> TO IDENTIFY ANY UNAUTHORIZED ACCESSES TO THE SYSTEM TO MAKE SURE THAT EVERY ACCESS TO THE SYSTEM WAS IN POLICY.

>> I. TREGUB: OKAY.

>> MAYBE JUST ADD SOME MORE FLAVOR TO THAT. IT WOULD TELL US IF A CAMERA WASN'T OPERATING CORRECTLY. IT COULD TELL US THAT OFFICERS AREN'T BEING CLEAR ENOUGH IN THEIR DESCRIPTION WHEN WRITING PURPOSE OUT. WE WOULD DO TRAINING. WE DON'T WANT TO WAIT A WHOLE YEAR ABOUT COLLECTING INFORMATION AND DO SOMETHING IF THERE'S A PROBLEM. I THINK IT'S REASONABLE TO SET THAT SIX-MONTH PERIOD.

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>> I. TREGUB: THANK YOU.

>> MAYOR ISHII: OKAY. I THINK THAT'S IT FOR COUNCIL QUESTIONS. DO WE HAVE PUBLIC COMMENT HERE FOR THIS ISSUE? IF YOU HAVE A PUBLIC COMMENT COME ON UP.

>> GOOD EVENING, I'M STEVEN MILLER, JULIE DICKIE ON ZOOM IS GIVING ME SOME TIME SO I CAN COME TO THANK YOU FOR THIS CONTRACT TO INSTALL SURVEILLANCE CAMERAS FOR US. AS TOM HOHMANN OUR BORDER CZAR ANNOUNCED WE ARE TURNING OUR FOCUS TO SANCTUARY CITIES. THE BIG BEAUTIFUL BILL OFFERS OPPORTUNITIES FOR COMPANY WHO'S CAN EXPAND OUR ABILITY TO PROTECT AMERICAN CITIZENS FROM THE FOREIGN GANGSTERS THAT HAVE INFILTRATED CITIES SUCH AS YOURS. AS THE REPORT BEFORE YOU TONIGHT SAYS THE CITY WILL DEPEND ON FLOCK SAFETY FOR THE CAMERA HARDWARE. THE FLOCK O.S. SOFTWARE PLATFORM, CELLULAR TRANSMISSION, CLOUD STORAGE, ET CETERA, I ASSURE YOU, BERKELEY WILL NOT SUPERVISE THE FLOCK PROPRIETARY SYSTEM AND WE WILL NOT ALLOW YOUR ILLEGITIMATE POLICIES OR UNCOOPERATIVE LOCAL LAW ENFORCEMENT OFFICERS TO INTERFERE WITH OUR WORK. AS A BERKELEY OFFICIAL SAID, LANGUAGE IN A CONTRACT DOES NOT ENSURE COMPLIANCE. I AM NOT HERE TO DESCRIBE SPECIFICS BUT YOU DON'T NEED TO WORRY ABOUT OUR METHODS FOR GETTING AROUND DATA ENTRY LOGS, FOR GETTING AROUND ACCESS LOGS, FOR GETTING AROUND ENCRYPTION. YOUR ACCEPTANCE OF THE CAMERAS TO CREATE VALUABLE DATA IS THE ONLY PIECE WE NEED FROM

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YOU. SO YOU ARE WELCOME TO FORGET THAT I CAME OUT TONIGHT. WE CAN TAKE IT FROM THERE, AS SOON AS YOU GET THAT CONTRACT SIGNED. THANK YOU SO VERY MUCH.

>> MAYOR ISHII: THANKS, KIT. OKAY. GO AHEAD.

>> YEAH, I STRONGLY ENCOURAGE YOU TO REJECT ENTANGLING AND EMBEDDING THIS MASS SURVEILLANCE SYSTEM IN BERKELEY IN OUR COMMUNITY. THESE CONDOR SYSTEMS ARE MACHINE LEARNING TO TRACK AUTONOMOUSLY WITHOUT A HUMAN ZOOMING IN TO MAKE A DIGITAL FINGERPRINT OF THESE INDIVIDUALS SO YOU CAN ACTUALLY TRACK THEM THROUGH THE FRAME AND ACROSS THESE CAMERAS. IS THAT FACIAL RECOGNITION, I GUESS NOT YET. BUT A LOT MORE THAN A STANDARD SECURITY CAMERA. THIS IS IN THEIR OWN P.R. DOCS, THIS IS A PRIVATE COMPANY BASED IN GEORGIA. THEIR WHOLE BUSINESS MODEL IS TO CENTRALIZE THIS DATA AND MAKE IT AVAILABLE TO ENFORCEMENT AND GOVERNMENT. THEY SAY THE DATA IS OURS BUT THEY HAVE THE ENCRYPTION KEYS AS WELL, I'M SURE THEY WILL FORWARD ON THE REQUESTS BUT ALSO VERY LIKELY GIVE THAT DATA UP TO THE GOVERNMENT WHEN IT ASKS AND THE FEDERAL GOVERNMENT WILL ASK.

>> MAYOR ISHII: THANKS FOR YOUR COMMENT.

>> I'M EXTREMELY DISAPPOINTED THAT WE ARE TALKING ABOUT HUNDREDS OF THOUSANDS OF DOLLARS, IN MY OPINION. I DON'T KNOW EXACT NUMBERS, I HAVEN'T SEEN AN EXACT NUMBER. BUT HOW MANY CRIMINALS WILL THIS THOUSANDS OF DOLLARS ACTUALLY CAPTURE? AND WE ARE

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PAYING FOR THE EQUIPMENT; WE ARE PAYING FOR PEOPLE'S TIME. YOU KNOW WE ARE GOING INTO A DEEP RECESSION; DEPRESSION IS COMING. SO HERE WE HAVE TOTAL LACK OF STAFFING, 30% LACK OF STAFFING THROUGHOUT THE CITY. WE ARE IN A FINANCIAL CRISIS AND YET YOU ARE TALKING ABOUT SPENDING TREMENDOUS AMOUNT OF MONEY FOR WHAT? STUFF IN THE CLOUD. YOU THINK THAT'S SECURE? HOW COULD YOU POSSIBLY BELIEVE THAT? JUST THE FACT IS WE COULD USE THAT MONEY FOR HELPING PEOPLE. JUST DO THE ARITHMETIC, HOW MANY ACTUAL CONVICTIONS?

>> MAYOR ISHII: THANK YOU.

>> HELLO, EVERYONE. I FEAR THAT WE, AS A COMMUNITY ARE BEING HOOD WINKED A LITTLE BIT. BECAUSE YOU ASKED IS THERE FACIAL RECOGNITION IN THIS TECHNOLOGY. NO, THERE'S NO FACIAL RECOGNITION, TECHNICALLY, BUT AS JUST DESCRIBED IT FUNCTIONS LIKE FACIAL RECOGNITION IN THAT IT COULD TARGET AN INDIVIDUAL AND TRACK THEM. IT'S END-TO-END ENCRYPTED BUT ONE OF THOSE ENDS IS FLOCK, IS A PRIVATE COMPANY. ARE WE REALLY COMFORTABLE TRUSTING THAT THIS PRIVATELY-OWNED OUT-OF-STATE COMPANY THAT'S ALREADY GIVEN DATA TO I.C.E. IS GOING TO FOLLOW OUR SANCTUARY CITY REQUIREMENTS? WE DON'T HAVE TO WORRY ABOUT IF THE DATA IS SECURE IF WE DON'T COLLECT THAT DATA AND AS OF RIGHT NOW WE ARE ALREADY SURVEILLING A LOT OF THE CITY, WE DON'T NEED TO MAKE IT WORK. WHEN I.C.E. COMES KNOCKING AND THEY WILL COME KNOCKING

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SOON, YOU WILL HAVE TO TAKE PERSONAL RESPONSIBILITY YOU COLLECTED DATA THAT WILL LEAD TO PEOPLE BEING DEPORTED.

>> MAYOR ISHII: THANKS FOR YOUR COMMENT.

>> HI, GOOD EVENING. I WOULD JUST LIKE TO EXPAND ON WHAT WAS SAID AND ASK WHAT HAPPENS IF THE FEDERAL GOVERNMENT OR I.C.E. CONTACTS AMAZON WEB SERVICES DIRECTLY, THIS IS WHERE FLOCK IS STORING THE DATA. THE ENCRYPTION SERVICE THEY USE HAVE BEEN DECRYPTED OR BREACHED NUMEROUS TIMES OVER ITS HISTORY. I THINK THIS IS BEYOND MY BELIEF IT IS BEYOND. I'M SAYING THERE'S NO MECHANISM TO STORE OR RECORD SUCH SENSITIVE INFORMATION. THANKS.

>> MAYOR ISHII: THANK YOU. GO AHEAD.

>> THANKS, EVERYBODY. I REALLY APPRECIATE ALL OF THE COMMENTS LEADING UP TO THIS. I'M REALLY, REALLY GRAVELY CONCERNED JUST AS A CITIZEN RIGHT NOW. I THINK ALL OF US ARE ENRAGED AND AFRAID BECAUSE WE HAVE SEEN THE GOVERNMENT SCOOP PEOPLE OFF THE STREET AND PUT THEM AWAY AND SOMETHING SIMILAR HAPPENED IN BERKELEY IN 1942 WHEN THE CITY ALLOWED MORE THAN 1,000 JAPANESE AMERICANS TO BE ABDUCTED FROM OUR STREETS AND INTERNED AND I THINK A REALLY IMPORTANT QUESTION TO ASK, WHAT WOULD YOU HAVE DONE THEN? HOW IN LARGE AND SMALL WAYS ARE YOU ALLOWING SOMETHING SIMILAR TO HAPPEN NOW, EVEN IF IT SEEMS SOMETHING SMALL LIKE BUILDING A MASSIVE SURVEILLANCE APPARATUS FOR A VERY DANGEROUS FEDERAL GOVERNMENT. WOULD YOU HAVE CAPITULATED? WOULD YOU HAVE

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CAPITULATED WHEN THEY CAME IN WITH A SUBPOENA? COULD YOU FIGHT THAT AND HOW ARE YOU GOING TO TAKE RESPONSIBILITY FOR IT?

>> MAYOR ISHII: THANK YOU.

>> HI, I JUST WANT TO ADD ONE MORE DIMENSION TO WHAT'S BEEN SAID ALREADY. CONCERN REGARDING ACCESS TO DATA AND WHO HAS ACCESS TO DATA IS VERY REAL. I THINK LOCALLY IT'S ALSO A CONCERN. I WAS NOT CONVINCED AND I WOULD WAGER THAT NO ONE SHOULD BE CONVINCED THAT THE ANSWER TO THE QUESTION OF HOW THESE DATA THAT MIGHT BE GENERATED FROM THIS TECHNOLOGY CAN BE PROTECTED RELATIVE TO ALPR DATA, ESPECIALLY IN REFERENCE TO THE RECENT ARTICLE THAT CAME OUT ABOUT OPD AND SFPD SHARING DATA WITH THE FBI ILLEGALLY. THERE IS ACTUALLY NO LEGAL PROTECTION THAT B.P.D. IS BUILDING FOR THEMSELVES. SUCH THAT ANY INDIVIDUAL WITH ACCESS TO THIS DATA COULD STILL SHARE WITH SOMEONE FROM O.P.D. OR SFPD OR ANY NUMBER OF LOCAL AGENCIES WHO HAVE INDIVIDUALS WHO ARE WILLING TO COOPERATE WITH THE FBI AGAINST STATE LAW.

>> THANK YOU FOR YOUR COMMENT, NEXT SPEAKER.

>> HI. I AGREE WITH ALL THE COMMENTS ABOUT CONCERNS AROUND IMMIGRATION AND SANCTUARY STATUS. BUT I WANTED TO ADD THAT SANCTUARY STATUS IS NOT THE ONLY KIND OF CROSS JURISDICTIONAL ISSUE THAT MIGHT COME UP. WE HAVEN'T TALKED AT ALL ABOUT REPRODUCTIVE RIGHTS AND THE WAY THIS COMES UP ACROSS STATE LAWS. I WANT TO FLAG SANCTUARY STATUS ISN'T THE ONLY ISSUE AT HAND. I

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WANT TO FLAG A COUPLE CLAIMS AROUND ACCURACY, I KNOW THERE'S THE DIFFERENCE BETWEEN THE ALPR'S AND CONDOR BUT FLOCK AGREED TO ONLY INTERNAL. SOME CLAIMS ARE SUSPECT. THERE HAVE BEEN EXTERNAL EXPOSES WRITTEN ABOUT HOW THEY DON'T REALLY FUNCTION TO REDUCE THE CRIME RATES. I WANT TO CALL INTO QUESTION THIS TRUST UNTIL THE CLAIM IS BEING MADE.

>> T. TAPLIN: THANK YOU VERY MUCH. ANY OTHER PUBLIC COMMENTS IN THE ROOM? WE WILL TAKE SPEAKERS ON ZOOM.

>> CITY CLERK: FIRST IS CHERYL DAVILA, FORMER COUNCILMEMBER.

>> REPRODUCTIVE RIGHTS, LGBTQI RIGHTS, THE SANCTUARY CITY. THERE'S NO WAY THAT YOU CAN GUARANTY THAT FLOCK OR WHOEVER STORES FLOCK'S DATA, WHICH IS SUPPOSEDLY BERKELEY'S DATA ENCRYPTED IS NOT GOING TO BE UNENCRYPTED BY SOMEONE WHO DECIDES, LIKE THE FBI, CIA, HOMELAND SECURITY, YOU KNOW, WITH 47, NONE OF THESE AGENCIES CAN BE TRUSTED. THEY ARE GOING AFTER BLACK AND BROWN, MEN, WOMEN, DISAPPEARING FOLKS. REGARDLESS WHAT TREVOR SAYS OR ANYBODY ELSE, YOU CAN'T GUARANTY THEY'RE NOT GOING TO TURN OVER THAT DATA. THAT'S A CONCERN. ESPECIALLY WITH WHAT WE ARE FACING WITH THE FASCISM. AND YOU ALL ARE ACTING --

>> CITY CLERK: NEXT IS DANIEL BROWNSON.

>> YEAH. SO AS ANOTHER PERSON SAID, EVEN IF OUR POLICE DEPARTMENT IS MORE ETHICAL THAN O.P.D. OR L.A.P.D. OR S.F.P.D. AND REFUSES TO TURNOVER DATA TO I.C.E. OR THIS ADMINISTRATION,

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EVEN IF FLOCK, YOU KNOW, DOES WHAT THEY ARE SUPPOSED TO AND REFUSES TO TURN OVER DATA WITHOUT OUR PERMISSION, THEIR DATA IS HOSTED ON AMAZON WEB SERVICES. THEY CAN GET THE DATA FROM THERE DIRECTLY. THIS IS THE FEDERAL GOVERNMENT WE ARE TALKING ABOUT. THE ONLY WAY THAT IT IS SECURE IS IF IT'S NOT ON THE CLOUD AT ALL, OR DOESN'T EXIST.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS WILL G.

>> HI THERE. LIKE MANY OTHERS HERE TONIGHT, I STRONGLY ENCOURAGE THE COUNCIL TO REJECT FLOCK AS A VENDOR, AS MANY PEOPLE HAVE SAID ALREADY, DESPITE THE ASSURANCES MADE IN THE SURVEILLANCE ACQUISITION REPORT AND TONIGHT'S PRESENTATION THAT FOOTAGE COLLECTED BY THE NEW CAMERAS WON'T BE SHARED WITH I.C.E., RELYING ON POLICIES BEFORE ALREADY FAILED RESIDENTS IN OAKLAND AND SAN FRANCISCO. O.P.D. AND S.F.P.D. BOTH REPEATEDLY BROKE STATE LAW SB 34 BY SHARING THEIR INFORMATION WITH I.C.E. ALL IT TAKES IS AN AGENT OR POLICE OFFICER TO SHARE INFORMATION WITH I.C.E. ON THEIR OWN VOLITION. THESE BREACHES WEREN'T LIMITED TO EXTERNAL A.L.P.R. REQUESTS. IN AT LEAST TWO CASES, STAFF MADE SEARCHES THEMSELVES ON BEHALF OF THE F.B.I., THE ONLY WAY TO MAKE SURE IT'S NOT COLLECTED WITH I.C.E. IS TO NOT COLLECT IT AT ALL. THANK YOU.

>> MAYOR ISHII: THANK YOU. ARE THERE OTHER COMMENTS ONLINE?

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>> CITY CLERK: GEORGE LIPPMAN.

>> YES, HI. THANKS FOR ALL THE PRESENTATIONS BUT THEY DON'T GIVE ME A LEVEL OF COMFORT. HERE IS HOW IT'S REALLY GOING TO WORK, PLEASE TAKE TIME TO READ THROUGH THE ARTICLES ABOUT THE S.F.P.D. AND O.P.D. AND ALSO SAN DIEGO, YOU WILL NEED TIME TO DO THAT, YOU CAN'T APPROVE IT TONIGHT IF YOU WANT TO TAKE IT SERIOUSLY. ANYTHING IS OPEN TO A QUERY BY OTHER DEPARTMENTS. THEN IMMIGRATION OR WHOEVER IS REPRESSING REPRODUCTIVE RIGHTS CAN ASK IF ANY FRIENDLY DEPARTMENT THAT IS A FLOCK USER TO SEE THE TARGET DEPARTMENT'S DATA. THAT IS A HOLE IN THE WEB OF PROTECTION FROM IMMIGRATION. A VOTE IN FAVOR OF THE FLOCK ITEM IS A VOTE FOR GIVING INFORMATION ON OUR PEOPLE TO I.C.E. AND OTHER IMMIGRATION AGENCIES, WHICH LEST WE FORGET ARE PART OF AN UNCONSTITUTIONAL, CRIMINAL RACIST ADMINISTRATION. THIS IS NOT THE TIME.

>> MAYOR ISHII: THANKS, GEORGE. YOUR TIME IS UP.

>> CITY CLERK: NEXT IS MONI.

>> THIS PROPOSAL SEEMS NOT TESTED AND HIGHLY RISKY. IT SEEMS TO ME THAT IN SUCH A MEASURE AS THIS WE MUST BE MORE THAN JUST SLIGHTLY QUESTIONING OR CONCERNED BUT INSISTING THAT, FOR EXAMPLE, SOCIAL MEDIA SCRUBS ARE DONE BY OUR POLICE DEPARTMENT WHICH HAS BEEN ASKED IN THE PAST IN PRIOR CASES. PROUD BOYS AND OTHER WHITE SUPREMACIST GROUPS HAVE BEEN NAMED THE NUMBER ONE

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PUBLIC SAFETY RISK TO THIS NATION BY THE FBI REPORTS. I DO NOT FIND THIS IN ANY WAY REASSURING FOR MY SAFETY. THESE TYPES OF MACHINES HAVE ALSO BEEN SHOWN TO MISREAD BLACK AND BROWN SKIN AND PEOPLE HAVE BEEN WRONGFULLY DETAINED. THIS TYPE OF INFORMATION CAN BE USED TO OUR HARM INSTEAD OF OUR BENEFIT. AND HAVING HAD THE PROUD BOYS FOCUS ON US, YOU COULD CERTAINLY EXPECT THEM TO COME SOON, AS WHAT THEY BELIEVE THEMSELVES BEING THE GUARDIANS OF THEIR WAR ON OUR COMMUNITY.

>> MAYOR ISHII: THANKS, YOUR TIME IS UP. THANKS, MONI.

>> CITY CLERK: NEXT IS LEN.

>> HELLO, GOOD EVENING. I WAS, I WOULD LIKE TO SHARE THE OPINION OF LOTS OF OTHER PEOPLE WHO HAVE SPOKEN TONIGHT AND URGE THE COUNCIL TO REJECT THIS PROPOSAL. THERE'S BEEN A LOT OF DISCUSSION ABOUT WHAT IS AVAILABLE IN TERMS OF, YOU KNOW, REQUIRING A SUBPOENA, FINDING A WARRANT. DATA LIKE THIS THAT IS STORED AND CONTROLLED BY A PRIVATE COMPANY, THAT IT IS HELD BY A PRIVATE COMPANY DOESN'T HAVE THE SAME PROTECTION THAT ONE MIGHT EXPECT FROM THE FOURTH AMENDMENT. THE A LOWER STANDARD. NOT ONLY THAT BUT ALSO ALL OF THESE PRECAUTIONS IN PLACE ARE ONLY GOING TO WORK SO LONG AS THE FEDERAL LAW AGREES, ASSUMING THAT THE CURRENT BENCH IS GOING TO ALLOW YOU TO SUCCESSFULLY FIGHT THESE SUBPOENAS IS NIE EF AT BEST. NAIVE AT BEST. THE ONLY WAY TO MAKE SURE IT'S NOT USED AGAINST OUR COMMUNITY IS TO NOT COLLECT IT IN

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THE FIRST PLACE AND NOT BE DOING IT.

>> CITY CLERK: NEXT IS JOSH CAYETANO.

>> HI, HONORABLE COUNCILMEMBERS, MADAM MAYOR. I'M JOSH CAYETANO. CHAIR OF THE POLICE ACCOUNTABILITY BOARD. I JUST WANT TO POINT OUT IF WOULD HAVE BEEN REALLY BENEFICIAL FOR THE COMMUNITY AND FOR THE COUNCIL IF THE POLICE ACCOUNTABILITY BOARD WAS PRESENT TO ANSWER QUESTIONS ABOUT OUR RECOMMENDATION. IN THE FUTURE I HOPE IT'S SOMETHING THE COUNCIL WILL CONSIDER. THE POLICE ACCOUNTABILITY BOARD SUBMITTED A LETTER IN LIGHT OF REPORTS THAT FLOCK'S DATA HAD BEEN ACCESSED OR SHARED WITH FEDERAL AGENCIES ACROSS THE COUNTRY, INCLUDING OAKLAND AND SAN FRANCISCO. ONE THING NOT OPENED IS OFFICERS WILL WRITE THE REASON FOR THEIR REPORT. D.H.S. INVESTIGATION. AND CURRENT POLICY, CURRENT IMMIGRATION POLICY DOESN'T ACTUALLY PREVENT BERKELEY OFFICERS FROM ASSISTING IN A CRIMINAL INVESTIGATION.

>> MAYOR ISHII: SORRY, JOSH. TYPICALLY IF SOMEONE HAS GIVEN YOU A MINUTE ONLINE WE DO IT THAT WAY. YOUR TIME IS UP, UNFORTUNATELY. BUT WE DID RECEIVE YOUR REPORT AND I APPRECIATE YOU SENDING THAT OVER.

>> CITY CLERK: NEXT IS ELANA AUERBACH.

>> I'M HAPPY TO GIVE MY MINUTE TO JOSH.

>> MAYOR ISHII: IF YOU WANT TO CONTINUE, YOU HAVE GOT ELANA'S MINUTE. I THINK WE ARE BRINGING JOSH BACK.

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>> CITY CLERK: YEP, HE SHOULD BE ABLE TO UNMUTE.

>> HI.

>> CITY CLERK: OOP, SORRY.

>> HELLO, CAN YOU HEAR ME? THANK YOU, ELANA, FOR YOUR MINUTE, I WILL TAKE 30 SECONDS. THE P.A.B. WROTE ITS RECOMMENDATIONS ON THE ASSUMPTION THAT COUNCIL WOULD GO FORWARD WITH THE FLOCK ITEM. THE DATA RETENTION IS THE ONLY WAY TO ADDRESS THE COMMUNITY'S CONCERNS. THE 30-DAY RETENTION POLICY HAS BEEN ADOPTED BY SAN FRANCISCO, SAN JOSE, FREMONT POLICE DEPARTMENT. IT'S BECOMING THE INDUSTRY STANDARD IN RESPONSE TO THE INCREASED FEDERAL ADMINISTRATION ENFORCEMENT. I'M ASKING THE COUNCILMEMBERS TO BE BRAVE AND ADOPT A 30-DAY RETENTION POLICY. THANK YOU.

>> CITY CLERK: NEXT IS KELLY HAMMARGREN.

>> MAYOR ISHII: CAN YOU GIVE ME A SENSE HOW MANY FOLKS ARE LEFT ONLINE?

>> CITY CLERK: SIX HANDS RAISED.

>> MAYOR ISHII: THANK YOU. GO AHEAD, KELLY.

>> OKAY, THANK YOU. I JUST WANT TO SAY THAT I AGREE WITH THE COMMENTS BY THE PUBLIC. ALL OF THE COMMENTS. I LISTENED TO ALL OF YOUR QUESTIONS TONIGHT, AND THERE IS NOTHING THAT HAS BEEN SAID THAT MAKES ME FEEL THAT THIS INFORMATION THAT YOU ARE GOING TO COLLECT IS SECURE. THE READING THAT I'VE BEEN DOING OUTSIDE

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OF THE COUNCIL IN PARTICULAR I THINK OF THE BOOK, IF THIS IS HOW THEY TELL ME THE WORLD ENDS BY PEOPLE WHO DO RESEARCH ON SYSTEMS THAT YOU CAN'T GUARANTY THE SECURITY OF THE SYSTEM. YOU CAN'T GUARANTY THIS WILL NOT GET INTO THE HANDS OF PEOPLE THAT WE DON'T WANT TO HAVE IT. SO I WORRY VERY MUCH ABOUT THE PUBLIC AND THE RESIDENTS OF BERKELEY AND THE STUDENTS AND WHAT WILL HAPPEN HERE. THANK YOU.

>> MAYOR ISHII: THANKS, KELLY. I THINK OUR TIMER IS OFF.

>> CITY CLERK: YEAH, IT STARTED LATE. ROBERTO RODRIGUEZ.

>> HELLO, YES. ROBERTO HERE. I'M JUST A CITIZEN OF BERKELEY. I WOULD STRONGLY RECOMMEND THAT THIS COUNCIL CONSIDER THE CLIMATE IN WHICH WE ARE CONSIDERING THIS PROPOSAL. THE AGENCIES THAT ARE GOING TO BE MOST INTERESTED IN THE DATA THAT IS BEING COLLECTED HAVE HAD THEIR BUDGETS GREATLY MULTIPLIED. THEY WILL PUT PRESSURE TO GET THIS DATA IN THEIR HANDS. THERE IS NO USAGE POLICY THAT I THINK WILL PROTECT US. THE MOMENT THAT IS VIOLATED, IT WILL HARM MEMBERS OF OUR COMMUNITY. WE WON'T BE ABLE TO GO BACK FROM THIS. THANK YOU.

>> CITY CLERK: NEXT IS MEGAN.

>> HI. MY NAME IS MEGAN; I'M A RESIDENT OF DISTRICT 1. I THINK WHATEVER THE RELATIVE MERITS AND TRADE-OFFS BETWEEN PRIVACY AND PROTECTION THAT GO ALONG WITH CAMERAS IN THE ORDINARY CONTEXT DON'T APPLY RIGHT NOW. THIS IS AN EXTRAORDINARY CONTEXT. AND AT

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A BARE MINIMUM BEFORE THE CITY MOVES FORWARD WITH THIS, I WOULD LIKE THE COUNCIL TO MAKE SURE THEY ADDRESS ONE, I STILL HAVEN'T HEARD A SATISFACTORY ANSWER WHY THERE WOULD NEED TO BE ANONYMIZATION. IF I.C.E. SEEKS DATA IN THE CONTEXT OF CRIMINAL INVESTIGATIONS WHICH MAY BE TARGETING ACTIVISTS OR OTHERS ENGAGED IN NON-VIOLENT PROTESTS AS WE ALREADY --

>> MAYOR ISHII: SORRY, YOUR TIME IS UP. THANKS FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS HORSE E-GIRL RADIO.

>> HI, SORRY ABOUT THE ZOOM NAME. AS ALREADY MENTIONED RELYING ON HIGH STANDARDS STRICT POLICY FAILED THE PEOPLE WHO LIVE IN OAKLAND AND SAN FRANCISCO. BOTH CITIES THEIR FLOCK SYSTEMS HAVE ALREADY ILLEGALLY GIVEN DATA OVER TO I.C.E. THE PROPOSED CONDOR VIDEOS WILL RUN ON THE SAME OPERATING SYSTEM. THE PURPOSE OF FLOCK IS TO MAKE IT EASIER TO SHARE DATA ACROSS LAW ENFORCEMENT AGENCIES. IT WILL BE ABUSED. THE AUDITS THAT COME LATER WILL BE TOO LATE. FLOCK HAS ALREADY DEMONSTRATED THEIR SYSTEM IS EASILY ABUSED, WE SHOULD LISTEN. I URGE THE COUNCIL TO REJECT FLOCK AS A VENDOR. THANK YOU.

>> CITY CLERK: NEXT IS AVA.

>> HI. I DON'T TRUST FLOCK WITH THIS DATA. I'M CONCERNED THE TECHNOLOGY WILL BE USED TO CONTRIBUTE TO POSTURE OF SUSPICION OF OUR COMMUNITY ON BEHALF OF LOCAL AND FEDERAL LAW ENFORCEMENT. I DON'T THINK COLLECTING THE INFORMATION IS NECESSARY IN THE FIRST

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PLACE. I DON'T BELIEVE YOU CAN GUARANTY THE INTEGRITY OF THE DATA COLLECTED WITH THESE INSTRUMENTS. FURTHERMORE I'M CONCERNED IT WILL BE SHARED WITH I.C.E., I URGE YOU TO REJECT THIS PROPOSAL. THANK YOU.

>> CITY CLERK: THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: LAST SPEAKER IS PHONE NUMBER ENDING IN 485. *6 TO UNMUTE.

>> HELLO? CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> OKAY, DESPITE THE HORRIBLE, HORRIBLE TIME WE ARE LIVING UNDER A MAN WHO HAS 34 FELONY CONVICTIONS WHO HAVE DONE SO MUCH DAMAGE TO THE COUNTRY, (INDISCERNIBLE) SURVEILLANCE CAMERA ARE IMPORTANT. ONE ON TELEGRAPH AVENUE, ONE ON DURANT AVENUE. BUT WHAT WE NEED TO DO IS TO JUST DO WHAT IS BEST FOR SAFETY. GREAT BERKELEY CHIEF OF POLICE, DASH BUTLER ONE OF THE GREAT POLICEMAN BERKELEY HAVE, AND ONE OF MY PROFESSORS IN PHYSICS AND ENGINEERING. PROFESSOR GROSSMAN, (INDISCERNIBLE) BERKELEY IS A BEAUTIFUL (INDISCERNIBLE), I'M SORRY I'M STUTTERING, I'M TRYING TO PUT EVERYTHING IN SHORT TIME.

>> MAYOR ISHII: SORRY, YOUR TIME IS UP. THANK YOU.

>> M. HUMBERT: MOVE TO EXTEND TIME.

>> SECOND.

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>> CITY CLERK: TO?

>> MAYOR ISHII: CAN YOU TAKE THE ROLL PLEASE?

>> CITY CLERK: TO?

>> M. HUMBERT: 11:30 IS THAT ENOUGH?

>> MAYOR ISHII: WE HAVE ANOTHER ITEM AFTER THIS.

>> M. HUMBERT: MIDNIGHT.

>> MAYOR ISHII: JUST IN CASE.

>> SECOND.

>> MAYOR ISHII: OKAY, GO AHEAD.

>> CITY CLERK: TO EXTEND TO 12:00 A.M., [ROLL CALL] MOTION CARRIES.

>> MAYOR ISHII: VERY GOOD, THANK YOU. SO I WOULD LIKE TO START BY JUST PRESENTING SOMETHING. I WANT TO START BY SAYING MY OFFICE HAD A LOT OF QUESTIONS AND I REALLY APPRECIATE ALL THE TIME THAT STAFF GAVE US, INCLUDING THE CHIEF AND ARLO AND ALSO DEPUTY CHIEF TATE WAS THERE, AS WELL AS OUR CITY ATTORNEY AND PAUL. AND MULTIPLE ATTORNEYS WITH OUR CITY ATTORNEY'S OFFICE, SO THANK YOU ALL SO MUCH FOR YOUR INPUT. I HAVE BEEN WORKING WITH COUNCILMEMBER TREGUB HAD INVITED ME TO BE PART OF A BROWN ACT CIRCLE IN WHICH WE WORKED ON GUIDANCE TO PROVIDE. I WILL READ THIS GUIDANCE AND COUNCILMEMBER TREGUB, IF YOU WOULDN'T MIND PULLING IT UP, SO WE COULD SEE THE LANGUAGE.

>> I. TREGUB: I WASN'T READY FOR THAT, BUT YES.

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>> MAYOR ISHII: AS HE PULLS IT UP, I WILL MAYBE ALSO JUST BRIEFLY MENTION THAT MY OFFICE ALSO SPOKE WITH BRIAN HOFFER. WHO IS A PRIVACY ADVOCATE IN THE FORMER OAKLAND PRIVACY COMMISSION CHAIR AND, AS WELL AS JOSH CAYETANO WHO WAS ON EARLIER, THE CHAIR OF THE P.A.B. AND BRIAN FLAGGED SOME CONCERNS FOR US THAT WE HAVE WORKED TO ADDRESS IN THIS GUIDANCE. HOW ARE YOU DOING? PERFECT, GREAT. THANK YOU SO MUCH. AS PART OF ITEM 17, BERKELEY CITY COUNCIL DIRECTS THE CITY MANAGER TO ADDRESS EACH OF THE ELEMENTS BELOW IN CONTRACT LANGUAGE, PROPOSED SANCTUARY CITY ORDINANCE AND OTHER ACCOMPANYING LEGISLATION BEFORE ENTERING INTO THE FLOCK SAFETY CONDOR VIDEO CAMERA CONTRACT. #1, THE BIANNUAL AUDIT REPORT, NOT TO BE CONFUSED WITH BIENNIAL, WE HAD A WHOLE CONVERSATION ABOUT THAT. THE BERKELEY POLICE DEPARTMENT'S BIANNUAL SURVEILLANCE TECHNOLOGY REPORT PRESENTED EACH NOVEMBER, SHALL INCLUDE BUT NOT BE LIMITED TO THE FOLLOWING INFORMATION FROM THE PRECEDING REVIEW PERIOD AS AN ADDITIONAL PRIVACY SAFEGUARD. CONFIRM THAT B.P.D. DOESN'T ENTER ANY DIRECT DATA SHARING AGREEMENTS OR GIVE DIRECT ACCESS TO OUTSIDE -- [READING TEXT ON SCREEN RAPIDLY] THREE IS DIFFERENT THAN WHAT P.A.B. SUGGESTED. USE POLICIES 1 AND 2 ARE ALREADY WITHIN OUR LOCAL AND STATE REQUIREMENTS, BUT THEY ARE IN HERE AS AN ADDED ADDITION JUST TO HIGHLIGHT THEM. AND 4, ADD NEW SECTION TO THE FIXED POLICY REQUIRING B.P.D. TO OBSERVE CERTAIN SAFEGUARDS FROM

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THE ALPR POLICY SECTION 1304.12. THREE, ADDITIONAL SAFEGUARDS. THE BERKELEY CITY COUNCIL REAFFIRMS ITS INTENTION TO APPROVE CONTRACTS IN FULL COMPLIANCE WITH BERKELEY CITY LAW, INCLUDING BUT NOT LIMITED TO SUBJECT B.P.D. POLICIES AND THE TO-BE DELIVERED SANCTUARY CITY ORDINANCE AS A MATTER OF COURSE THE BERKELEY CITY COUNCIL DIRECTS THE CITY MANAGER TO ENSURE THAT NO PROPOSED CONTRACTUAL CLAUSES WITH FLOCK FOR PROPOSED VIDEO CAMERAS ARE OR COULD POTENTIALLY BE IN CONFLICT WITH BERKELEY CITY LAW. [READING TEXT ON SCREEN] I'M SORRY, I'VE GOT THE FLOOR. WE CAN SHUT THEM DOWN, RENDER THEM DORMANT IF WE HAVE TO. IF THERE'S A NEED ,Z I'M SURE WE WILL, AND I APPRECIATE THE LANGUAGE THAT THE MAYOR READ. NEARLY ALL COUNCIL DISTRICTS HAVE SEEN SOME LEVEL OF VIOLENT CRIME IN RECENT TIMES INCLUDING SOME VERY BRAZEN ATTACKS AGAINST ELDERLY RESIDENTS IN DISTRICT 8 AND DISTRICT 3. WE NEED TOOLS THAT HELP DETER CRIME AND PROVIDE KEY EVIDENCE WHEN CRIME OCCURS. AND AS PART OF OUR BIGGER POLITICAL MOVEMENT WE NEED TO DEMONSTRATE THAT PROGRESSIVE CITIES CAN CONTINUE TO DELIVER OP THE PROMISE OF PUBLIC SAFETY. I THINK THIS IS ONE TOOL THAT CAN HELP US DO THAT AND I THINK WE CAN USE THIS TOOL IN A WAY THAT PROTECT CIVIL LIBERTIES AND PROMOTE OUR LOCAL VALUES. ANYWAY, THOSE ARE MY COMMENTS, THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER TAPLIN?

>> T. TAPLIN: THANK YOU. I CONCUR LARGELY WITH COUNCILMEMBER

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HUMBERT AND I WANT TO THANK THE CHIEF AND ARLO AND EVERYONE. AS SOMEONE WHOSE DISTRICT INCLUDES A NUMBER OF THE CITY'S GUNFIRE CORRIDORS AND HIGH INJURY CORRIDORS THE UTILITY FOR THESE TOOLS TO HELP THE CITY ADDRESS THE INVESTIGATION OF VIOLENT CRIMES, ESPECIALLY GUN CRIMES TO ME IS OF DIRE IMPORTANCE. WE HAVE HEARD FROM THE DEPARTMENT THE CHALLENGES WITH SUCH A SHORT RETENTION PERIOD. I APPRECIATE THE LEVEL OF REPORTING THE DEPARTMENT IS BEING ASKED TO DO. THE STRENGTH AND SEVERITY OF THE SAFEGUARDS. FOR ME IT'S IMPORTANT THAT THESE SHOULD BE ABLE TO FULFILL THE FUNCTION FOR WHICH WE ARE PURSUING THEM. SO I WILL BE SUPPORTING A RETENTION PERIOD OF 180 DAYS. THANK YOU.

>> MAYOR ISHII: OKAY, COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU. I HAVE ACTUALLY ONE MORE QUESTION FOR FLOCK THAT WAS RAISED BY THE PUBLIC, WOULD THIS BE AN APPROPRIATE TIME TO DO THAT?

>> MAYOR ISHII: YES, THAT'S FINE.

>> C. LUNAPARRA: THANK YOU. SEVERAL MEMBERS OF THE PUBLIC MENTIONED A.W.S. HAS EXPERIENCED DATA BREACHES MULTIPLE TIMES. CAN YOU SPEAK TO THIS OR ANY SAFEGUARDS THERE WOULD BE OR CONCERNS IN THE PAST WITH DATA BREACHES.

>> YES, I CAN TELL YOU FLOCK HAS NEVER EXPERIENCED A DATA BREACH. I THINK THE INSTANCES THAT HAVE BEEN CITED ANECDOTALLY ARE IN OTHER COUNTRIES, I BELIEVE. BUT I CAN TELL YOU FROM

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FLOCK'S PERSPECTIVE, WE HAVE NEVER EXPERIENCED A DATA BREACH.

>> C. LUNAPARRA: THE DATA, IF THE DATA IS BEING STORED IN A.W.S. THEN IT WOULD BE THEIR DATA BREACH, CORRECT?

>> YES. BUT IN THE WAY I'M DISCUSSING IT, IT'S THE SAME. WE HAVE NEVER HAD A DATA BREACH WITH OUR OWN SYSTEMS OR WITHIN A.W.S.

>> C. LUNAPARRA: ARE THERE ANY SAFEGUARDS THAT FLOCK HAS FOR THOSE KINDS OF BREACHES?

>> YES. SO ONE OF THE BENEFITS OF USING A.W.S. GOV CLOUD IS THAT IT HAS DISPERSED DATA CENTERS. SO FOR EXAMPLE, IF THERE WAS ANY SORT OF RANSOMWARE ATTACK OR CATASTROPHIC FAILURE IN ONE OF THE DATA CENTERS THAT THE CITY OF BERKELEY WOULD NOT LOSE ITS DATA BECAUSE IT'S DISPERSED IN THAT WAY. WE ARE SOC II TYPE II CERTIFIED WHICH WE CONTINUALLY ARE ANALYZING AND AUDITING USING OUTSIDE AUDITORS THE STRENGTH OF OUR SECURITY SYSTEMS TO CONTINUALLY BE UPGRADING. WE HAVE AN ENTIRE TEAM CONTINUALLY LOOKING AT HOW WE UPDATE AND UPGRADE OUR ENCRYPTION AND DATA SECURITY. BECAUSE WE KNOW THAT THE BAD ACTORS OUT THERE ARE ALWAYS LOOKING FOR THE NEXT STEP TO GET AHEAD. AND WE HAVE A FULL TEAM, IN ADDITION TO THE A.W.S. ENCRYPTION IN GOV CLOUD. IT'S IMPORTANT TO KNOW A.W.S. GOV CLOUD IS USED BY MANY MUNICIPALITIES, STATE GOVERNMENTS, IT'S THE SAME LEVEL OF PROTECTION THAT MANY CITIES AND STATES ALSO USE ACROSS THE COUNTRY.

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>> C. LUNAPARRA: OKAY, THANK YOU FOR THAT INFORMATION. I DO WANT TO VOICE THIS IS A REAL CONCERN. THOSE ARE MY QUESTIONS FOR FLOCK. THANK YOU. I ALSO WANTED TO VOICE THAT I THINK IT WOULD BE REALLY BENEFICIAL AND EFFECTIVE TO INCLUDE THE POLICE ACCOUNTABILITY BOARD IN FUTURE POLICY DISCUSSIONS LIKE THIS, WITH THE OPPORTUNITY TO PRESENT THEIR FINDINGS IN THE FUTURE. I JUST WANTED TO VOICE THAT. AND FINALLY, I AM VERY GRATEFUL THAT THE CHIEF AND ARLO ADDRESSED THE CONCERNS FROM COMMUNITY MEMBERS ABOUT DATA SHARING AND I APPRECIATE ALL OF YOUR EFFORT IN THAT. I ALSO REMAIN CONCERNED THAT OUR CITY MAY NOT HAVE THE POWER, AUTHORITY OR CONTROL TO REFUSE. I SAID THIS IN THE MARCH MEETING BUT I WOULD LIKE TO EMPHASIZE, WE CANNOT BE NAIVE IF WE WANT THIS TECHNOLOGY. IF THE TRUMP ADMINISTRATION WANTED IT OUR CITY WOULD NOT BE ABLE TO REFUSE. ONLY IF IT WERE TO NOT EXIST AT ALL OR BE PURGED WITHIN A SHORTER RETENTION PERIOD. I ALSO WANT TO NOTE THIS 45 DAY PERIOD IS NOT ARBITRARY, MANY HAVE BETWEEN A 15-90 DAY RETENTION PERIOD WITH POSSIBLE EXTENSIONS FOR CRIMINAL INVESTIGATIONS. BERKELEY'S IS UNUSUALLY LONG. OUR RESPONSIBILITY IS TO STRIKE A BALANCE BETWEEN PROTECTION OF RESOURCES AND PROTECTION OF OUR MOST VULNERABLE CONSTITUENTS AND WE MUST DO BOTH. THANK YOU, THOSE ARE MY COMMENTS.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: THANK YOU. A COUPLE COMMENTS AND THEN I WILL SAY

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WHAT I THINK ABOUT THIS. SO UNLESS, JUST REGARDING DATA SAFETY, UNLESS I.C.E. ACQUIRES A QUANTUM COMPUTER OR SOMETHING THEY AREN'T GOING TO BREAK THIS ENCRYPTION. THAT'S WHY I WAS INTERESTED IN FINDING OUT IF IT WAS END-TO-END. THE DATA IS ENCRYPTED, YES WE HEAR ABOUT HACKS, THEY ARE ALMOST ALWAYS THE RESULT OF SOMEONE GETTING A PASSWORD OR SOMETHING LIKE THAT. THERE ARE OTHER WAYS DATA CAN BE BREACHED THAT AREN'T VERY LIKELY IN THIS SCENARIO. I SUPPOSE THE POLICE COULD BE SLOPPY WITH THEIR PASSWORDS. I JUST DON'T SEE THAT AS A CONCERN HERE. I ACTUALLY REALLY DO FEEL GOOD ABOUT THE DATA SECURITY HERE AND I LOOKED INTO IT WITH A PRETTY SUSPICIOUS MIND. I MAY HAVE ASKED SOME UNHINGED QUESTIONS BUT I WANTED TO PRESS ON IT AS MUCH AS POSSIBLE. I DO UNDERSTAND THESE THINGS RELATIVELY WELL, AND I'M NOT WORRIED ABOUT THE DATA BEING HACKED. SO THAT'S ONE PERSPECTIVE I WANTED TO SHARE. I AM A LITTLE CONFUSED ABOUT, THIS IS AN INVITATION TO OTHER COUNCILMEMBERS. WHAT IS THE THEORY OF THE CASE? I'LL START. MY POSITION IS I WOULD LIKE A LONGER RETENTION PERIOD. I'M WITH THE 180 DAYS. WHAT I'M WONDERING IS WHAT ARE WE WORRIED ABOUT? ARE WE WORRIED ABOUT I.C.E. GETTING A JUDICIAL WARRANT TO SEE AN UNDOCUMENTED PERIOD WAS SOMEWHERE THREE MONTHS AGO? THIS DOESN'T REALLY JIBE WITH THE WAY THEY ARE OPERATING. THEY AREN'T BOTHERING WITH THAT, THEY ARE GOING TO HOME DEPOT AND ARRESTING ALL THE GROUND

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PEOPLE. THAT'S THE MESSED UP LEVEL OUR FEDERAL GOVERNMENT IS OPERATING AT RIGHT NOW. I DON'T SEE THE THREAT IN OLD FOOTAGE, SOMEHOW THEM GETTING IT WITH A JUDICIAL WARRANT OR WHATEVER. I DON'T UNDERSTAND WHAT WE ARE WORRIED ABOUT. I WOULD APPRECIATE SOMEONE ARTICULATING THAT. I WILL LISTEN WITH AN OPEN MIND. I'M NOT SURE IT'S WORTH SHORTENING THAT RETENTION PERIOD. I WOULD LIKE TO SEE IT AT 180 DAYS. OH LAST THING, IGOR, COULD YOU SCROLL, WAIT, I THINK WE ARE ON IT. 1.1. BY THE WAY, COULD YOU MAKE IT A, B, C. THE #S SHOULD BE LETTERS. NOT RIGHT NOW. BUT THAT'S MY -- IF I FORMATTED IT, I WOULD USE LETTERS. SO ANYWAY. THIS ONE, I WANT TO UNDERSTAND. THIS LOOKS LIKE IT'S SIMILAR TO WHAT I WAS ASKING FOR. I WANT TO MAKE SURE I UNDERSTAND. ARE ASKING THAT THEY, IN ADDITION TO THE AUDIT, THEY ALSO PUBLISH THE LOG OF ALL OF THE DATA THAT'S BEEN SHARED. THIS IS JUST WHEN IT'S BEEN SHARED, NOT WHEN THEY HAVE SEARCHED? OKAY, I UNDERSTAND THAT NOW. OKAY. THEN I'M CURIOUS, IT'S NOT IN HERE. I AM CURIOUS IF THE POLICE REPRESENTATIVES HERE HAVE ANY THOUGHTS ABOUT ALSO RELEASING THE RAW DATA OF THE SEARCHES THEMSELVES? I KNOW I HAD ASKED THAT BEFORE BUT NO WOULD BE A GOOD TIME TO FOLLOW-UP ON THAT. DO YOU HAVE A PROPOSAL THAT WOULD SEEM REASONABLE, NOT TOO DIFFICULT. AND WOULDN'T ENCUMBER THE SECURITY OF ONGOING INVESTIGATIONS? I DO SAY THAT BECAUSE I'M NOT WORRIED ABOUT THE SECURITY OF THE DATA. BUT I AM, I THINK

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IT'S REASONABLE TO WORRY ABOUT AN OFFICER MISUSING THEIR PRIVILEGES. I WOULD LIKE TO SEE MORE ACCOUNTABILITY ON THAT IF IT WOULD MAKE SENSE. DO YOU HAVE SUGGESTIONS?

>> I THINK THERE MAY BE SPACE FOR US TO SHARE THAT WITHOUT JEOPARDIZING INVESTIGATIONS. THAT'S THE BALANCE WE WOULD BE CREATING AS WE MAKE THESE AUDIT REPORTS. IT WILL BE A MEASURE OF US UNDERSTANDING HOW MUCH MATERIAL WE ARE LOOKING AT TOO. I WOULD EXPECT AS WE DELIVER AUDIT REPORTS THROUGHOUT THESE PROCESSES, IF COUNCIL DESIRED TO RECONVENE AND ASK US TO PROVIDE DEEPER INFORMATION, YOU KNOW THAT WE WOULD BE ABLE TO HAVE THOSE ROBUST CONVERSATIONS. OR FOR ME TO COME FORWARD TO COUNCIL AND SAY THIS PARTICULAR PIECE OF INFORMATION IS PARTICULARLY BURDENSOME, I WOULD LIKE TO AGGREGATE OR SUMMARIZE OR NOT REPORT IT IN THAT WAY OR NOT. SO HEARING THE DESIRE FOR SOME LOG INFORMATION CERTAINLY AS WE LAUNCH THIS TOOL AND LOOK AT WHAT'S AVAILABLE, FOR THOSE THINGS THAT DON'T CREATE A TREMENDOUS ADMINISTRATIVE BURDEN AND PROVIDES ENOUGH INFORMATION TO PROVIDE THE COMMUNITY MORE COMFORT AROUND WHAT WE ARE DOING, AND ACCOUNTABILITY TO WHAT WE ARE DOING, WE WOULD CERTAINLY BE OPEN TO EXPLORING THAT.

>> S. O'KEEFE: I GUESS I WOULD ASK MY FELLOW COLLEAGUES IF THERE'S INTEREST IN ADDING SOMETHING LIKE THAT. IF NOT, I'M OKAY NOT ADDING IT. BUT IT'S A REASONABLE WAY IF YOU WANT TO GET A

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LITTLE MORE ACCOUNTABILITY. BUT I'M ALSO LESS WORRIED ABOUT IT THAN INITIALLY WHEN I REALIZED ONLY B.P.D. WOULD HAVE ACCESS TO IT. I'M OPEN TO YOUR OPINIONS, THANKS.

>> MAYOR ISHII: THANKS. COUNCILMEMBER TREGUB. ACTUALLY BEFORE WE GO BACK TO YOU, IS THERE ANYONE WHO HASN'T SPOKEN YET? YES, COUNCILMEMBER BLACKABY?

>> B. BLACKABY: THANKS, MADAM MAYOR AND COLLEAGUES, I WILL BE BRIEF, EVERYONE HAS MADE SALIENT POINTS. I SUPPORT COUNCILMEMBER HUMBERT, TAPLIN AND O'KEEFE AND THANK THE MAYOR AND LUNAPARRA AND COUNCILMEMBER TREGUB FOR INVITING ME TO PARTICIPATE IN THE BROWN ACT CIRCLE. I SUPPORT THE ADDITIONAL SAFEGUARDS THEY HAVE DRAFTED HERE. I THINK THEY ARE SMART, I THINK THEY ARE SENSIBLE. I THINK THEY WILL HELP GIVE OUR COMMUNITY ADDITIONAL CONFIDENCE. I THINK THE WHOLE NAME OF THE GAME HERE IS TO APPROPRIATELY BALANCE THE PUBLIC SAFETY IMPROVEMENTS WITH THE POTENTIAL PRIVACY RISKS. AND I DO THINK WITH THESE ADDITIONAL SAFEGUARDS IN PLACE AND WITH THE LOGGING AND AUDIT TRAIL AND ALL THOSE MECHANISMS I THINK WE BETTER STRIKE THAT BALANCE THAN WE WOULD WITHOUT. I WOULD ALSO SAY THAT WE KNOW THIS TECHNOLOGY DOES WORK. WE HAVE SEEN SUCCESS WITH THE ALPR CAMERAS FROM FLOCK. WE HAVE SEEN AN INCREASE IN ENFORCEMENT IN TRACKING DOWN CRIMINALS IN OUR JURISDICTION USING THE ALPR TECHNOLOGY IN A SUCCESSFUL WAY. WE HAVE NOT HAD, KNOCK ON WOOD, REPORTED PROBLEMS WITH THAT

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ALPR TECHNOLOGY TO DATE. I THINK THE TRAINING WE HAVE PUT IN PLACE, THE PROCESSES WE HAVE PUT IN PLACE SEEM TO BE WORKING. WE WILL LOOK FORWARD TO FUTURE AUDITS TO LEARN MORE, BUT BY ALL RESULTS WE ARE HAVING A GOOD IMPACT. AND I THINK GIVEN THE CURRENT BUDGET ENVIRONMENT WE ARE IN, WHERE WE CANNOT HIRE OUR WAY TO BETTER PUBLIC SAFETY, WE HAVE LIMITS ON THE NUMBER OF PEOPLE WE CAN HIRE, OUR ABILITY TO RECRUIT AND RETAIN GOOD TALENT AT THE LEVEL WE EXPECT, THAT CAREFULLY MANAGED AND SAFEGUARDED TECHNOLOGY LIKE THIS COULD HELP US IMPROVE PUBLIC SAFETY MORE COST EFFECTIVELY WE CAN DO THAN HIRING ALONE. SO FOR THOSE REASONS I SUPPORT THE TECHNOLOGY. I APPRECIATE THE DIALOGUE WE HAVE HAD. I APPRECIATE THE SAFEGUARDS WE HAVE HAD. I THINK, AS I MENTIONED TO COLLEAGUES IN DISCUSSIONS, I DO THINK THE 45 DAY, 30 DAYS, IT IS TOO SHORT TO ME. ESPECIALLY HAVING HEARD THE CONVERSATION TODAY, I THINK ANY CHANCE THAT WE LOSE EVIDENTIARY VALUE IN CASES WHERE REPORTING COMES LATER OR WHERE CASES SORT OF DEVELOP OVER TIME AND THE CLOCK RUNS OUT, FOR CONCERNS THAT HAVE HERE TO NOT MATERIALIZED IN BERKELEY ABOUT THESE RISKS, I THINK IT WOULD BE A REAL SHAME TO NOT PURSUE A CASE WE MIGHT OTHERWISE BE ABLE TO PURSUE KNOWING WE HAVE ALL THESE SAFEGUARDS IN PLACE. I DO SUPPORT A LONGER RETENTION PERIOD. BUT I ALSO SUPPORT ALL THE OTHER SAFEGUARDS MY COLLEAGUES HAVE DRAFTED AND LOOK FORWARD TO MOVING FORWARD.

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THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER BARTLETT?

>> B. BARTLETT: THANK YOU. THANK YOU. I ALSO, WE SPENT SIGNIFICANT TIME CRAFTING THE SURVEILLANCE POLICIES REGARDING THE TOOLS OVER THE LAST FEW YEARS. I THINK WE HAVE DONE A GREAT JOB CRAFTING THEM. WHILE NOT PERFECT, I THINK THEY ARE BEST IN CLASS. TECHNOLOGY ITSELF IS MEANT TO EXTEND OUR REACH AND SORT OF MINIMIZE THE UNNECESSARY CONTACT WITH MARSHAL FORCE AND PEOPLE AND GET THROUGH REMOTE MEANS. I HAD AN INCIDENT IN MY DISTRICT WHERE A KID IN A STROLLER WAS HIT BY A CAR AND THE PERSON DROVE AWAY. LUCKILY, THE BABY SURVIVED. IT WAS ACTUALLY A FULL-ON HIT OF A STROLLER WITH A BABY IN IT. THEY FOUND THE GUY TWO DAYS LATER VIA THIS ALPR TECHNOLOGY. THAT BEING SAID, I DO BELIEVE IN IT AS THE FUTURE OF LAW ENFORCEMENT. HOWEVER, THERE'S ALSO A DEFINITE ABSOLUTE NEED TO MAINTAIN OUR INDIVIDUAL LIBERTIES AND CONSTITUTIONAL RIGHTS IN THE FACE OF AN EVOLVING FEDERAL CONTEXT, LET'S SAY. I THINK THAT THIS GOES BEYOND I.C.E. I.C.E. RIGHT NOW IS DOING IN-PERSON SORT OF INTERDICTIONS BUT THERE'S OTHER THINGS THAT COME INTO PLAY, AS YOU CAN IMAGINE. I THINK GOING ALONG WITH WHAT APPEARS TO BE MORE OF A STANDARD TIMEFRAME FOR INVESTIGATION, 90 DAYS, AND ADDING ANOTHER 90 DAYS IF THERE'S AN ACTIVE INVESTIGATION, I THINK THAT IS FAIR. I THINK THAT APPEARS TO WORK IN OTHER PLACES WITH MORE CRIME AND

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MORE SEVERE CRIME THAN WE HAVE. I WOULD SUPPORT AN ADDITIONAL 90 DAY, IN ADDITION TO THE OTHER ELEMENTS MENTIONED BY MY COLLEAGUES INCLUDING COUNCILMEMBER HUMBERT AND THE BROWN ACT CIRCLE. THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER KESARWANI HASN'T GONE YET. I'M SORRY, COUNCILMEMBER TREGUB, I WANT TO MAKE SURE EVERYONE WHO HASN'T GONE YET.

>> R. KESARWANI: THANK YOU VERY MUCH, MADAM MAYOR. I WANT TO THANK THE CHIEF AND ARLO FOR YOUR PRESENTATION. I WANT TO THANK THE REPRESENTATIVE FROM FLOCK FOR BEING HERE AS WELL. I KNOW THAT THIS TECHNOLOGY IN THE CURRENT CLIMATE THAT WE ARE IN WITH THIS FEDERAL ADMINISTRATION RAISES A LOT OF QUESTIONS AND CONCERNS FROM MEMBERS OF OUR COMMUNITY, AS IT DOES FOR ME AND OTHER MEMBERS OF THE COUNCIL. AND I THINK WHAT I READ IN THE STAFF REPORT ABOUT HOW THIS TECHNOLOGY WORKS, THE DATA SAFEGUARDS THAT ARE INCORPORATED INTO IT, I FEEL THAT IT IS REASONABLE TO PROCEED WITH THIS. AND I THINK WE ALSO HAVE TO -- WE HAVE ASKED A LOT OF QUESTIONS ABOUT HOW THE DATA IS STORED, HOW IT CAN BE ACCESSED. WE DO HAVE TO REMEMBER WHY IT IS THAT MYSELF AND COUNCILMEMBER TAPLIN AND COUNCILMEMBER HUMBERT, WHY WE ASKED FOR THIS TECHNOLOGY. IT IS BECAUSE THERE IS CRIME TAKING PLACE. A BABY IN A STROLLER HIT BY A CAR. WE HAVE MURDERS. PEOPLE ARE GETTING SHOT DOWN. WE HAVE GUN VIOLENCE

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TAKING PLACE AS COUNCILMEMBER TAPLIN SPOKE ABOUT. WE HAVE ALL KINDS OF VIOLENT CRIMINAL INVESTIGATIONS. AND SO, AND WE HAVE LIMITED PUBLIC SAFETY STAFF RESOURCES. SO WE NEED TO BE EFFICIENT AND EFFECTIVE. AND PART OF THAT IS USING THIS TYPE OF TECHNOLOGY WITH THE APPROPRIATE DATA SAFEGUARDS. SO I DO FEEL COMFORTABLE WITH THIS. BUT I ALSO APPRECIATE WHAT THE POLICE ACCOUNTABILITY BOARD PUT FORWARD IN TERMS OF ADDED LANGUAGE TO THE POLICY. SO I'M IN FULL SUPPORT OF THOSE COMPONENTS OF THIS. I THINK WHERE THERE IS CLEARLY DISAGREEMENT ON THE DAIS IS THE LENGTH OF TIME WE WILL BE RETAINING THE FOOTAGE. I JUST HEARD COUNCILMEMBER BARTLETT SUGGEST 90 DAYS AND THEN AN EXTENSION, IF THERE'S AN OPEN INVESTIGATION. CHIEF, CAN YOU RESPOND TO THAT SUGGESTION?

>> YEAH. I UNDERSTAND THE DESIRE TO HAVE SOMETHING WE MEASURE AGAINST TO KNOW WHETHER WE SHOULD KEEP IT LONGER. THE ISSUE IS WHAT'S IMPORTANT TO REMEMBER THAT WE DON'T KNOW THAT PIECE OF EVIDENCE IS IMPORTANT. WE DON'T KNOW THE CONNECTION IS THERE. WE ARE WAITING 60-90 DAYS FOR LAB RESULTS BACK OR A WITNESS HASN'T COME FORWARD. IF IN THAT 90 DAY PERIOD WE DISCOVERED SOMETHING HAD EVIDENTIARY VALUE WE WOULD DOWNLOAD IT AND ADD IT TO OUR EVIDENCE COLLECTION. SO THERE'S NOT A POINT I WILL KEEP IT ANOTHER 90 DAYS ON THE SERVER, YOU WOULD HAVE ALREADY PULLED IT OFF THE SERVER. IT'S THE TIME PERIOD YOU WOULD LEARN WHO THE

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SUSPECT OR WHERE A LOCATION HAPPENED OR CRITICAL PIECE IS NEEDED YOU WOULD WANT TO HAVE ACCESS TO THAT INFORMATION.

>> R. KESARWANI: OKAY, SO IN LIGHT OF THAT, I'M GOING TO ALSO JUST EXPRESS MY SUPPORT FOR JUST THE 180 DAYS. EVERYTHING THAT THE MAYOR HAD READ OFF BUT WITH THE ONE CHANGE OF DOING 180 DAYS INSTEAD. AND I ALSO JUST NEED TO SAY, AS OTHERS HAVE SAID TONIGHT, YOU KNOW, SADLY, TRAGICALLY, THIS FEDERAL ADMINISTRATION, THEY OPERATE WITH A LAWLESSNESS, AS WE HAVE SEEN IN LOS ANGELES. AND I KNOW THAT THERE'S AN EFFORT TO USE THE COURTS TO TRY TO RESTRICT THE KIND OF LAWLESS RAIDS AND ARRESTS OF PEOPLE. IT LOOKS TO ME LIKE JUST PURELY RACIAL PROFILING BASED ON THE WAY PEOPLE LOOK AND WHERE THEY HAPPEN TO BE WORKING. I JUST WANT TO EXPRESS THE OUTRAGE AND FRUSTRATION AND THE SENSE OF POWERLESSNESS THAT WE ALL FEEL WHEN WE READ THOSE NEWS REPORTS AND WE SEE WHAT'S HAPPENING AND WE SEE THAT PEOPLE ARE LIVING IN THE SHADOWS. THEY ARE NOT GOING TO WORK BECAUSE THEY ARE AFRAID OF WHAT MAY HAPPEN. AND I KNOW THAT WE HAVE VERY STRONG COMMITMENTS AROUND BEING A SANCTUARY CITY. BUT THE SADNESS THAT I FEEL IS THAT WE KNOW WE CAN'T PROTECT PEOPLE. IF THOSE I.C.E. AGENTS COME AND ENGAGE IN LAWLESS BEHAVIOR. YOU KNOW, WE CAN HAVE THE MOST AIR-TIGHT CONTRACT WITH FLOCK, WHICH I KNOW WE ARE GOING TO HAVE. BUT WE FIND OURSELVES IN, YOU KNOW, I DON'T EVEN HAVE WORDS FOR IT. THIS IS A JUST COMPLETELY

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SURREAL AND TERRIBLE AND TRAGIC SITUATION FOR PEOPLE WHO LIVE IN OUR CITY, WHO ARE AFRAID TO SHOW UP TO DO THEIR JOBS, TO EARN MONEY TO PUT FOOD ON THE TABLE FOR THEIR KIDS. THAT IS WHAT'S HAPPENING. BUT I DON'T, I DO NOT THINK THAT REDUCING THE AMOUNT OF TIME THAT WE STORE, RETAIN THIS FOOTAGE IS GOING TO CHANGE THAT. WE NEED TO CONTINUE TO SPEAK OUT AND SPEAK UP ABOUT WHAT'S HAPPENING. BUT WE HAVE TO BE LOGICAL AND RATIONAL ABOUT IT TOO. SO I LOOK FORWARD TO A VOTE. THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TREGUB, GOING BACK TO YOU NOW.

>> I. TREGUB: THANK YOU. I WANTED TO, I APPRECIATE HEARING FROM ALL MY COLLEAGUES. I WANTED TO REITERATE MY GRATITUDE ESPECIALLY TO THE MAYOR. WHEN I CAME WITH LANGUAGE, BASICALLY YESTERDAY. AND THEN I, YOU KNOW, WAS HONORED TO BE ABLE TO ALSO BE IN TOP PARTNERSHIP WITH THE OTHER COUNCILMEMBERS. AND REALLY A DAY, THANKS TO THE INTREPID PERSISTENCE OF OUR CITY ATTORNEY AND THE POLICE CHIEF AND THE CITY MANAGER AND THE ADMINISTRATIVE TEAM. WE HAVE, WHAT I BELIEVE ARE THE STRONGEST SET OF SAFEGUARDS THAT I HAVE THINK OF ANYWHERE IN THE NATION. IS IT GOING TO BE ENOUGH? I CERTAINLY HOPE SO. I HOPE THIS SENDS A MESSAGE TO ANYONE THAT MIGHT CALLOUSLY THINK ABOUT GOING AFTER BERKELEY'S DATA. AT THE SAME TIME, I ALSO, DOWNTOWN BERKELEY HAS EXPERIENCED IT'S OWN SET OF PUBLIC SAFETY INCIDENTS. SOME MORE

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SIGNIFICANT THAN OTHERS. AND I KNOW THIS IS SOMETHING THAT MANY IN THE COMMUNITY THAT I SERVE HAVE BEEN ASKING FOR. SO WITH THAT, I DID WANT TO ASK THE CHIEF. I KNOW WE TALKED ABOUT NEIGHBORING JURISDICTIONS THAT HAVE A LESSER TIME PERIOD, AFTER WHICH DATA IS DISCARDED FOR FIXED CAMERAS. THEY ALSO HAVE A PROVISION AROUND, THERE'S AN EXEMPTION. AND I DON'T THINK IT'S BASED ON TIME. IT'S JUST IF THERE'S AN ACTIVE ONGOING INVESTIGATION. BUT CHIEF LOUIS, COULD YOU REMARK ON AND SPECIFICALLY OAKLAND? I FEEL LIKE THAT IS, YOU KNOW, A COMPARATOR CITY, IT'S LARGER, IT'S OUR NEIGHBOR. WHAT IS THEIR POLICY?

>> YEAH. I WOULD JUST KIND OF RETURN BACK TO MY COMMENTS EARLIER ABOUT HOLDING FOR AN ACTIVE INVESTIGATION. WE WON'T KNOW WE NEED THAT EVIDENCE UNLESS THAT EVIDENCE IS AVAILABLE. I KNOW THERE'S A BROAD RANGE OF OTHER JURISDICTIONS THAT RANGE EVERYWHERE FROM 15-30 DAYS. BUT THE QUICK RESEARCH I DID ACTUALLY SHOWED THAT I THINK OAKLAND WAS 30-60 DAYS. WE OBVIOUSLY DIDN'T PULL GREATER, WHAT YOU RELY HEAVILY ON IS OUR VERY TENACIOUS INVESTIGATIVE TEAM THAT HAS 100% RATE FOR HOMICIDES AND I WANT TO MAKE SURE THEY HAVE THE ABILITY TO INVESTIGATE CASES AND BRING THOSE WHO DO HARM TO OUR COMMUNITY MEMBERS TO JUSTICE FOR THAT. AND YOU KNOW, I TRUST AND VALUE THEIR OPINION ABOUT ALL THE THINGS THEY LISTED IN THE TIMELINES AND AMOUNT OF TIME AND DEMANDS OF

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CURRENT PROSECUTORIAL DEMANDS. SOME SET THE FIXED RETENTION PERIODS A COUPLE YEARS AGO AND DEMANDS CHANGE AROUND THE EXPECTATIONS WHAT WE DO TO BUILD A CASE. I WANT TO GIVE OUR INVESTIGATORS A FIGHTING CHANCE TO BUILD THOSE CASES ON BEHALF OF OUR COMMUNITY.

>> I. TREGUB: THANK YOU. AND THEN FOR AUDIT REPORTING. AND THIS IS, YOU KNOW, IT'S NOT REALLY IN THIS ITEM ANYMORE, THERE'S THE ANNUAL REPORT, RIGHT? I PERSONALLY, IF IT'S NOT OVERLY BURDENSOME AND I WELCOME THE OPPORTUNITY TO CONTINUE OUR ENGAGEMENT TO MAKE SURE WE ARE NOT ASKING YOU TO DO SOMETHING THAT IS OVERLY BURDENSOME, GIVEN ALL THE OTHER VITAL FUNCTIONS THAT YOUR DEPARTMENT PERFORMS. BUT WHAT I'M REALLY ASKING FOR IS AT THE TIME WHEN AN AUDIT IS CONDUCTED, THAT THE COUNCIL, THAT THE RESULTS OF THAT AUDIT ARE SHARED WITH THE COUNCIL, IT CAN BE AN OFF-AGENDA MEMO. IT DOESN'T HAVE TO BE SOMETHING THAT GETS ON AN AGENDA FOR THAT SIX-MONTH REVIEW. THOSE ARE MY THOUGHTS. YOU KNOW WE ARE MOVING TOWARDS A VOTE. I WOULD SUGGEST THAT WE MAY WANT TO SEVER A FEW PARTS OF THIS. I FEEL, I WOULD VERY MUCH LIKE TO VOTE ON THE DIRECTION THAT WE ARE GIVING. IF WE CAN. AS AMENDED, WITH COUNCILMEMBER HUMBERT'S EXCELLENT SUGGESTION. IT SOUNDS LIKE THERE NEEDS TO BE, WELL, WE MAY NOT BE IN THE SAME PLACE AROUND THE NUMBER OF DAYS. I GUESS I'M ASKING FOR SUGGESTIONS ABOUT HOW TO LAND THIS. BUT I WOULD LIKE FOR THESE

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ADDITIONAL SAFEGUARDS TO SOMEHOW BE TAKEN UP FIRST. BECAUSE IT REALLY IS, THIS IS THE PART THAT GIVES ME WARM FUZZIES AROUND THEN VOTING FOR THE BALANCE OF THE ITEM. THANK YOU.

>> MAYOR ISHII: SORRY, SO ARE YOU SUGGESTING THAT WE MOVE FORWARD WITH THIS ITEM WITH THE CURRENT GUIDANCE, MINUS THE NUMBER OF DAYS?

>> YEAH, AND MAYBE TAKE THAT PART SEPARATELY. THE RETENTION PERIOD.

>> I. TREGUB: THE RETENTION PERIOD.

>> MAYOR ISHII: I THINK ONE OTHER THING YOU BROUGHT UP THAT WOULD BE IN ADDITION BESIDES COUNCILMEMBER HUMBERT'S POINT IS MAKING SURE THE BIANNUAL REPORT COMES TO COUNCIL. MY UNDERSTANDING IS IT COMES AS AN INFORMATION ITEM. IS THAT CORRECT, YES OR NO. AS IN ITS REPORTED ANNUALLY BECAUSE OF A PRESENTATION.

>> THE WAY STEO READS RIGHT NOW WE PREPARE AN ANNUAL TECHNOLOGY REPORT REQUIRED TO BE ON THE FIRST COUNCIL AGENDA IN THE NOVEMBER TIMELINE. IN THAT REPORT WE PROVIDE BOTH AUDITS. SO YOU ARE SAYING, COUNCILMEMBER, THEN THAT THE AUDIT REPORT WILL COME TO US ONCE AS A PRESENTATION BUT ON THE SECOND ONE IT WILL COME AS JUST AN INFORMATION ITEM?

>> I. TREGUB: YES. AND WE CAN EITHER, THAT COULD BE A REQUEST WITHOUT VOTING ON THIS FORMALLY. OR IT CAN BE DIRECTION. I WANT

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TO ASSESS THE TEMPERATURE ON THE COUNCIL.

>> MAYOR ISHII: I WOULD LIKE THE CITY MANAGER TO WEIGH IN.

>> CITY MANAGER BUDDENHAGEN: I WOULD PREFER IT AS A REQUEST AND WE COULD SEE HOW IT GOES.

>> I. TREGUB: THAT'S FINE.

>> CITY MANAGER BUDDENHAGEN: OKAY.

>> MAYOR ISHII: OKAY. YEAH, DO YOU WANT TO REPEAT YOUR MOTION? ARE YOU MAKING A MOTION?

>> I. TREGUB: OKAY. I AM GOING TO MOVE THE ADDITIONAL DIRECTION PROVIDED ON THE SCREEN, DIRECTING THE CITY MANAGER TO ADDRESS EACH OF THE ELEMENTS BELOW IN CONTRACT LANGUAGE, PROPOSED SANCTUARY CITY ORDINANCE AND OTHER ACCOMPANYING LEGISLATION BEFORE ENTERING INTO THE FLOCK SAFETY CONDOR VIDEO CAMERA CONTRACT. EXCEPT FOR THE RETENTION PERIOD. I THINK WE WILL NEED TO VOTE ON THAT SEPARATELY.

>> T. TAPLIN: [OFF MIC]

>> I. TREGUB: YEAH, THAT'S FINE. DOES THAT WORK, MR. PARLIAMENTARIAN?

>> MAYOR ISHII: ARE WE ABLE TO DO THAT WITH JUST SEVERING THE NUMBER OF DAYS?

>> CITY CLERK: JUST TO CLARIFY WHAT COUNCILMEMBER TAPLIN, SO THE MOTION DOES INCLUDE ADOPTING THE RESOLUTION THAT'S LISTED ON THE AGENDA. AND THEN REAFFIRMING THE USE POLICIES. IS IT INCLUDED IN

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THE MOTION, THE RECOMMENDED ACTION ON THE AGENDA?

>> I. TREGUB: YES. I GUESS IF IT HAS TO BE, YES. IT WOULD INCLUDE THE ITEM, AS A WHOLE, WITH THE ADDITION OF THIS LANGUAGE.

>> CITY CLERK: OKAY, SO IT'S THE RECOMMENDATION, AS PROPOSED --

>> I. TREGUB: WITH THE EXCEPTION OF THE PERIOD, THE CITY LANGUAGE AND HOPEFULLY WE CAN VOTE ON THAT SEPARATELY.

>> MAYOR ISHII: I HAVE SOME CONCERNS BECAUSE SOME OF THIS LANGUAGE IS GUIDANCE AND SOME ARE ADJUSTMENTS TO THE POLICY. I DON'T WANT TO INCLUDE ALL OF THIS LANGUAGE. I THINK IT NEEDS TO BE SOMETHING LIKE INCLUDE THE, I DON'T HAVE IT ALL IN FRONT OF ME RIGHT NOW. BUT INCLUDE THE POLICY RECOMMENDATIONS LISTED IN HERE FROM P.A.B. AND ITEM #2 AND ALSO GIVE GUIDANCE ON THE ADDITIONAL SAFEGUARDS AND THE BIANNUAL AUDIT REPORT. I WANT TO MAKE SURE THAT'S CORRECT.

>> CITY CLERK: SO IN THIS DOCUMENT, THESE CHANGES HERE ARE ACTUAL AMENDMENTS TO WHAT WAS SUBMITTED BY THE POLICE DEPARTMENT IN THIS ITEM.

>> CITY MANAGER BUDDENHAGEN: CAN I ASK A QUESTION?

>> MAYOR ISHII: YEAH, GO AHEAD.

>> CITY MANAGER BUDDENHAGEN: DO THESE CHANGES YOU ARE PROPOSING ON THIS PAGE, I DON'T HAVE THE BOTTOM OF IT RIGHT HERE, ALSO INCLUDE THAT THIS CAMERA, THE CAMERA CONTRACT CAN'T MOVE FORWARD

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UNTIL THE SANCTUARY ORDINANCE IS PASSED? IT DOESN'T.

>> MAYOR ISHII: NO.

>> I. TREGUB: THERE WAS LANGUAGE.

>> CITY MANAGER BUDDENHAGEN: I SAW THAT AT ONE POINT, I JUST DON'T KNOW IF THAT IS STILL PART OF IT OR NOT.

>> R. KESARWANI: REAFFIRMING INTENTIONS. [OFF MIC]

>> T. TAPLIN: [OFF MIC]

>> MAYOR ISHII: SO AT THE TOP, I UNDERSTAND WHAT YOU ARE SAYING. I THINK AT THE TOP THERE'S SOME, NO, NO, I THINK THE FIRST PARAGRAPH THERE IS SOME CONFUSION ABOUT THIS LANGUAGE, THE WAY IT IS WRITTEN. THE VERY TOP PARAGRAPH. IT SEEMS TO SAY THE CITY MANAGER NEEDS TO ADDRESS THE PROPOSED CITY SANCTUARY ORDINANCE BEFORE ENTERING INTO THE FLOCK CONDOR SAFETY. IT DOES SAY THAT. SO TO CLARIFY. NOW WOULD BE THE LANGUAGE THAT COMES TO US IN THE FALL. SO IT WOULD BE EACH OF THE ELEMENTS BELOW IN CONTRACT LANGUAGE AND ALSO THE ACCOMPANYING LANGUAGE BE ADDRESSED INTO THE SAFETY CAMERA. IT DOESN'T NEED TO HAPPEN BEFORE BUT WE ARE WORKING ON THAT SEPARATELY.

>> CITY MANAGER BUDDENHAGEN: THANK YOU. THAT'S WHAT I WAS WONDERING ABOUT.

>> R. KESARWANI: DO YOU WANT TO STRIKE IT FROM THE PARAGRAPH?

>> T. TAPLIN: JUST THAT ONE?

>> CITY CLERK: I THINK IT'S JUST

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>> MAYOR ISHII: I THINK WHAT IS BEING ADDRESSED HERE IS --

>> M. HUMBERT: WHAT'S THE OTHER ACCOMPANYING LEGISLATION?

>> I. TREGUB: THAT'S THE PRINCIPLE ACCOMPANYING LEGISLATION. SO THAT'S CONFUSING.

>> MAYOR ISHII: MINUS THE RETENTION PERIOD AND ALSO THE, THIS IS SO HARD BECAUSE I HAVE TO HAVE A LOT OF THINGS UP AT THE SAME TIME. AND ALSO THE RECOMMENDATIONS FROM P.A.B.

>> I. TREGUB: SO MAYBE THIS IS BACK TO THE QUESTION WE STARTED WITH. WOULD IT BE CLEANER IF WE MADE THIS A SHORT-TERM REFERRAL?

>> MAYOR ISHII: NO, NO. I THINK THAT THIS IS CONFUSING. I THINK WE ARE JUST ASKING THE CITY MANAGER TO DO THE FOLLOWING. WE ARE LOOK AT THIS AUDIT REPORT, THE PAB RECOMMENDATIONS AND ADDRESSING THESE ADDITIONAL SAFEGUARDS. IT'S JUST THIS LANGUAGE. I DON'T WANT TO GET CAUGHT UP IN THE LANGUAGE OF THIS PARAGRAPH, IT'S REALLY JUST AN ENTRY.

>> COULD JUST SAY IT HAPPENED...

>> CITY MANAGER BUDDENHAGEN: GREAT, THANK YOU.

>> MAYOR ISHII: OKAY. SO I KNOW THAT COUNCILMEMBER LUNAPARRA HAS HER HAND UP. SO I JUST WANT TO MAKE SURE. IT'S HARD TO INCLUDE FOLKS ONLINE. DID YOU WANT TO SAY SOMETHING HERE?

>> C. LUNAPARRA: THIS IS ABOUT THE RETENTION PERIOD, SO I THINK I CAN WAIT A LITTLE BIT LONGER.

>> MAYOR ISHII: OKAY, GREAT. IN TERMS OF THIS, IS THIS CLEAR IN

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TERMS OF DIRECTION? YES. SO IF WE APPROVED ITEM #17 WITH THIS DIRECTION, WOULD THAT BE APPROPRIATE. IF WE APPROVED ITEM 17 WITH THIS DIRECTION, AS WRITTEN. COUNCILMEMBER, CAN YOU ALSO REMOVE THE RETENTION PERIOD? THAT'S THE OTHER PIECE THAT IS IN RETENTION. IT'S 1B, EVEN THOUGH WE DIDN'T USE LETTERS. IT'S ONE HIGHER. THERE YOU GO. WOULD THAT BE CORRECT?

>> YES. YOU ARE MAKE A MOTION TO APPROVE ITEM #17. OKAY.

>> CITY CLERK: NOW IF YOU ARE SEVERING THE REPORTING PERIOD, YOU STILL HAVE TO HAVE THE RETENTION PERIOD, YOU STILL HAVE TO HAVE IN THE MOTION AND YOU ARE SEVERING --

>> R. KESARWANI: WE HAVE TO VOTE ON THE RETENTION PERIOD FIRST.

>> CITY CLERK: FIRST.

>> MAYOR ISHII: OKAY. IN THAT CASE WE NEED TO TALK ABOUT THE RETENTION PERIOD. IN THAT CASE, COUNCILMEMBER LUNAPARRA, I KNOW YOU WANT TO TALK ABOUT THAT.

>> THANK YOU, I HAVE A FOLLOW-UP QUESTION TO COUNCILMEMBER KESARWANI'S EARLIER QUESTION. YOU MENTIONED THERE ARE MANY CASES WHERE THE GEYER, EARLIER WHEN I ASKED ABOUT WHEN THE CAMERA FOOTAGE WAS ACCESSED. ARLO SAID YOU DO.

>> I BELIEVE THE QUESTION YOU ASKED ARLO EARLIER IS WHETHER OR NOT WE HAD DATA AVAILABLE TONIGHT TO PROVIDE YOU AT SIXTH AND UNIVERSITY, WHAT THE TIME PERIOD WAS THAT THEY ASKED FOR IT. WHILE WE COULD GET THAT DATA, I DON'T HAVE THAT DATA AVAILABLE

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TODAY. MY RESPONSE TO COUNCILMEMBER KESARWANI ABOUT THE STACKING OF 90-DAY PERIODS IS THAT IF WE DON'T HAVE INFORMATION WE NEED TO GET SPECIFIC FOOTAGE THEN WE CAN'T PREPARE FOR IT. AN ACTIVE INVESTIGATION ALLOWS US TO HAVE ANOTHER 90 DAYS, IT DOESN'T WORK, BECAUSE AS SOON AS WE HAVE VALUE IN EVIDENCE WE WILL COLLECT THAT EVIDENCE.

>> THANK YOU FOR THAT. I WAS TALKING MORE ABOUT THE POLICE DEPARTMENT NEEDS MORE THAN 90 DAYS TO ACCESS. FOCUSED ON THE PEDESTRIAN TRAVEL IN THE BUSINESS DISTRICTS IN THOSE AREAS. SO AS WE START TOO IMPLEMENT THOSE TECHNOLOGIES WE WILL BE ABLE TO UNDERSTAND THROUGH OUR AUDITING HOW LONG IT NORMALLY HAS EVIDENTIARY VALUE. I COULD SHARE FROM TALKING TO OUR INVESTIGATORS AND THE LIST OF THINGS THEY HAD NO TROUBLE FILLING A PAGE OF ALL THE OTHER THINGS.

>> C. LUNAPARRA: OKAY, THANK YOU. I ALSO WANTED TO SAY, I THINK THAT, THANK YOU, THOSE ARE ALL MY QUESTIONS. I THINK THAT IT'S REALLY IMPORTANT. WE CAN'T JUST SPEAK OUT AGAINST THE FEDERAL GOVERNMENT'S TRANSGRESSIONS. WE HAVE A RESPONSIBILITY TO PROTECT OUR RESIDENTS FROM THEM. AND WE HAVE A RESPONSIBILITY TO NOT CREATE THE INSTITUTIONS THAT FASCISTS THEN ABUSE AGAINST THE VERY PEOPLE WE ARE TRYING TO FORGET. THIS HAPPENS TIME AND TIME AGAIN. I UNDERSTAND THAT WE ARE CREATING WELL-MEANING INSTITUTIONS AND MECHANISMS TO ADDRESS OUR IMMEDIATE PROBLEMS. I

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WANT US TO BE AWARE HOW -- I JUST WANTED TO POINT THAT OUT AGAIN. THANKS.

>> MAYOR ISHII: OKAY, THANK YOU. COUNCILMEMBER TAPLIN?

>> T. TAPLIN: THANK YOU, I JUST HAVE ONE QUICK QUESTION. HOW MANY PEOPLE DO WE HAVE IN OUR HOMICIDE DIVISION?

>> WELL, TYPICALLY WE ARE SUPPOSED TO HAVE THREE IN THERE. SERGEANT AND TWO OFFICERS --

>> T. TAPLIN: THANK YOU. WAS WONDERING IF SOME OF OUR PERSONNEL CHALLENGES.

>> IT'S EXACTLY THE CASE. A PERSON OR DETECTIVE UNIT LOOKING AT OUR STAFFING CHALLENGES TO KNOW THEY NEED TO GET INTO EVIDENCE. I DON'T KNOW HOW MUCH THE OTHER COMPARABLE AND OTHER CITIES ARE. BUT I THINK THE GOAL HERE IS TO UTILIZE TECHNOLOGY TO IMPROVE OUR CLEARANCE RATE AND MAXIMIZE AND OPTIMIZE THE RESOURCES THAT WE HAVE AS A DEPARTMENT. AND I RECOGNIZE ALL OF THE THINGS THAT MY COLLEAGUE JUST SPOKE TO. I THINK THOSE VERY REAL CONCERNS.

>> MAYOR ISHII: COUNCILMEMBER HUMBERT? COUNCILMEMBER TREGUB?

>> I. TREGUB: OKAY, THANK YOU. SO I'M GOING TO JUST, WE WILL SEE WHERE THE VOTES ARE. I'M GOING TO RE-MAKE MY MOTION. IT'S FOR ITEM 16 INCLUDING ALL OF THE LANGUAGE UP ON THE SCREEN WITH A 90-DAY RETENTION PERIOD FOR FIXED CAMERA SURVEILLANCE FOOTAGE AND IF THERE'S A SECOND TO THIS MOTION, I IMAGINE THERE MAY BE A REQUEST TO SEVER OUT THIS PART. IT SOUNDS LIKE THE STATUS QUO IS

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180. SO IF THIS IS PASSES IT WOULD BE 90 DAYS, IF IT DOESN'T IT WILL REMAIN AT 180.

>> R. KESARWANI: COUNCILMEMBER TREGUB, POINT OF ORDER, I THOUGHT YOU ALREADY REQUESTED THE SEVERING.

>> MAYOR ISHII: WE DECIDED WE WEREN'T ABLE TO DO THAT BECAUSE OF THE CLERK

>> WE JUST NEED A NUMBER E.

>> THIS IS THE NUMBER. THE WAY THIS WORKS WE WILL TAKE A LO*ET VOTE, IF THAT GETS FIVE VOTES THAT IS WHAT IS INCLUDED.

>> I. TREGUB: 90 IS ALREADY THE STATUS QUO.

>> R. KESARWANI: YOU WANT TO MAKE A FULL MOTION FOR EVERYTHING WITH 90 DAYS.

>> I. TREGUB: GIVEN THERE MIGHT BE DISAGREEMENT ON THIS PORTION, I WOULD REQUEST A --

>> MAYOR ISHII: YOU WANT TO MAKE A MOTION TO APPROVE THIS I'D EM WITH THE CLEARANCE AS NEIGHBOR. JUST VOTE ON THE 90 DAYS IF IT GETS FIVE -- [OVERLAPPING SPEAKERS]

>> MAYOR ISHII: I KNOW IT'S CONFUSING. I APPRECIATE. NO, NO, IT'S OKAY.

>> B. BLACKABY: MADAM MAYOR, I MOVE WE EXTEND THE MEETING UNTIL 12:30 A.M.

>> SECOND.

>> MAYOR ISHII: CLERK, TAKE THE ROLL, PLEASE.

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>> CITY CLERK: TO EXTEND THE MEETING, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT? IS COUNCILMEMBER BARTLETT ON? TO EXTEND THE MEETING?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: MEETING IS EXTENDED.

>> MAYOR ISHII: OKAY, SO YOU HAVE MADE A MOTION. I WILL SECOND THAT MOTION. AND I WILL ASK THE CLERK TO TAKE THE ROLL, PLEASE.

>> CITY CLERK: WE ARE GOING TO VOTE ON THE SEVERED PORTION.

>> R. KESARWANI: IS IT JUST THE POINT OF THE 90 DAYS?

>> MAYOR ISHII: YES.

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>> CITY CLERK: WE ARE VOTING RIGHT NOW ON WHETHER TO INCLUDE THE 90-DAY RETENTION IN THE MOTION. OKAY. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: NO.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: NO.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: NO.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: NO.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: NO.

>> CITY CLERK: MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: OKAY, SO THAT DID NOT PASS. SO THE 90 DAYS IS STRICKEN FROM THE MOTION. BUT THE REMAINDER OF IT IS NOW CAN BE VOTED UPON.

>> MAYOR ISHII: OKAY. COUNCILMEMBER TAPLIN YOU HAVE YOUR LIGHT

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ON.

>> T. TAPLIN: SORRY.

>> MAYOR ISHII: OKAY. I JUST WANT TO MAKE SURE. DID FOLKS HAVE ANY OTHER COMMENTS ABOUT THIS BEFORE WE MOVE FORWARD?

>> T. TAPLIN: WELL, I THINK IT MIGHT BE WORTH WHEN WE GET THE AUDIT AND THINGS TO THINK ABOUT WHETHER, IF WE HAVE A RETENTION PERIOD THAT IS OVER LONG, WHETHER WE COULD ADJUST IT. BUT I AM INTERESTED IN THE POSSIBILITY OF HAVING A RETENTION PERIOD THAT INCLUDED AN EXTENSION, BUT I GUESS WE NEED MORE INFORMATION AROUND. I GUESS WE CAN'T ALWAYS PREDICT HOW LONG IT WILL TAKE TO KNOW WHETHER EVIDENCE WOULD BE NECESSARY. BUT THAT'S SOMETHING I WILL CONTINUE TO THINK ABOUT.

>> MAYOR ISHII: YEAH, I THINK WE NEED ANOTHER MOTION.

>> I. TREGUB: I MOVE THE ITEM WITH --

>> CITY CLERK: THE MOTION HAS BEEN MADE.

>> MAYOR ISHII: WITH A DIFFERENT NUMBER THOUGH?

>> IT JUST DEFAULTS.

>> MAYOR ISHII: IT DEFAULTS TO THE 180.

>> I. TREGUB: WE DON'T NEED ANOTHER MOTION, DO WE?

>> CITY CLERK: NO, THE MOTION HAS BEEN MADE AND SECONDED BY TREGUB AND SECONDED BY THE MAYOR.

>> MAYOR ISHII: OKAY.

>> CITY CLERK: THE RECOMMENDATION WITH THE ADDITIONAL DIRECTION

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AS AMENDED BY COUNCILMEMBER HUMBERT AND ALL THAT GOOD STUFF. ARE WE READY TO VOTE?

>> MAYOR ISHII: YES.

>> CITY CLERK: OKAY. ON THE MOTION, KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: NO.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: OKAY.

>> MAYOR ISHII: OKAY. SO WE STILL HAVE ANOTHER ITEM LEFT. I JUST

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WANT TO CHECK IN WITH FOLKS. DO YOU NEED A BATHROOM BREAK OR ANYTHING?

>> CITY MANAGER BUDDENHAGEN: I THINK THE ITEM WILL BE FAST.

>> MAYOR ISHII: ALL RIGHT. IF YOU NEED TO RUN TO THE BATHROOM, YOU CAN. OF COURSE. SO SORRY, WE HAVE ONE MORE ITEM. ACTUALLY, YES. SORRY, YOU ALL, I'M REACHING THE POINT OF THE NIGHT, YOU KNOW. WE ARE ON ITEM 11, THE SURVEILLANCE TECHNOLOGY ORDINANCE SUBMISSION FOR BERKELEY CITY JAIL SURVEILLANCE SYSTEM.

>> THIS IS A REPLACEMENT PLAN. OUT OF AN ABUNDANCE OF CAUTION WE ARE MOVING THROUGH THE S.T.O. PROCESS. WHILE THE SERVERS ARE ON OUR SITE YOU CAN ACCESS THEM VIA THE CLOUD WITH THE PASSWORD TO GET TO THAT, TO DOWNLOAD THE INFORMATION. SO OUT OF AN ABUNDANCE OF CAUTION WE HAVE GONE THROUGH THE SURVEILLANCE TECHNOLOGY ORDINANCE, THEY HAVE BEEN REVIEWED BY THE P.A.B. WHO HAS NOT PROVIDED FEEDBACK FOR EDITS OR CHANGES ON THAT. JUST HAPPY TO ANSWER QUESTIONS AND YOUR SUPPORT FOR THIS.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBERS, DO YOU HAVE ANY QUESTIONS? SORRY, COUNCILMEMBER LUNAPARRA, SINCE I CAN'T SEE YOU, DO YOU HAVE ANY QUESTIONS?

>> C. LUNAPARRA: HI, I HAVE A QUICK QUESTION. SORRY, ONE SECOND. I'M CURIOUS ABOUT THE COST INCREASE FOR THIS. IT'S A 50% COST INCREASE WHILE THE GENERAL FUND IS FACING A DEFICIT. SO I'M CURIOUS WHAT THE PLAN IS FOR SECURING THE EXTRA $250,000 FOR

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THIS PROJECT.

>> SO THIS PROJECT HAS BEEN FUNDED ALREADY.

>> C. LUNAPARRA: THROUGH THE POLICE DEPARTMENT BUDGET?

>> PART WAS THROUGH CAPITAL IMPROVEMENT BECAUSE OF THE INFRASTRUCTURE.

>> C. LUNAPARRA: YOU SAID PART OF IT WAS OR ALL OF IT WAS, SORRY, IT CUT OUT.

>> THE PART OF THE CAMERAS MAY BE PULLED FROM OUR EXISTING CONTRACT WITH EDGEWORTH. BUT THE PROJECT ITSELF AS IT IS RELATED TO THE IMPROVEMENT OF THE FACILITY IS A CAPITAL PROJECT.

>> C. LUNAPARRA: THANK YOU. THAT'S ALL MY QUESTIONS.

>> MAYOR ISHII: THANK YOU. ALL RIGHT, THEN. DO WE HAVE ANY PUBLIC COMMENT ON THIS ITEM? I DON'T SEE ANY MEMBERS.

>> CITY CLERK: THERE'S ONE HAND RAISED. THIS IS PUBLIC COMMENT ON ITEM 11 REGARDING THE BERKELEY CITY JAILS SURVEILLANCE SYSTEM. PHONE NUMBER ENDING IN 000. YOU SHOULD BE ABLE TO UNMUTE.

>> HI. (INDISCERNIBLE) THANK YOU FOR A BEAUTIFUL PRESENTATION. I DON'T HAVE ANY QUESTIONS FOR HER. PLEASE INVESTIGATE THE MURDER OF THAT WOMAN, MOTHER OF NICO FELIX. IT WAS NEVER SOLVED.

>> MAYOR ISHII: EXCUSE ME. SPEAKER WE ARE TALKING ABOUT #11, WHICH IS THE SURVEILLANCE TECHNOLOGY ORDINANCE SUBMISSION FOR THE BERKELEY CITY JAIL SURVEILLANCE SYSTEM. IF YOUR COMMENT IS

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NOT ON THAT CAN YOU PLEASE WAIT? OKAY. THANK YOU.

>> CITY CLERK: WE HAVE TWO MORE HANDS RAISED NOW. WE HAVE CHERYL DAVILA, FORMER COUNCILMEMBER.

>> SURVEILLANCE, SURVEILLANCE, SURVEILLANCE, THAT'S ALL YOU GUYS WANT TO DO. IT'S REALLY INTRUSIVE. I'M NOT SURE IT'S NECESSARY. I THINK, YOU KNOW, IF YOU COULD SAVE $250,000 AND DO SOMETHING ELSE WITH IT MAYBE LIKE HELPING THE COMMUNITY IN OTHER WAYS. FINANCING VOICES AGAINST VIOLENCE OR HEALTHY BLACK FAMILIES OR PUT IT INTO THE AFRICAN AMERICAN REALISTIC RESOURCE CENTER. THERE'S LOTS OF OTHER THINGS YOU COULD DO WITH THAT MONEY. AND INCREASING SURVEILLANCE, YOU KNOW. I MEAN, ENOUGH IS ENOUGH. AND LIKE I SAID EARLIER, IN OTHER CITIES PEOPLE ARE GIVING MORE TIME AND TREATED IN A MUCH MORE RESPECTFUL AND KIND WAY.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENTS.

>> CITY CLERK: NEXT IS MONI.

>> WITH REGARD TO THE CAPITAL IMPROVEMENTS IN THE JAIL, I AM HOPING THAT WE WOULD HAVE INCREASED SOME SERVICE TO DOMESTIC VIOLENCE ABUSE SURVIVORS. AS AN ATTORNEY I HAVE REPRESENTED A NUMBER OF PEOPLE WHO HAVE BEEN VICTIMS OF VIOLENCE BY PARTNER. OR THE LACK OF SERVICES AT THE POLICE DEPARTMENT, I WOULD UNDERSTAND WOULD BE PART OF THEIR WEBSITE. THAT SHOULD BE PART OF YOUR BUILDUP. I WOULD HOPE WOULD BUDGET SOMETHING AND I BELIEVE JENNY WONG DID SHOW A GAP IN SERVICES AND AVAILABILITY.

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WE HAVE NO SHELTERS WHATSOEVER IN THE CITY OF BERKELEY. THANK YOU. I THINK I RAN OUT OF TIME. SO THAT'S IT. HELLO? ARE YOU THERE? CAN YOU HEAR ME? I HOPE YOU HEARD ME; THERE'S NOISE IN THE BACKGROUND. OKAY, GOOD NIGHT. HELLO? IF MY CLOCK IS STILL RUNNING, I HOPE YOU GET THE ADVOCATE BACK IN THE BERKELEY POLICE DEPARTMENT FOR VICTIMS OF ABUSE. I DON'T KNOW IF THEY ARE NOT LISTENING IN THE BACKGROUND, COUNCILMEMBER BARTLETT? CHAIR? MAYOR? CITY CLERK? THE BOARD ROOM IS TALKING AND --

>> C. LUNAPARRA: MONI, IT SOUNDS LIKE THE SYSTEM IN THE BOARD ROOM SHUT DOWN, I THINK THEY ARE TRYING TO FIX IT AND HOPEFULLY COME BACK TO YOU.

>> OKAY, I DON'T KNOW IF ANYBODY HEARD ANYTHING I SAID. THANKS, I'LL STAND BY. MADAM CLERK, WAS THAT YOU SPEAKING?

>> C. LUNAPARRA: IT WAS ME, COUNCILMEMBER LUNAPARRA.

>> OH, I COULDN'T TELL WHOSE VOICE. HMM.

>> DO THEY REALIZE WE CAN HEAR THEM?

>> C. LUNAPARRA: I DON'T THINK SO.

>> I DON'T THINK SO EITHER BECAUSE THEY ARE TALKING ABOUT US. THEY PROBABLY WANT TO SILENCE THEIR MIC, OR ALLOW PUBLIC COMMENT TO CONTINUE. HELLO, HELLO? HELLO, HELLO? I'M GOING TO WAIT UNTIL I GET CALLED ON AGAIN. TECHNICAL DIFFICULTIES. GOING TO HIRE THE NEW VIDEO SYSTEM SHOWS LIMITATIONS OF TECHNOLOGY. HELLO? SOMEONE IS SENDING ME A MESSAGE.

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>> I CAN HEAR YOU.

>> OKAY.

>> THANK YOU, WHOEVER SAID THEY CAN HEAR ME, I DON'T KNOW IF EVERYONE CAN HEAR ME, IT WAS AN IMPORTANT CONCERN-

>> C. LUNAPARRA: MONI, I THINK THEY ARE FIXING IT.

>> THIS IS REX, I CAN HEAR YOU. I JUST WANT YOU TO KNOW, I THINK THE CAMERA MAY BE FROZEN, THE SYSTEM MAY BE FROZEN.

>> OKAY.

>> I DID HEAR SOME AUDIO BUT DON'T SEE ANYONE MOVING.

>> I'LL STAND BY.

>> MAYOR ISHII: I THINK WE ARE BACK. OKAY. CAN YOU HEAR ME?

>> YES.

>> MAYOR ISHII: MONI, I'M SO SORRY, YOU GOT CUT OFF. OUR SYSTEM COMPLETELY SHUT DOWN. YOU WILL GET A WHOLE OTHER MINUTE.

>> I WAS TRYING TO SHARE A CONCERN WITH REGARD TO A MISSING PIECE OF THE INFRASTRUCTURE FOR JAILS AND WE SHOULD MAKE MORE SPACE FOR HOUSES, HOMES, SCHOOLS, AND HEALTHCARE THAN JAILS. BUT AS WE HAVE SITUATIONS WITH SURVIVORS OF DOMESTIC VIOLENCE AND THERE'S NO PLACE FOR PARTICULARLY WOMEN TO GO IN THE CITY OF BERKELEY. I HOPE WE BUILD INTO OUR INFRASTRUCTURE, CAPITAL IMPROVEMENT PLAN HOUSING AND SHELTER FOR WOMEN AND THEIR CHILDREN AND THEIR PARTNERS THAT HAVE UNFORTUNATELY, MY CASE, I HAVE BEEN AN ATTORNEY FOR A WOMAN WHOSE HUSBAND KILLED HIS NEXT

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WIFE. I KNOW THE INTENSITY OF THIS SITUATION AND IT'S IMPORTANT THEY GET SAFE AND SERVICES. RIGHT NOW WE OUTSOURCED OUR FORMER PERSON ON SITE AT THE POLICE DEPARTMENT. SHE IS NOW AT FAMILY LAW CENTER IN OAKLAND BUT WE NEED SOMEONE IN BERKELEY AND SHELTER AND SERVICES FOR SURVIVORS IN BERKELEY.

>> MAYOR ISHII: THANKS, MONI. ARE THERE ANY OTHER COMMENTS ONLINE?

>> CITY CLERK: NO, THAT'S IT.

>> MAYOR ISHII: ARE THERE ANY COUNCIL COMMENTS? COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: YEAH, JUST BRIEFLY. I'M SUPPORTIVE OF THIS. I JUST WANT TO SAY I THINK THE PROCESS WE JUST WENT THROUGH WITH THE PREVIOUS ITEM WAS THE S.T.O. WORKING WELL. I THINK THAT WAS A BIG ADVANCEMENT INTO THE LEVEL OF SURVEILLANCE TECHNOLOGY WE HAVE IN BERKELEY. THE LAST ITEM REALLY REQUIRED THAT LEVEL OF PROCESS. AND I THINK THAT WAS GOOD. THIS IS NOT A GOOD, THIS SCENARIO WE ARE DEALING WITH RIGHT NOW, I THINK THE S.T.O. IS A LITTLE TOO BROAD. I DON'T THINK SURVEILLANCE IN JAILS NEEDS TO BE SCRUTINIZED THAT MUCH. I THINK EVERYONE IN JAIL EXPECTS TO BE SURVEILLED. I THINK THE S.T.O. NEEDS TO BE CURTAILED IN ITS SCOPE TO FOCUS ON THINGS LIKE THE PREVIOUS ITEM SO WE DON'T HAVE TO WASTE TIME ON THIS. THANK YOU FOR LISTENING.

>> MAYOR ISHII: THANK YOU. OTHER COMMENTS FROM COUNCILMEMBERS?

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AND IF NOT, DOES SOMEONE WANT TO MAKE A MOTION? COUNCILMEMBER O'KEEFE IS MOVING ITEM 11. SECOND FROM COUNCILMEMBER TAPLIN. PLEASE TAKE THE ROLL.

>> CITY CLERK: COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII.

>> MAYOR ISHII: YES. I JUST WANT TO HIGHLIGHT FOR FOLKS THERE ARE MANY INFORMATION REPORTS. I JUST WANT TO HIGHLIGHT THAT. DO WE HAVE ANY PUBLIC COMMENT FOR ANY ITEMS NOT LISTED ON THE

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AGENDA?

>> CITY CLERK: WE WILL GO BACK TO OUR PHONE CALLER.

>> MAYOR ISHII: I THINK THERE IS SOMEONE IN PERSON AS WELL.

>> CITY CLERK: PHONE NUMBER ENDING, I UNMUTED HIM ALREADY, SORRY.

>> GREETINGS MADAM MAYOR AND CITY COUNCIL. MY NAME IS TRAVIS MIFF I HAVE BEEN IN BERKELEY FOR 50 YEARS. MY FAMILY HAS A HOUSE IN BERKELEY THEY BOUGHT IN 1957. I'M HOMELESS. WHEN OHLONE PARK WAS VACATED, I'M AN IN AN ENCAMPMENT AND THEY STOLE MY TENT. IS THERE ANY WAY SOMEONE CAN DONATE ME A TENT AND IF THERE CAN BE EXTENSION OF CARS ON THE STREET ON VACATION? THANK YOU FOR LISTENING.

>> MAYOR ISHII: THANK YOU.

>> B. BARTLETT: SIR, CONTACT MY OFFICE, I WILL GET YOU A TENT, SIR.

>> MAYOR ISHII: COUNCILMEMBER BARTLETT IS OFFERING A TENT. PERHAPS WE CAN MAKE SURE WE GET YOUR CONTACT INFORMATION. YOU DON'T KNOW IF ANYONE FROM HIS OFFICE IS HERE IN PERSON. I WILL ASK MY STAFF IF MAYBE THEY CAN ASSIST WITH THAT. THANK YOU, COUNCILMEMBER. SORRY, OTHER PUBLIC COMMENT ONLINE?

>> CITY CLERK: WE HAVE PHONE NUMBER ENDING IN 000. FOR NON-AGENDA PUBLIC COMMENT. HE IS UNMUTED. YOU SHOULD BE ABLE TO SPEAK. PHONE NUMBER ENDING IN 000.

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>> HI. ELIGIBLE TO CALL BACK. (INDISCERNIBLE) I'VE BEEN IN BUSINESS 62 YEARS. ALSO CREATE BERKELEY WITH THE CHIEF TO LOOK INTO THE ABDUCTION AND MURDER OF THE EGYPTIAN PHYSICIST AUGUST 5, 1952. THAT CASE HAS NEVER BEEN SOLVED. I WOULD LIKE TO ASK EVERYBODY PLEASE PRAY FOR PEACE. NOT ONLY BERKELEY BUT IN UKRAINE. WE NEED TO HAVE PEACE. THE WHOLE EARTH IS INHABITED BY DEMONS THAT CONTROL US ALL. THESE ARE DEMONS, NOT HUMANS. THANK YOU. PLEASE HELP US. OUR BUSINESS WHICH IS 60 YEARS AND WE WOULD LIKE TO CONTINUE. DO WHATEVER YOU CAN. THANK YOU AGAIN. HAVE A GOOD NIGHT.

>> MAYOR ISHII: THANK YOU. AND THANK YOU FOR SAVING YOUR COMMENT FOR THE PUBLIC COMMENT AND NOT ON THE AGENDA PERIOD.

>> CITY CLERK: MONI, ARE YOU ON FOR NON-AGENDA PUBLIC COMMENT?

>> I'M SORRY, I FORGOT TO EXIT FROM THE SPACE. BUT I HEREBY REMAIN EXITED. HAVE A GOOD EVENING.

>> MAYOR ISHII: THANK YOU, MONI. IS THERE A MOTION TO ADJOURN?

>> CITY CLERK: WE HAVE ONE, FOR NON-AGENDA PUBLIC COMMENT WE HAVE ONE MORE SPEAKER. CHERYL DAVILA, FORMER COUNCILMEMBER.

>> SO, I THINK THAT I SAID EARLIER THIS EVENING AT OTHER CITY COUNCILS THEY GIVE PEOPLE MORE TIME. THEY GIVE THREE MINUTES FOR PUBLIC COMMENT. AND THEN FOR ITEMS THEY THOUGHT WAS GOING TO BE LONGER, THEY GAVE TWO MINUTES AND THEY TREATED PEOPLE WITH RESPECT AND KINDNESS. THEY DIDN'T INTERRUPT PEOPLE BECAUSE THEY

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THOUGHT THEY WEREN'T TALKING ON THE TOPIC, THEY ALLOWED THEM TO SPEAK. AND I THINK THAT COURTESY SHOULD BE ADOPTED IN THE CITY OF BERKELEY. I KNOW WHEN I GO INTO THOSE MEETINGS, YOU KNOW, I DON'T KNOW, THE DEMONIC BEHAVIOR TAKES OVER. THE PEOPLE IN THE AUDIENCE AND MAYBE THEY MIGHT NOT ACT APPROPRIATELY, BUT WE CAN ALL DO BETTER AND THE CITY COUNCIL CAN DO BETTER WITH LISTENING AND HEARING AND BEING KIND AND BEING CARING ABOUT HUMANITY.

>> MAYOR ISHII: YOUR TIME IS UP.

>> CITY CLERK: THAT'S IT.

>> MAYOR ISHII: OKAY, ALL RIGHT. SORRY, THERE WAS A MOTION TO ADJOURN.

>> I. TREGUB: MOVE TO ADJOURN.

>> M. HUMBERT: SECOND.

>> MAYOR ISHII: SECOND EARLIER. AND CAN YOU TAKE THE ROLL PLEASE, CLERK?

>> CITY CLERK: TO ADJOURN, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: AYE.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

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>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: COURTESY AND RESPECT, I VOTE YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: WE ARE ADJOURNED.

>> MAYOR ISHII: THANK YOU EVERYONE. THANK YOU SO MUCH FOR STAYING FOR SO LONG, ALL OF YOU.

>> M. HUMBERT: GET WELL CECELIA.

>> CITY CLERK: OUR CAPTIONER.

>> MAYOR ISHII: CAPTIONER. MEDIA, MY STAFF. MEMBERS OF THE PUBLIC. THANK YOU ALL. [ADJOURNED 12:11 A.M. PT]

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